

# The Punjab Motor Vehicles Rules, 1989

PUNJAB

India

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### Rule THE-PUNJAB-MOTOR-VEHICLES-RULES-1989 of 1989

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The Punjab Motor Vehicles Rules, 1989 Published vide Punjab Government Notification dated 17th August 1989 No. GSR.67/C.A.59/88/Ss. 28, 38, 65, 93, 95, 96, 107, 111, 138, 146, 176 and 213/89. - With reference to Government of Punjab, Department of Transport (Transport of II Branch) Notification No. G.S.R. 59/C.A./59/88/Ss. 28, 38, 65, 93, 95, 96, 107, 111, 138, 146, 176 and 213/89, dated the 3rd July, 1989, and in exercise of the powers conferred by sections 28, 38, 65, 93, 95, 96, 107, 111, 138, 146, 176 and 213 read with the provisions of the section 212 of Motor Vehicles Act, 1988 (Central Act No. 59 of 1988), and all other powers enabling him in this behalf, the President of India is pleased to make the following rules, namely, -

## Chapter I Preliminary

### 1. Short title and commencement

. - (1) These rules may be called the Punjab Motor Vehicles Rules, 1989.

### 2. Definitions

. - In these rules, unless there is anything repugnant to the subject or context, -(a)"Act" means the Motor Vehicles Act, 1988 (Central Act No. 59 of 1988);(b)"Board of Inspection" means a Board of Inspection appointed under rule 38;(c)"Central Rules" means the Central Motor Vehicles Rules, 1989;(d)"Chapter" means the chapter of these rules;(e)"Government" means the Government of the State of Punjab in the Department of Transport;(f)"Passenger" for the purposes of Chapter V, means any person travelling in a public service vehicle other than the driver or the conductor of such vehicle or any other employee of the permit holder while on duty;(g)"Section" means a section of the Act;(h)"State" means the State of Punjab;(i)"Stand" means a place duly appointed as a stand under Chapter X of these rules;(j)"State Transport Commissioner" means the State Transport

Commissioner, Punjab appointed as such by the Government;(k)"transport co-operative society" means a transport co-operative society registered as such under the provisions of the Punjab Co-operative Societies Act, 1961;(l)"transport company" means a transport company registered as such under the Companies Act, 1956;(m)"transport firm" means a transport firm registered as such under the Indian Partnership Act, 1932;(n)"urban area" means the area of a Municipal Corporation, Municipality, urban estate, small town or cantonment or other local area which may be specially notified by the State Government as an urban area.

## **Chapter II**

## **Licensing of Drivers of Motor Vehicles**

### **3. Licensing Authority**

. [Section 28(a)] - (1) Each of the District Transport Officers shall be the Licensing Authority for the area of the District for which he is appointed as such, to issue licences under Chapter II or as the case may be, Chapter III of the Act includes such other officer who is appointed in this behalf of the Government.(2)The area of jurisdiction of each licensing authority shall be the area of the district for which he is appointed as such or such other area as may be specified by the Government in this behalf.

### **4. Procedure for processing application for driving licence**

. [Section 28] - On receipt of an application for grant of a learner's licence or a driving licence, as the case may be, in terms of the provisions of section 8 or section 9, the licensing authority shall process the application for the grant of a licence under the provisions of the Act.

### **5. Licensing Authority to conduct the test**

. [Section 28] - (1) If the application for grant of a licence is found in order under rule 4, the test for a learner's licence specified in rule 11 and for a driving licence specified in rule 15 of the Central Rules shall be conducted by the licensing authority.(2)For the purpose of tests in term of sub-rule (1) the applicant shall produce himself at such time and place as may be specified by the licensing authority and bring with him a serviceable vehicle of the class to which the application belongs for testing purposes.

### **6. Photograph to be signed by the licensing authority**

. [Section 28] - (1) The photograph of the holder of the licence when affixed to the licence shall be sealed with the seal of the licensing authority in such a manner that a part of the impression of the seal is upon the photograph and part on the margin.(2)If at any time it appears to the licensing authority that the photograph affixed to a licence has ceased to be a clear likeness of the holder, the licensing authority may require the holder to surrender the licence forthwith and to furnish two

clear copies of a recent photograph of himself and the holder shall, within such time as the licensing authority may specify, appear in person before the licensing authority and present the photograph accordingly.(3)Upon receipt of the copies of the photograph in terms of the provisions of sub-rule (2), the licensing authority shall remove the old photograph from the licence and affix the seal thereto on one copy of the new photograph and return the licence to the holder of the licence and shall, if he is not the licensing authority by whom the licence was issued, forward the second copy of the photograph to that authority :Provided that if the holder of the licence so desires, the licensing authority shall issue a duplicate licence with the new photograph affixed thereto and shall destroy the original licence.(4)When a new photograph is affixed to a licence, a notice shall be made upon the photograph of the date of affixure.(5)The fee for a duplicate licence issued under the proviso to sub-rule (3) shall be rupees ten.

## **7. Appellate Authority**

. [Sections 17, 19 and 28] - The appellate authority for the purposes of sub-section (2) of section 17 and sub-section (3) of section 19 shall be the State Transport Commissioner.

## **8. Conduct and hearing of appeals**

. [Section 29(2)(b)] - (1) An appeal under sub-section (2) of section 17 or sub-section (3) of section 19 shall be preferred in duplicate in the form of a memorandum, one copy of which shall bear a cash receipt or a treasury challan of rupees ten, setting forth concisely the grounds of objection to the order of the licensing authority and shall be accompanied by a certified copy of the order appealed against.(2)When an appeal is preferred under sub-rule (1) a notice shall be issued by an appellate authority to the licensing authority concerned in such form as the appellate authority may specify.(3)The appellate authority after giving an opportunity to the parties to be heard and after such further enquiry, if any, as it may be necessary, may confirm, vary or set aside the order against which the appeal is preferred and shall make an order accordingly.(4)Any person preferring an appeal under sub-rule (1) may obtain a copy of any document filed with the licensing authority in connection with the orders appealed against on payment of a fee at the rate of [rupees five] [ Substituted vide Punjab Government Notification No. GSR84/CA/59/88/Ss.28, 38, 65, 93/Amd.(1)94.] per page.(5)Any person preferring an appeal under sub-rule (1) shall be entitled to inspect the file of the Appellate Authority by making an application bearing a cash receipt or a treasury challan of -(a)in respect of urgent inspection - [rupees twenty] [ Substituted vide Punjab Government Notification No. GSR84/CA/59/88/Ss.28, 38, 65, 93/Amd.(1)94.]; and(b)in respect of ordinary inspection - rupees five;(6)A copy of the order made by the appellate authority in appeal may be obtained on payment of a fee at the rate of [rupees five] [ Substituted vide Punjab Government Notification No. GSR84/CA/59/88/Ss.28, 38, 65, 93/Amd.(1)94.] per page.

## **9. Authority for making appointment of registered medical practitioner**

. [Section 8(3)] - (1) The Chairman of the State Transport Authority in consultation with the Chief Medical Officer of the district concerned shall be the authorised person to appoint the registered medical practitioners for the purpose of sub-section (3) of section 8.(2)The fee payable for the issue

of medical certificate under sub-section (3) of section 8 shall be rupees fifteen and shall be deposited under the appropriate head of account of the Department of Health and Family Welfare of the Government of Punjab, where the examination is conducted by a Government Doctor.

## **10. Licences lost or destroyed**

. [Section 28(2)(c)] - (1) If at any time the licence is lost by the holder or is destroyed, the holder thereof shall forthwith intimate the facts in Form LLD or in a letter setting out the particulars required by the Form LLD to the licensing authority in whose area he has his place of residence. (2) Upon the receipt of intimation under sub-rule (1), the licensing authority shall if it is not the licensing authority by whom the licence was issued, apply to that licensing authority for particulars of the licence and after making such enquiries as it thinks fit, shall, if it is satisfied that a duplicate may properly be issued, issue a duplicate licence. (3) Where a photograph has become obsolete, the holder of the licence shall furnish the licensing authority with two clear copies of a recent photograph of himself, one of which shall be affixed to the duplicate licence and the second one be kept in record. (4) The fee for a duplicate licence to be issued under this rule shall be rupees twenty-five: Provided that if the licence is lost while in the custody of a court or an authority to which it has been submitted or surrendered in pursuance of the provisions of the Act or these rules, a duplicate copy shall be issued free of charge. (5) When a duplicate licence has been issued upon a representation that a licence has been lost and the original licence is afterwards found by the holder, he shall deliver the original licence forthwith to the licensing authority but the fee so paid for the issue of duplicate licence shall not be refundable. (6) Any person finding a driving licence shall, deliver it to the holder of the licence or to the nearest police station.

## **11. Mutilated licence**

. [Section 28(2)(c)] - (1) If at any time it appears to a licensing authority that a licence held by any person is so torn or defaced that it has ceased to be reasonably legible or that any important part of the original licence has been detached or is missing or that any unauthorised alterations have been made, the licensing authority may impound the licence and issue a duplicate licence. (2) If any of the entries are illegible or are missing or it appears that they have been detached or altered without authority, the licensing authority shall, if it is not the licensing authority by whom the licence was issued, apply to that authority for particulars of the licence and after making such enquiries as he thinks fit shall, if it is satisfied that a duplicate may properly be issued, issue a duplicate licence. (3) If a licence impounded under this rule is required to have a photograph of the holder affixed thereto, then - (a) if the photograph on the impounded licence is in the opinion of the licensing authority satisfactory and conveniently transferable to the duplicate licence, the licensing authority may so transfer, affix and seal the photograph to the duplicate licence; and (b) if the photograph affixed to the licence impounded is not in the opinion of the licensing authority such as can be transferred to the duplicate licence, the holder of the licence shall, on the demand of the licensing authority furnish two clear copies of recent photograph of himself, one of which shall be affixed to the duplicate licence and sealed. (4) The fee for a duplicate licence issued under this rule shall be rupees ten.

## **12. Issue of duplicate licence**

. [Section 28(2)(c)] - When a duplicate licence is issued it shall be clearly stamped "DUPLICATE" in read ink and shall be marked with the date of issue of the duplicate and the seal of the licensing authority.

## **13. Temporary authorisation in lieu of licence**

. [Section 28(2)(c) and Section 296] - (1) When the holder of a licence has surrendered it to a licensing authority for renewal or for obtaining an addition to drive a public service vehicle under section 11 or for any other purpose under the Act or these rules and has deposited the fee as specified under rule 32 of the Central Rules for this purpose and the licence so surrendered has not been suspended or cancelled, the licensing authority or other authority to whom the licence has been surrendered shall furnish him with a receipt for the licence in Form "L Tem" or in Form L Tem (MVD) and during the period specified in the receipt so furnished it may be produced in place of the licence under section 130 and under sub-section (3) of section 206.(2)The licensing authority, a police officer or any other person authorised by the Government may, extend the term of the receipt issued under sub-rule (1) by an order endorsed thereon.(3)No fee shall be payable in respect of a receipt given under this rule.

## **14. Communication of particulars of licence**

. [Section 28(2)(g)] - (1) A licensing authority taking possession of a licence under section 19 shall, if the licence was issued under the Act and was granted by another licensing authority, intimate this fact to the authority, by whom the licence was issued.(2)The particulars of the persons disqualified for holding or obtaining a driving licence and the particulars of person convicted under section 182 shall be published in the official Gazette and entry to that effect shall be made in the State Register for Driving Licences maintained under section 26.

## **15. Intimation to original licensing authority of endorsements and renewals**

. [Section 28(2)(g)] - (1) The Court or authority making or causing to be made an endorsement on a licence regarding disqualification under section 24 shall send intimation thereof in Form 'LE' to the licensing authority by whom the licence was issued.(2)A licensing authority renewing a licence under the provisions of sub-section (6) of section 15 shall intimate in Form L.R. the fact of renewal to the licensing authority by whom the licence so renewed was issued.(3)A licensing authority adding to the classes of vehicle under which a licence authorises the holder to drive vehicles under sub-section (3) of section 6 shall, if it is not the authority by whom the licence was issued, intimate the addition so made to that authority in Form "LAD".

## **16. Change of address**

. [Section 28(2)(g)] - The holder of a licence entitling him to drive as a paid employee or to drive a public service vehicle, shall, except in the case of a temporary absence not involving a change of residence for a period exceeding three months, report any change of his temporary or permanent address as given on the licence to the licensing authority by whom the licence was issued and to the licensing by whom it was last renewed.

## **17. Exemptions from the payment of fees**

. [Section 28(2)(f)] - (1) Fees specified under rule 32 of the Central Rules shall not be charged from a person, if he is or has been serving in any army unit abroad or in the field area of the Defence Services of the Union whether employer on driving motor vehicles or otherwise: Provided that such a person shall be eligible for the aforesaid exemption if he makes an application for the grant or renewal of a licence within three months of his return from the service abroad or, as the case may be, from the field area. (2) Ex-Military drivers other than commissioned officers and junior commissioned officers shall be eligible for grant of a driving licence without payment of any fee specified for that purpose under rule 32 of the Central Rules.

## **18. Driver's Badge**

. [Section 28(2)(g)] - (1) The driver of a stage carriage or a contract carriage shall display his left breast a metal badge in the form specified in the First Schedule to these rules issued to him by the concerned licensing authority and inscribed with the name of the authority by which an authorisation to drive a stage carriage or a contract carriage has been granted and the word, "DRIVER" together with an identification number : Provided that a driver shall not hold more than one badge. (2) The fee for the issue of a badge under sub-rule (1) shall be rupees ten and if the badge is lost or destroyed, a duplicate badge shall be issued by the authority by which it was issued on payment of rupees ten. (3) No driver shall lend or transfer the badge issued to him under sub-rule (1) to any other person and no driver shall wear a badge other than one issued to him by the licensing authority. (4) Any person finding a driver's badge shall, unless he returns the same to the holder, forthwith surrender it to the licensing authority by which it was issued or to a police officer of the nearest police station. (5) If at any time the authorisation on a driver's licence entitling him to drive a stage carriage or a contract carriage is suspended or revoked by any licensing authority or by any Court or ceases to be valid by the efflux of time the driver shall surrender the badge to the authority by which it was issued within seven days from the date of suspension or revocation or from the date of expiry of the licence, as the case may be,

## **19. Duties, functions and conduct of drivers of transport vehicles**

. [Section 28(2)(h)] - The driver of a transfer vehicle shall, - (i) be responsible for the due observance of the provisions of the Act and of these rules and conditions of the permit relating to vehicle; (ii) not smoke or on a vehicle during a journey or when it has passengers on board; (iii) behave in a civil and

orderly manner to passengers and intending passengers;(iv)be cleanly dressed in such manner as the State Transport Authority may specify;(v)maintain the vehicle in a clean and sanitary condition;(vi)not interfere with persons mounting or preparing to mount upon any other vehicle;(vii)not allow any person to be carried in any public service vehicle in excess of the seating capacity specified in the certificate of registration of the vehicle and any additional number permitted under the terms of the permit to be carried standing in the vehicle;(viii)not wilfully deceive or refuse to inform any passenger or intending passenger as to the destination or route of the vehicle;(ix)not, save for good and sufficient reasons, refuse to carry any person tendering the legal fare;(x)take all reasonable precautions to ensure that passengers are not endangered or unduly inconvenienced by the presence of the goods where goods are carried on the vehicle in addition to passengers;(xi)not, save for good and sufficient reasons, require any person who has paid the legal fare to alight from the vehicle before the conclusion of the journey;(xii)not loiter or unduly delay upon any journey but shall proceed to his destination as near as may be in accordance with the time-table pertaining to the vehicle; or where there is no such time-table with all reasonable despatch;(xiii)arrange to convey the passengers to their destination in some other similar vehicle in the event of a stage carriage being unable to proceed to its destination on account of mechanical breakdown or other cause beyond his control;(xiv)not, in the case of a stage carriage cause or allow anything to be placed in the vehicle in such a manner as to obstruct the entry or exit of passengers;(xv)take due care for the safe carriage of luggage belonging to the passengers;(xvi)take all reasonable precautions to ensure the safety of passengers in or on or entering or alighting from the vehicle;(xvii)not, when the vehicle is in motion, distract his attention without reasonable cause or, speak to any person unless it is absolutely necessary so to do;(xviii)take all reasonable precautions to ensure that all means provided for indicating the route fares and destination of the vehicle are clearly and correctly displayed in or on the vehicle;(xix)follow the signalling devices provided for starting and stopping the vehicle;(xx)not argue with passengers and must give his name and badge number when asked to do so;(xxi)not come on duty under the influence of any intoxicant; and(xxii)not allow any passenger or some other person such as vendor, hawker or seller, to beg, or offer any article for sale in or on the vehicle.

## **20. Driver not to allow to travel certain persons**

. [Section 28(2)(h)] - (1) No driver shall cause or allow to enter into or to be placed or carried in the vehicle any person whom he knows or has reason to believe to have been suffering from any infectious or contagious disease or the corpse of any person whom he knows or has reason to believe to have been suffering from any such disease.(2)Notwithstanding the provisions of sub-rule (1), the driver may upon a request in writing, by a registered medical practitioner allow a person suffering from an infectious or contagious disease to be carried in a transport vehicle:Provided that no other person save a person or persons in attendance on the sick person shall be carried in the transport vehicle at the same time.(3)When a person suffering from an infectious or contagious disease or the corpse of any such person has been carried in a transport vehicle, the driver of the vehicle shall be responsible to report that fact to a Government Medical Officer of the area concerned and to the owner of the vehicle, and neither the owner nor the driver shall cause or allow any person to use the vehicle until the driver and the vehicle have been disinfected in such manner as the medical officer may specify and a certificate to that effect that been obtained from the medical officer.

## **21. State Register of Driving Licences**

. [Section 28(2)(j)] - (1) The State Register of Driving Licences shall be maintained in duplicate in the office of the State Transport Commissioner in Form 10 appended to the Central Rules.(2)The State Register of Driving Licences shall also be maintained in triplicate in the office of each of the licensing authorities in the Form referred to in sub-rule (1) and a copy of each page of it, in duplicate, shall be forwarded to the State Transport Commissioner every month. Each entry on the said Register shall be attested by the licensing authority or by a person so authorised to sign by the State Transport Commissioner.

## **Chapter III**

## **Licensing of Conductors of Stage Carriages**

### **22. Application for grant of Conductor's Licence**

. [Sections 30 and 38(2)(a)] - (1) An application for the grant or counter signatures of a Conductor's licence shall be made in Form "L Con. A" to the licensing authority of the district where the applicant resides or carries on business and shall be accompanied by, -(i)two clear copies of recent photographs of the applicant;(ii)a cash receipt or a treasury challan in token of payment of fee; and(iii)a medical certificate of fitness from a registered medical practioner authorised by the State Transport Commissioner on the recommendations of the Chief Medical Officer of the district concerned for this purpose alongwith a certificate issued by the St. John's Ambulance or any of its units in the State in Form FAB.(2)In the case of an application for grant of a conductor's licence, if the licensing authority has reason to believe that the applicant is physically unfit to perform the duties of a conductor, it may call upon him to furnish a third copy of his clear and recent photograph in addition to the photographs already furnished under sub-rule (1) and to produce another medical certificate of fitness in Form 'MC Con' from a Medical Board appointed by the State Transport Commissioner on the recommendations of the Chief Medical Officer of the district concerned for this purpose and the photograph so furnished should be firmly affixed with the application duly signed and sealed by the registered medical practitioner.(3)No person shall be eligible to make application under sub-rule (1) for the grant of Conductor's Licence, unless he, -(i)[Section 38(2)(c)] is a Matriculate with Punjabi as one of the subjects;(ii)possess knowledge of the provisions of the Act and the rules made thereunder;(iii)is conversant with the duties and functions of a Conductor;(iv)is of a sound physique; and(v)gives satisfactory proof of his good character.(4)If the application for the grant of a conductor's licence is found to be in order by the licensing authority and the requirements of the provisions of Chapter II of the Act are met with, it may grant a conductor's licence in Form "L Con" which shall be valid for a period of three years from the date of issue and shall be effective throughout the State.

### **23. Countersignatures of conductor's licence**

. [Section 38(2)(j)] - A conductor's licence issued by a licensing authority having jurisdiction outside the State shall not be effective in the State, unless it is countersigned under the authority of a

licensing authority having jurisdiction in the State in the manner as is applicable for removal of a conductor's licence.

## **24. Renewal of conductor's licence**

. [Sections 30 and 38(2)(e)] - (1) An application for renewal of a conductor's licence shall be made to the licensing authority in Form L.Con. R.A. thirty days before the expiry of the licence and shall be accompanied by a cash receipt or treasury challan in token of payment of fee for renewal of the licence.(2)If the licensing finds the application for renewal of a conductor's licence in order, it may renew the same by making an entry to that effect in the licence and renewal shall be valid for a period of three years from the date of the expiry of the licence :Provided that if the authority renewing the licence is not the authority, which issued the licence, the authority renewing the licence shall intimate the fact of renewal to the authority which issued the licence.

## **25. Liability for producing Medical Certificate**

. [Section 31(2)(b)] - A person who has been authorised to act as a conductor of the stage carriages before the commencement of the Act, shall, within a period of twelve months from the date of such commencement, produce a medical certificate from the authority specified under rule 22 failing which he shall be disqualified under section 31 to act as a conductor.

## **26. Grant of duplicate conductor's licence**

. [Section 38(2)(f)] - If at any time a conductor's licence is lost or destroyed or mutilated or the photograph affixed thereto ceases, in the opinion of the licensing authority, to be of reasonable likeness of the holder the licensing authority shall proceed in such case in accordance with the provisions contained in rule 10 or 11, as the case may be.

## **27. Appellate authority**

. [Sections 33, 34 and 38(2)(e)] - The appellate authority for the purpose of sub-section (2) of Section 3 and sub-section (4) of section 34 shall be the State Transport Commissioner.

## **28. Conduct and hearing of appeals**

. [Section 38(2)(a)] - (1) An appeal under sub-section (2) of section 33 or sub-section (4) of section 34 shall be preferred in duplicate in the form of a memorandum, one copy of which shall bear a cash receipt of rupees twenty setting forth concisely the grounds of objections to the order of the licensing authority and shall be accompanied by a certified copy of the order appealed against.(2)When an appeal is preferred, the appellate authority shall issue a notice to the licensing authority against whose order the appeal is preferred and cause it to send the relevant record.(3)The appellate authority may, after giving an opportunity to the parties to be heard and after such further enquiry, if any, as it may deem necessary confirm, vary or set aside the order against which the

appeal is preferred and shall make an order accordingly.(4)Any person preferring an appeal under sub-rule (1) shall be entitled to obtain a copy of any document filed with the licensing authority in connection with the order appealed against on payment of fee at the rate of rupees two per page.(5)Any person preferring an appeal shall be entitled to inspect the file of the appellate authority by making an application bearing a cash receipt or a treasury challan of,-(a)in respect of an urgent inspection, - rupees ten; and(b)in respect of an ordinary inspection, - rupees five.(6)A copy of the order made by the appellate authority in appeal may be obtained on payment of a fee at the rate of rupees two per page.

## **29. Conductor's badge**

. [Section 38(2)(h)] - (1) The conductor of a stage carriage shall display on his left breast a metal badge in the form specified in the First Schedule to these rules issued by the licensing authority and inscribed with the name of the licensing authority by whom the conductor's licence is granted and the word "Conductor" together with the identification number.(2)A conductor shall not hold more than one badge issued by a licensing authority in the State.(3)The fee for the issue of a conductor's badge shall be rupees five and if the badge is lost or destroyed, a duplicate badge shall be issued by the licensing authority which issued it on payment of rupees ten.(4)If at any time a conductor is disqualified for holding conductor's licence or his licence is revoked by the licensing authority or by any court or if it ceases to be valid by the efflux of time, the conductor shall within seven days from such disqualification, revocation or efflux, as the case may be, surrender the badge to the authority by which it was issued.

## **30. Badge not to be transferred**

. [Section 38(2)(h)] - (1) No conductor shall lend or transfer his badge to any other person and no conductor shall wear a badge other than one issued to him by the licensing authority.(2)Any person finding a conductor's badge shall, unless he returns the same to the holder, forthwith surrender it to the licensing authority by which it was issued or to a police officer.

## **31. Driver performing the duties of conductor**

. [Section 38(2)(b)] - Any driver of a stage carriage may perform the duty of a conductor of a stage carriage temporarily for a period not exceeding ten days without getting a conductor's licence when he is so authorised with the prior approval of the Regional Transport Authority concerned, by any offer not below the rank of a Traffic Manager in the case of a State Transport Undertaking and by a Director or Managing Partner in the case of a transport company or a transport firm or a transport co-operative society:Provided that such driver should be able to perform the first aid duties and should possess educational qualifications as specified in sub-rule (3) of rule 22 for obtaining conductor's licence.

## 32. Duties, functions and conduct of a conductor

. [Section 38(2)(c) and (h)] - The conductor of a stage carriage shall, - (i) charge fares specified for the journeys or stages of the journeys and shall issue tickets to all the passengers and shall ensure that no one travels without a valid ticket; (ii) not smoke in or on a vehicle during a journey or when it has passengers on board; (iii) behave in a civil and orderly manner to passengers and intending passengers; (iv) be cleanly dressed in such manner as the State Transport Authority may specify; (v) maintain the vehicle in a clean and sanitary condition; (vi) not interfere with persons mounting or preparing to mount upon any other vehicle; (vii) not allow any person to be carried in public service vehicle in excess of the seating capacity specified in the certificate of registration of the vehicle and any additional number permitted under the terms of the permit to be carried standing in the vehicle; (viii) not wilfully deceive or refuse to inform any passenger or intending passengers as to the destination or route of the vehicle or as to the fare for any journey; (ix) not, save for good and sufficient reason, refuse to carry any person tendering the legal fare; (x) take all reasonable precaution to ensure that passengers are not endangered or unduly inconvenienced by the presence of the goods where goods are carried on the vehicle in addition to the passengers; (xi) not, save for good and sufficient reasons, require any person who has paid the legal fare to alight from the vehicle before the conclusion of the journey; (xii) not loiter or unduly delay upon any journey but shall proceed to his destination as near as may be in accordance with the time table pertaining to the vehicle or where there is no such time table, with all reasonable despatch; (xiii) in the event of a stage carriage being unable to proceed to its destination on account of mechanical breakdown or other cause beyond his control or the driver, arrange to convey the passengers to their destination in some other similar vehicle, or if unable to arrange within a period of one hour after the failure of the vehicle, shall on demand refund to each passenger a proper proportion of the fare relating to the completion of the journey for which the passenger had paid the fare; (xiv) not in the case of a stage carriage cause or allow anything to be placed in the vehicle in such a manner as to obstruct the entry or exit of passengers; (xv) Pay the fee fixed under sub-rule (1) (d) 4 of rule 200, when using a stand and comply with relevant condition subject to which the place is authorised as a stand; (xvi) take due care for the safe carriage of luggage belonging to the passengers; (xvii) take all reasonable precautions to ensure the safety of passengers in or on or entering or alighting from the vehicle; (xviii) not, when the vehicle is in motion, distract his attention without reasonable cause or speak to any person unless it is absolutely necessary so to do; (xix) take all reasonable precautions to ensure that all means provided for indicating the route fares and destination of the vehicle are clearly and correctly displayed in or on the vehicle; (xx) follow the signalling devices provided for starting and stopping the vehicle and in no circumstances must the vehicle be started by shouting to the driver stamping the feet, tapping on the partition or by other unauthorised methods of signalling; (xxi) not argue with passengers and must give his name and badge number when asked to do so; (xxii) not come on duty under the influence of any intoxicant; (xxiii) assist the passengers loading and unloading their luggage on way side halts; and (xxiv) not allow any passenger or some other person such as vendor, hawker or seller to beg, sell or offer any article for sale in or on the vehicle;

## **Chapter IV**

### **Registration of Motor Vehicles**

#### **33. Registering authority**

. [Section 65(2)(b)] - (1) The licensing authority as specified under Rule 3 shall be the registering authority for the purpose of registration of the vehicles within his jurisdiction :Provided that for the purposes of registration of a tourist vehicle, the registering authority shall be the Secretary, State Transport Authority, Punjab, whose area of jurisdiction shall be whole of the State.[(1-A) For the purpose of registration of non-transport vehicles on first sale under sub-section (3), (5) and (6) of Section 41 of the Motor Vehicles Act, 1988 from a dealer holding valid trade certificate, the Government may empower conditions as may be specified from time to time by it any such dealer who holds a degree from any recognised university.] [Inserted vide Punjab Government Notification No. G.S.R. 13/C.A.59/88/Ss. 65, 111 and 212/Amd. (7)/2000, dated 31.1.2000.](2)On production of vehicle for registration as provided under section 44, the registering authority or an authority authorised by the Government in this behalf, shall satisfy itself that the particulars contained in the application are true and that the vehicle complies with the requirements of the Act and the rules framed thereunder.

#### **34. Appellate Authority**

. [Sections 57 and 65(2)(b) and (p)] - The State Transport Commissioner shall be the appellate authority for the purpose of section 57.

#### **35. Conduct and hearing of appeals**

. [Section 65(2)(a)] - (1) An appeal under section 57 shall be preferred in duplicate in the form of a memorandum one copy of which shall bear cash receipt or treasury challan of rupees twenty setting forth concisely the grounds of objection to the order of the registering authority or the Board of Inspection, as the case may be and shall be accompanied by a certified copy of the order appealed against.(2)When an appeal is preferred, a notice shall be issued to the registering authority and in the case of an appeal against the order of the Board of Inspection to the Motor Vehicles Inspector, in such form as the appellate authority may direct and cause the relevant records to be sent.(3)The appellate authority may, after giving an opportunity to the party to be heard and after such further enquiry, if any, as it may deem necessary, confirm, vary, or set aside the order of registering authority or the Board of Inspection, as the case may be, and shall make an order accordingly.(4)Any person preferring an appeal under sub-rule (1) shall be entitled to obtain a copy of any document filed with the registering authority or the Board of Inspection in connection with the order appealed against and a copy of the order of the registering authority or the Board of Inspection on payment of a fee at the rate of rupees two per page.(5)Any person preferring an appeal under sub-rule (1) shall be entitled to inspect the file of the appellate authority by making an application bearing a cash receipt or a treasury challan of, -(a)in respect of an urgent inspection - [rupees twenty] [Substituted vide Punjab Government Notification No. GSR84/CA/59/88/Ss.28,

38, 65, 93/Amd.(1)94.](b)in respect of an ordinary inspection - rupees five;(6)A copy of the order made by the Appellate authority in appeal may be obtained on payment of a fee at the rate of [rupees five] [ Substituted vide Punjab Government Notification No. GSR84/CA/59/88/Ss.28, 38, 65, 93/Amd.(1)94.] per page.

### **36. Reference to expert**

. [Section 65(2)(a)] - (1) In the course of an appeal against a refusal to issue a certificate of fitness under section 56, the applicant may demand at his own cost that the opinion of an expert accepted by himself and approved by the appellate authority may be taken.(2)If the appellate authority accepts the demand for reference to an expert, it shall frame issues and refer the same to him for his opinion.(3)Where reference under sub-rule (2) is made to an expert, his opinion shall be accepted as final.

### **37. Manner for exhibiting the particulars of transport vehicles**

. [Sections 58(2) and 65(2)(g).] - (1) Save in the case of a motor car, the particulars set forth in Form PPTV, shall be exhibited in a fixed frame inside the transport vehicle in the driver's cabin, in English letters and numerals.(2)The full name of the transport company, transport society, Transport Firm owning the vehicle and registration mark as set forth in its registration certificate shall be exhibited on both sides of every transport vehicle in Punjabi language as well as in Hindi language or English block letters measuring 100 millimetres in height and 20 millimetres in thickness:Provided that with the approval of the Regional Transport Authority concerned abbreviations of names may be used.

### **38. Board of Inspection for issue or renewal of certificate of fitness**

. [Sections 56 and 65(2)(a)] - (1) The functions to grant or renew a certificate of fitness of a transport vehicle other than tourist vehicles and all other functions which are to be discharged by a prescribed authority under section 56 shall be performed by a Board of Inspection within their jurisdiction which may be laid down by the State Transport Commissioner.(2)A Board of Inspection shall consist of, -(a)the District Transport Officer concerned; or any other Officer appointed by the State Transport Commissioner; and(b)a Motor Vehicles Inspector or any other officer appointed by the State Transport Commissioner:Provided that in the case of a tourist vehicle, the Secretary, State Transport Authority shall be the member of the Board of Inspection in place of the District Transport Officer.(3)In the event of a difference of opinion between the members of a Board of Inspection regarding the fitness of a vehicle, the decision of the Board of Inspection shall be deemed to be that the vehicle is not fit and an order shall be made in the name of the Board of Inspection refusing to grant or renew the certificate of fitness or cancelling the certificate of fitness.

### **39. Application for certificate of fitness**

. [Sections 65(2)(b)] - (1) For the grant or renewal of a certificate of fitness, a transport vehicle shall be presented to the Board of Inspection or to an authorised testing station in whose functional area

the vehicle is kept or whose functional area includes the major portion of the route or area to which the permit of the vehicle extends: Provided that the Board of Inspection or an authorised testing station shall keep in view, in addition to other matters, the design of the vehicle to be of the type approved by the State Transport Authority for grant of a certificate of fitness. (2) If owing the mechanical break-down or other cause a transport vehicle is, at the time when the certificate expires, outside the functional area of the Board of Inspection or an authorised testing station by which the certificate is to be renewed, any other Board of Inspection or an authorised testing station may, without prejudice to any penalty to which the owner may have become liable, if the vehicle is in the opinion of the Board of Inspection or authorised testing station fit for use by endorsement in Form "C.F. Sub" and subject to such conditions as the Board of Inspection or an authorised testing station may, specify may authorise its continued use for such a time as may reasonably be necessary for the vehicle to return to the area of the Board of Inspection or an authorised testing station by which the certificate should be renewed. The vehicle may thereupon be driven to such area in accordance with such endorsement, but shall not be used after return to that area until the certificate has been renewed.

**39A. [ Penalty for Vehicle remained without Fitness.] [Substituted vide Punjab Government Notification No. G.S.R. 103/C.A. 59/88/Ss. 65, 96 and 177/Amd. (16)/2001 dated 29.10.2001.]**

- The owner of a transport vehicle shall, if he fails to present his vehicle before the Board of Inspection of an authorised testing station, on or before the date of expiry of certificate of fitness or within such period so specified by Board of Inspection for its renewal, be liable to pay the following composition fee/penalties in addition to fee specified for renewal of certificate of fitness under rule 81 of the Central rules :-

| Period of Delay                       | Amount of Penalty                                                    |
|---------------------------------------|----------------------------------------------------------------------|
| (a) For each day upto 15 days         | Rupees ten per day subject to maximum of Rupees Fifty.               |
| (b) More than 15 days upto 3 months   | Rupees ten per day subject to maximum of Rupees five Hundred         |
| (c) More than 3 months up to 6 months | Rupees ten per day subject to maximum of Rupees One Thousand         |
| (d) More than 6 months up to one year | Rupees ten per day subject to maximum of Rupees Two Thousand         |
| (e) More than one year                | Rupees Two thousand per year and Rupees ten for every additional day |

Provided that the Government may by general or special order and subject to such condition as may be specified, exempt, any person or class of persons from payment of all or portion of penalty payable.

#### **40. Procedure of Board of Inspection or an authorised testing station**

. [Section 65(2)(b)] - (1) A Board of Inspection or an authorised testing station before which a vehicle is produced for the issue or renewal of a certificate of fitness may, - (a) issue a certificate of fitness or renew the same in respect of the vehicle; (b) defer decision regarding the issue or renewal of a certificate of fitness pending the rectification of certain defects; or (c) refuse to issue a certificate or renew the certificate. Where the course specified in clause (b) is followed, a Board of Inspection or an authorised testing station shall supply the owner of the vehicle or his agent with a list of the defects requiring correction in Form C.F.X., and pending the carrying out of the repair shall suspend and impound any certificate of fitness previously in force in respect of the vehicle. In completing Form C.F.X., the Board of Inspection or an authorised testing station shall note the conditions under which it shall be permissible for the vehicle to be used pending the grant or renewal of the certificate. These conditions shall in no case permit the use of the vehicle for the conveyance of passengers for hire or reward or for the carriage of goods other than goods carried in connection with the repairing of the vehicle. (2) If a Board of Inspection or an authorised testing station defers its decision under clause (b) of sub-rule (1) in case of a renewal of a certificate of fitness and supplies the owner of the vehicle or his agent with a list of defects in Form C.F.X., and if thereafter the vehicle is not produced for further examination within a period of two months or within such period as may have been specified by the Board of Inspection or an authorised testing station in Form C.F.X., the certificate of fitness shall be deemed to be cancelled with effect from the date on which its duration expires. (3) In issuing or renewing a certificate of fitness, a Board of Inspection or an authorised testing station shall endorse thereon the period for which the certificate of fitness shall remain effective in accordance with the provisions contained in rule 62 of the Central Rules.

#### **41. Report to be made when a certificate of fitness is cancelled or renewal is refused**

. [Section 65(2)(b)] - A Board of Inspection or an authorised testing station shall intimate to the Regional Transport Authority by whom the permit of the vehicle was issued at the first instance and also to the registering authority of the District where the vehicle stands registered, the fact of cancellation of a certificate of fitness or refusal to renew the certificate of fitness, as the case may be and in both the cases referred to above, a Board of Inspection or an authorised testing station shall impound the certificate of fitness and forward it to the Registering Authority concerned.

#### **42. Temporary registration of motor vehicles**

. [Section 43 and Section 65(2)(b)] - (1) When for any reason it is impracticable for the purchaser of a new motor vehicle to obtain a registration certificate in the ordinary course, owing to a temporary closure of the office of the registering authority or for other reasons, or where the purchaser of a new motor vehicle intends to export it at once beyond the limits of the State or to take it immediately to the District where he has his permanent residence or place of business, a temporary certificate of registration mark may be issued by the registering authority, firm of vehicles, dealer or manufacturer of vehicles appointed by the Government in this behalf subject to the provisions of

sub-rule (2) and the temporary certificate and registration mark shall for the time being serve all the purposes of a regular certificate of registration and registration mark :Provided that the names of persons or the firm as aforesaid who shall be competent to sign the temporary certificate or registration shall be specified by the District Transport Officer on the recommendation of the State Transport Commissioner.(2)A temporary certificate of registration or a temporary registration mark shall not be issued except in respect of a vehicle which has not previously been registered under the Act.(3)Every application for a temporary certificate of registration shall be in writing and shall indicate the District or place where the vehicle is intended to be produced for permanent registration and shall be supported by a certificate from the person or firm from whom the vehicle has been purchased indicating the date of purchase of the vehicle.(4)On receipt of application in terms of the provisions of sub-rule (3) the registering authority, firm of vehicles, dealer or manufacturer authorised under sub-rule (1) may issue a temporary certificate of registration in "Form CR Tem. Foil A".(5)If the place in which it is intended permanently to register the vehicle is in India "foil B" of Form CR Tem. shall be despatched immediately to the registering authority of the District in which it is to be registered and in other cases the said foil B shall be dealt with according to such directions as may be issued by the Government from time to time. The counterfoil together with the application and its accompanying certificate shall be kept on record by the firm issuing the permit and shall be made available for the inspection of the registering authority of the District at the end of every calendar month or at such other intervals as the registering authority may direct. The counterfoils with the application and certificate, shall unless they are taken by the registering authority into his own charge, be preserved by the said firm for a period of not less than twelve months from the date of issue.(6)In the case of vehicles intended to be permanently registered in the State, the registering authority receiving foil B under sub-rule (5) shall forthwith send an acknowledgement to the firm which issued it and that firm shall attach the acknowledgement to the counterfoil.(7)A firm issuing a temporary certificate of registration shall at the same time assign to the vehicle a mark to be displayed thereon in the matter specified in rule 51 of the Central Rules, the letters and figures composing the marks being in red on a yellow ground.(8)The fee for temporary registration under this rule shall be half of the registration fee as specified in rule 81 of the Central Rules.(9)the enable the firm empowered under sub-rule (1) to fulfil the requirements of sub-rule (7), the registering authority of the District shall earmark a block of registration mark out of those assigned to the District for the purpose.(10)Where a motor vehicle temporary registered is a chasis to which a body has not been attached and the same is detained in a workshop beyond the period of one month specified in sub-section (2) of section 43, in such a case the registering authority may allow extension in temporary registration up to a period of twelve months on payment of fee at the rate of half of the specified for temporary registration under sub-rule 8:Provided that for extension beyond the period of three months a fee at the rate of rupees fifty for every month shall be charged.

#### **42A. [ Fee for assignment of registration mark of choice.] [Added vide Punjab Government Notification dated 26.11.1997.]**

- The Registering Authority shall assign a registration mark to the owner of a motor vehicle of his choice from amongst the registration marks, as specified in the Sixth Schedule, to these rules on payment of such additional fee, as may be fixed by the Government from time to time:Provided that if the owner of a motor vehicle holding any of the numbers, specified in the Sixth Schedule, from any

previous series, wants to retain that number for his new motor vehicle, he shall be charged half of the fee, fixed for that number :Provided further that the Registering Authority may assign unutilised specified registration marks to motor vehicles owned by the State Government without charging any additional fee.[Provided further that if an owner of a motor vehicle holding any of the registration mark, from any fancy registration mark of choice from any previous registration series, wants to retain that registration mark, for his new motor vehicle, he shall not be charged any additional fee.] [Inserted by G.S.R. No. 42/C.A.59/1988/S.212/Amd.(24)/2014, dated 5.8.2014]

#### **43. Loss or destruction of certificate of registration of a vehicle other than transport vehicle**

. [Section 65(2)(d)] - (1) If at any time the certificate of registration of a vehicle other than a transport vehicle is lost or destroyed the owner shall forthwith intimate the facts, in writing, to the registering authority by whom the certificate of registration was issued or by whom the registration marks of the vehicle was assigned under section 47 and shall apply in Form 26 of the Central Rules to the said registering authority for the issue of a duplicate certificate of registration and certificate of fitness.(2)On receipt of an application under sub-rule (1) together with fee as specified in rule 81 of the Central Rules, the registering authority may, after making such enquiries as may appear necessary, issue a duplicate certificate of registration in Form 23 of the Central rules, stamped 'Duplicate' in red ink.

#### **44. Loss or destruction of certificate of registration and certificate of fitness of a transport vehicle**

. [Section 65(2)(d)] - (1) If at any time the certificate of registration or the certificate of fitness of a transport vehicle is lost or destroyed, the owner shall forth-with intimate the fact, in writing, to the registering authority by whom the certificate of registration was issued or by whom the registration marks of the vehicle was assigned under Section 47 and shall apply in Form 26 of the Central Rules to the said registering authority for the issue of duplicate certificate of registration and certificate of fitness.(2)On receipt of an application under sub-rule (1) together with fee as specified in rule 81 of the Central Rules, the registering authority may, after making such enquiries as may appear necessary, issue a duplicate certificate of registration in Form 23 of the Central Rules, stamped 'Duplicate' in red ink.

#### **45. Procedure when a lost certificate is subsequently found**

. [Section 65(2)(d)] - (1) When a duplicate certificate of fitness or certificate of registration has been issued upon representation of the holder thereof that the original has been lost and if the original is afterwards found, the original certificate of fitness or certificate of registration shall be delivered forthwith to the registering authority.(2)Any person other than holder thereof finding a certificate of fitness or certificate of registration shall deliver it to the holder of the nearest Police Station.

#### **46. Temporary receipt for certificate of registration or certificate of fitness taken into possession by a competent authority**

. [Section 65(2)(d)] - (1) When the holder of certificate of registration and a certificate of fitness of a transport vehicle has submitted them to a registering authority, Board of Inspection, a court, a police officer or to any other person authorised by the Government under section 206 or for any purpose under the Act or these rules and neither the certificate of registration nor the certificate of fitness has been suspended or cancelled, the authorities or the person as aforesaid shall furnish him with a receipt for the certificate of registration in Form R Temp. and during such time as the receipt shall be specified to remain in force it may be produced in place of the certificate of registration or the certificate of fitness under sub-section (1) of Section 130.(2)Any authority or the person granting a receipt under sub-rule (1) may at his discretion extend the period thereof by order endorsed thereon.(3)No fee shall be payable in respect of a receipt given under this rule.

#### **47. Fee for late registration, assignment of registration mark and transfer of ownership**

. [Section 65(2)(k)] - The owner of a motor vehicle shall, if he fails to make an application under sub-section (13) of section 41, sub-section (1) of section 47 or sub-section (5) of section 50 within the period specified in rule 54 of the Central rules, be liable to pay the following amount in addition to the fee specified for registration, assignment of registration mark or transfer of ownership of vehicles under rule 81 of the Central Rules if the same has not already been paid namely :-

|                                                                      | For vehicles other than transport vehicle<br>(in Rupees) | For transport vehicle<br>(in Rupees) |
|----------------------------------------------------------------------|----------------------------------------------------------|--------------------------------------|
| (i) for delay not exceeding three months                             | Ten                                                      | Twenty                               |
| (ii) for delay exceeding three months but not exceeding six months   | Twenty                                                   | Forty                                |
| (iii) for delay exceeding six months but not exceeding twelve months | Thirty                                                   | Sixty-five                           |
| (iv) for delay exceeding one year but not exceeding two years        | Forty                                                    | Eighty                               |
| (v) for delay exceeding two years                                    | Fifty                                                    | One hundred.                         |

#### **48. Intimation of transfer of ownership**

. [Sections 50 and 65(2)(i)] - (1) An intimation of transfer of ownership of a motor vehicle shall be made in Form T.O.(2)A registering authority making any entry of transfer of ownership, if it is not the original registering authority shall communicate the transfer of ownership to the original registering authority in Form CRTI.

## 49. Reassignment of registration marks

. [Sections 47, 51 and (65)(2)(b)] - The registering authority assigning a new registration mark to a motor vehicle shall intimate the fact to the owner and the other party, if any, of an agreement of hire-purchase specified in the note on the certificate of registration and shall apply in Form R.M.I. to the registering authority with whom the vehicle stands registered for transfer of the records of the vehicles.

## 50. Vehicle entering the State from outside

. [Sections 47 and 65(2)(p)] - When any motor vehicle which is not registered in the State has been kept therein for a period exceeding fourteen days, the owner or other person in-charge of the vehicle shall send intimation to the registering authority of the District in which the motor vehicle is at the time of making the report and shall intimate -(a)his name and permanent address and the address where the motor vehicle is kept for the time being;(b)the registration mark of the motor vehicle;(c)the make the description of the motor vehicle; and(d)in the case of a transport vehicle the name of the authority within the State by whom the permit has been issued or countersigned:Provided that in case of a transport vehicle covered by a permit having validity in the State, it shall be necessary to make a report under this rule only at the time of first entry in the State.

## 51. Delay in intimation of change in residence or place of business

. [Sections 49(4) and 65(2)(k)] - (1) If the owner of a motor vehicle fails to comply with the provisions of sub-section (1) of section 49 the registering authority may require him to pay the following amount namely :-

|                                                                    |                    |
|--------------------------------------------------------------------|--------------------|
| (a) for delay exceeding thirty days but not exceeding threemonths  | Rupees Ten         |
| (b) for delay exceeding three months but not exceeding sixmonths   | Rupees Twenty      |
| (c) for delay exceeding six months but not exceeding ninemonths    | Rupees Forty       |
| (d) for delay exceeding nine months but not exceeding twelvemonths | Rupees Sixty       |
| (e) for delay exceeding one year but not exceeding two years       | Rupees Eighty      |
| (f) for delay exceeding two years                                  | Rupees one Hundred |

## 52. Exemption of road rollers and the like

. [Section 65(2)(c)] - The provisions of Chapter IV of the Act and the rules of this Chapter shall not apply to the road rollers, graders and other vehicles designed and used solely for the construction, repair and cleaning roads and which are owned by the Government of Punjab.

## 53. Intimation to Financiers

. [Section 51(10)] - An intimation regarding any entry in the certificate of registration, as required under sub-sections (10) and (11) of section 51 of the Act shall be made to the financier in Form H.P.

Entry by the registering authority immediately on the date of such entry being made.

## **54. Information of stolen and recovered vehicles**

. [Sections 62 and 65(2)(n)] - The returns regarding vehicles which have been stolen and stolen vehicles which have been recovered of which the police are aware under section 62 shall be sent every month to the State Transport Commissioner in Form S.R.V.

## **55. State of Motor Vehicles**

. [Sections 63 and 65(2)(o)] - (1) In pursuance of section 63, the State Register of Motor Vehicles shall be maintained in the office of the State Transport Commissioner in Form 39 of the Central Rules.(2)The State Register of Motor Vehicles shall also be maintained in triplicate in the offices of each of the registering authorities in the Form referred to in sub-rule (1) and a copy of each page of it in duplicate shall be forwarded to the State Transport Commissioner every month. Each entry on the said register shall be attested by the registering authority or by a person so authorised to sign by the State Transport Commissioner.

## **Chapter V**

## **Control of Transport Vehicles**

## **56. Term of appointment of members of the State Transport Authority and Regional Transport Authority**

. [Section 96(2)(i)] - (1) Any official member of the State Transport Authority or a Regional Transport Authority shall continue as such till such time as the Government may otherwise order and a non- official member of the State Transport Authority or a Regional Transport Authority shall hold office for a period of two years from the date of his appointment and thereafter not more than two months, unless he is reappointed by the Government :Provided that the Government may at any time remove any non-official member:Provided further that when any non-official member dies or is removed or vacates office, his successor shall hold the appointment for the remainder of the period of office of the member whose place he takes and thereafter until a successor is appointed.(2)A non-official member of the State Transport Authority or a Regional Transport Authority shall be entitled to travelling allowance and halting allowance for attendance at meeting and for any journey(s) performed by him under the orders of the Chairman of the concerned authority in connection with the business of the authority at the rates admissible to Grade I officers of the Government of Punjab:Provided that, -(a)a non-official member, who has his residence at a place other than the headquarters of the authority, will draw halting allowance at full rate even for the day on which he may not have halted for full twenty-four hours at place at which the meeting of the authority is held; and(b)where a non-official member is a member of the Punjab Legislative Assembly, he shall be entitled to draw travelling allowance as is admissible to him under the Punjab Legislative Assembly (Allowance of Members) Act, 1942 and the rules framed thereunder.

## **57. Conduct of business by the State Transport Authority**

. [Section 90(2)(1)] - (1) The State Transport Authority shall meet at such times and at such places as its Chairman may appoint :Provided that the State Transport authority shall meet not less than once in each of the calender quarters January to March, April to June, July to September and October to December :Provided further that a clear ten days notice of each meeting shall be given.(2)Three members shall constitute a quorum, at a meeting:Provided that if a quorum is not present within half-an-hour after the time fixed for the meeting, the meeting shall be adjourned to such day not earlier than ten days and at such time and place, as the Chairman or in his absence a member acting as Chairman may appoint, and even if at such meeting a quorum is not present, within half-an-hour from the time appointed for the meeting, the members present shall form a quorum.(3)The Chairman, if unable to attend a meeting shall nominate a member to act as Chairman at the meeting and if he fails to nominate a member to act as Chairman, then the members present shall elect a member to act as Chairman at the meeting.(4)The Chairman or the member acting as Chairman shall have a second or casting vote.

## **58. Conduct of business by a Regional Transport Authority**

. [Section 92(2)(i)] - (1) Every Regional Transport Authority shall meet at such time and at such places as its Chairman may appoint :Provided that a Regional Transport Authority shall met not less than once in each month unless the State Transport Authority, otherwise directs :Provided further that a clear ten days' notice of each meeting shall be given.(2)Two members shall constitute a quorum at a meeting :Provided that if a quorum is not present within half-an-hour after the time fixed for the meeting, the meeting shall be adjourned to such day not earlier than ten days and at such time and place as the Chairman or in his absence a member nominated by him under sub-rule (3) to act as Chairman may appoint, and even if at such meeting a quorum is not present within half-an- hour from the time appointed for the meeting, the members present shall form a quorum.(3)The Chairman, if unable to attend a meeting, shall nominate a member to act as Chairman at the meeting and if he fails to nominate a member to act as Chairman, the members present shall elect a member to act as Chairman at the meeting.(4)The Chairman or the member acting as Chairman shall have a second or casting vote.

## **59. Provisions of rules 57 and 58 not to apply in certain cases**

. [Section 68] - The provisions contained in rules 57 and 58 shall not apply in case the State Transport Authority or a Regional Transport Authority is constituted consisting of only one member.

## **60. Procedure for conduct of business**

. [Section 96(2)(i)] - (1) Subject to the provisions of the Act and these rules, the State Transport Authority or a Regional Transport Authority shall have power to make bye-laws to regulate the conduct of its business and shall likewise have powers to amend such bye-laws and the business of

such authorities shall be conducted accordingly under the directions of the Chairman of the respective authority.(2)The Secretary concerned of the authority referred to in sub-rule (1) shall issue to each member of the State Transport Authority or a Regional Transport Authority, as the case may be, a copy of the agenda ten days before the actual date of the meeting at which it is to be considered.(3)Save in the case of the hearing of an objection to the grant of a stage carriage permit or of a goods carriage permit or a contract carriage permit, the State Transport Authority or a Regional Transport Authority, as the case may be; may decided any matter without holding a meeting by the majority of the votes of members recorded, in writing, and sent to the Secretary concerned (hereinafter this method to do referred as "procedure by circulation").(4)In the procedure by circulation, the Secretary of the authority concerned shall send to each member such particulars of the matters as may be reasonably necessary in order to enable the member to arrive at a decision and shall specify the date by which the votes of the members are to be received in the office of the concerned authority. Upon receipt of the votes of the members as aforesaid, the Secretary concerned shall lay the papers before the Chairman, who shall record the decision by endorsement on the application for grant of a permit according to the votes received and the vote or votes cast by him. The record of the votes cast shall be kept by the Secretary and shall not be available for inspection by any person save by a member at a regularly constituted meeting of the concerned authority. No decision shall be made upon procedure by circulation if before the date by which the votes of the members are required to reach the office of the authority not less than one-third of the members of the authority by notice in writing to the Secretary, demand that the matter be referred to a meeting of the authority.(5)The number of votes, excluding the Chairman's second or casting vote necessary for a decision to be taken upon procedure circulation shall not be less then the number necessary to constitute a quorum.(6)Nothing in this rule shall prevent the State Transport Authority or a Regional Transport Authority to decide upon procedure by circulation any matter which has been considered at a meeting.(7)When a matter is decided by votes of the members present at a meeting of the State Transport Authority or a Regional Transport Authority no person other than a member shall be entitled to be present and no record of the voting shall be kept save of the number of votes cast on either side:Provided that when any matter is decided by the exercise of second or casting vote of the Chairman the facts shall be recorded.(8)In case the non-official members of the State Transport Authority or a Regional Transport Authority differ on any matter en bloc from the official members, the matter shall be referred for decision to the Government in the case of State Transport Authority and to the State Transport Authority in the case of a Regional Transport Authority.

## **61. Conditions for issuing directions by the State Transport Authority**

. [Sections 68(4) and 96(2)(xxxiii)] - While issuing directions under sub- section (4) of Section 68 the State Transport Authority shall ensure that there is no undesirable and uneconomic competition amongst the holders of the permits and it shall also ensure compliance of the limits upon the number of permits and on the classes of permits for a specified route or area, if imposed.

## 62. Forms of applications

. [Section 96(2)(iv)] - Applications for grant of a permit of vehicle under section 70, section 73, section 76, section 77 or section 87 shall be made in the following Forms mentioned against each, namely:-

| Description of vehicle                          | Form         |
|-------------------------------------------------|--------------|
| (i) Stage carriage                              | .. PSt SA    |
| (ii) Contract Carriage                          | .. P.Co.P.A. |
| (iii) Private Services vehicles                 | .. PPSVA     |
| (iv) Goods carriage,-                           |              |
| (a) for or in connection with trade or business | .. PGCT. BA  |
| (b) for hire or reward                          | .. PGT. HRA  |
| (v) Temporary permit                            | .. PTem. A   |
| (vi) Special permit under Sections 88(8)        | .. S.P.      |

## 63. Particulars of application

. [Section 96(2)(iv)] - An application for grant of permit of a vehicle made under section 70, section 73, section 76, section 77 or section 87 shall be accompanied by the following documents, namely :- (i) cash receipt or treasury challan regarding payment of application fee; (ii) certificate of Scheduled Castes (in case the application is made for grant of a permit against reserved percentage); (iii) affidavit to the effect that the applicant held at any time any temporary or regular permit and if so the details of permits previously held alongwith number of vehicles in the fleet and arrangements for their housing and repair, individually or as a member of a Transport Society, a transport company or a transport firm; (iv) particulars of members of the transport society, transport company or transport firm alongwith certificate from the Registrar, Co-operative Societies, Punjab, the Registrar of Firms, Punjab, or the Registrar of Companies, as the case may be, alongwith parentage, present address and permanent address of such partners or members; (v) clearance Certificate regarding payment of taxes and no objection certificate from the financier for each vehicle; and (vi) discharge certificate in case of being an ex-servicemen.

## 64.

Omitted vide Notification dated 26.11.1997.

## 65. Forms of Permits

. [Sections 96(2)(iv) and 88] - (1) A permit under section 72, section 74, section 76, section 79, section 80 or section 87 shall be in the following forms, namely :-

| Description of permit                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Form          |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|
| (i) Stage carriage permit                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | .. P.St.S.    |
| *[(i-a) Reserve Stage Carriage permit                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | .. R.St.O.P.] |
| (ii) Contract carriage permit                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | .. P.Co.P.    |
| (iii) Private service vehicle permit                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | .. P.P.S.V.   |
| (iv) Goods carriage permit-                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |               |
| (a) for or in connection with trade or business                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | .. PGCT B     |
| (b) for hire or reward;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | .. PGC HR     |
| (v) Temporary permit                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | .. P.Tem.     |
| (vi) Special Permits                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | .. S.P.       |
| (vii) National Permit                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | .. P.N.P.G.C. |
| **[(viii) Toursit permit,                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | .. Pb.T.P.]   |
| *Inserted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd. (17)/2002, dated 25.9.2002.**Inserted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd. (17)/2002, dated 25.9.2002.(2)[ In the event of break-down or mechanical defect of any stage carriage for which a permit has been issued, the holder of such a permit, may, also be issued a permit in Form R.St. O.P. for such vehicles, as may be kept, as reserved for maintaining the operation and to provide for special occasions as envisaged under clause (xvii) of sub-section (2) of section 72 of the Act, subject to such conditions, as may be imposed by the Regional Transport Authority.] [Substituted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] |               |

## 66. Extension of validity of permits

. [Sections 86(i) and 96(2)(xi)] - (1) With the concurrence of the other Regional Transport Authority, concerned and subject to the control of the State Transport Authority a Regional Transport Authority which issues a permit other than a permit in Form PS may extend the effect of the permit to any other region or part of a region within the State and may attach conditions of the permit with respect to such other region and may vary the conditions of the permit in different regions, provided always that in the case of stage carriages the vehicles to which the permit refers are normally kept within the region of the Regional Transport Authority and subject to the other provisions of the rules.(2)An authority outside the State may with the concurrence of the State Transport Authority and subject to any conditions which may be mutually agreed upon by the two State Transport Authorities concerned, extend the effect of any permit to the whole of the State or to any route or area therein.(3)A permit granted by the Stated Transport Authority or a Regional Transport Authority of any of the signatory States of the agreement referred to in sub- section (4) of the section 88 in terms of such agreement shall be valid without countersignatures in the State on all National and State highways specified in that agreement [subject to payment of such tax as may be leviable by the Punjab State and a receipt to that effect in form RPF of these rules is carried alongwith the permit.] [Added vide Punjab Government Notification No. G.S.R. 75/C.A. 59/88/S. 96/Amd. (15)/2001, dated 25.5.2001.](4)The State Transport Authority or a Regional Transport Authority which issues a permit under sub-rule (1) or sub-rule (2), as the case may be, shall send a

copy of the permit to his counterpart of the other State or region in which the permit has to take effect.

## 67. Application fee for grant or renewal of permit

. [Section 96(2)(vii) and (viii)] - [(1) Every application for the grant or renewal of a stage carriage permit, contract carriage permit, goods carriage permit, special or temporary permit for fairs or booked parties on contract carriage or tourist permits or any other permit granted under the Act, shall be accompanied by a cash receipt or a treasury challan showing the deposit of following fees namely :-

| Description of Motor Vehicles                                                | Rate of Fees |
|------------------------------------------------------------------------------|--------------|
| 1                                                                            | 2            |
| A. (a) Buses                                                                 | Rs. 2,000    |
| (b) Mini Buses                                                               | Rs. 1,500    |
| (c) Tourist Maxi Cabs                                                        | Rs. 400      |
| (d) Motor Cabs (for operation in Punjab territory/TouristCabs/Goods Carriage | Rs. 200      |
| (e) Tempos or Auto Rickshaw                                                  | Rs. 100      |
| (f) Other Vehicles                                                           | Rs. 50       |
| B. (a) Fee for a Special Permit                                              | Rs. 100      |
| (b) Fee for temporary permits for two days                                   | Rs. 100      |
| C. Fee for a duplicate copy of a permit                                      | Rs. 100      |

Provided that no fees shall be payable for a permit issued to foreign Embassies in India in respect of transport vehicles owned by such Embassies :Provided further that no special or temporary permit shall be issued to a vehicle which is not covered by any regular permit :Provided further that a special or temporary permit shall also not be issued to any permit holder of a stage carriage who do not maintain reserve fleet required in accordance with the directions of the State Transport Authority or the Regional Transport Authority, as the case may be.] [Subrule 67(1) substituted by Notification No. G.S.R. 46/C.A. 59/88/S. 96/Amd.(18)/2004. dated 8th July 2004.](2)Where the permit of a vehicle is countersigned under section 88 for more than one region, fee at the rate shown in rule 68 as payable for counter- signatures shall be levied in respect of each additional region.(3)In case where a Regional Transport Authority acting under sub-rule (1) of rule 66 extends the effects of a permit to an area or route in another region, a supplementary fee shall be payable at the rate specified in rule 68 as if the permit had been countersigned for the second region :Provided that if the additional area to which the permit is so extended is a part and not the whole of a region, the Regional Transport Authority may, at its discretion and subject to any directions that may be issued by the State Transport Authority, declare that no supplementary fee shall be payable:Provided further that in the case of goods carriage permit or contract carriage permit, if the additional area to which the permit is so extended consists of two or more regions, the Regional Transport Authority may, at its discretion and subject to such directions, if any, as may be issued by the State Transport Authority, declare that only one countersignature fee shall be payable.(4)In cases where an authority of another State acting under sub-rule (2) of rule 66 extends the effect of a permit to a route or area

in the State, a supplementary fee shall be payable at the same rate as for countersignatures specified in rule 68.(5)[-] [Omitted vide Punjab Government Notification No.

G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.](6)Fees shall be paid in advocate to the Regional Transport Authority for the period for which the permit is issued.(7)[ A Regional Transport Authority, receiving a fee for a permit or for countersignatures of a permit, shall prepare a separate receipt in the Form R.P.F.] [Substituted vide Punjab Government Notification No.

G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.](8)The receipt for the last fee paid shall be attached to and displayed with [-] [The words 'Part B of' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] the permit.(9)The fee paid for a permit shall stand forfeited if the permit is subsequently cancelled.[-] [Rule 67-A, omitted vide Punjab Government Notification No. G.S.R. 103/C.A. 59/88/Ss. 65, 96 and 177/Amd.

(16)/2001 dated 29.10.2001.][68. Fees for issue and renewal of permits and for counter-signatures.

- The following fees shall be payable for the issue/renewal of permits and special/temporary/duplicate permits under the Act, namely] [Rule 68 partly substituted by Notification No. G.S.R. 46/C.A. 59/88/S. 96/Amd.(18)/2004. dated 8th july 2004.] :-

| Description of Motor Vehicles | Rate of Permit Fee (For each region per year)                                                                                          |           |
|-------------------------------|----------------------------------------------------------------------------------------------------------------------------------------|-----------|
| 1                             | 2                                                                                                                                      |           |
| -1                            | (a) Buses                                                                                                                              | Rs. 1,000 |
|                               | (b) Mini Buses                                                                                                                         | Rs. 750   |
|                               | (c) Goods Carriage (Heavy)                                                                                                             | Rs. 400   |
|                               | (d) Goods Carriage (Light and Medium)                                                                                                  | Rs. 80    |
|                               | (e) Tempo/Auto Rickshaws                                                                                                               | Rs. 300   |
|                               | (f) Tourist Maxi Cab/Motor Cabs (within Punjab)                                                                                        | Rs. 200   |
|                               | (g) Tourist Permit for Motor Cabs                                                                                                      | Rs. 100   |
|                               | (h) Special/Temporary permit up to one week and for each subsequent week or part thereof or for duplicate copy of a permit of any kind | Rs. 200   |

(2)Fee for the counter-signatures of permits for Transport Vehicles registered in other States entering Punjab shall be payable as under :-

| Description of Motor Vehicles | Rate of counter-signature fee per year |            |
|-------------------------------|----------------------------------------|------------|
|                               | For each region                        | For Punjab |
| (a) Buses                     | Rs. 1,000                              | —          |
| (b) Mini Buses                | Rs. 750.                               | —          |
| (c) Goods Carriage (Heavy)    | Rs. 400                                | —          |

|                                                  |         |              |
|--------------------------------------------------|---------|--------------|
| (d) Motor Cabs/Goods Carriage (Light and Medium) | —       | Rs. 500      |
| (e) Tempo/Auto Rickshaws                         | Rs. 300 | Rs. —        |
| (f) Maxi Cabs                                    | —       | Rs. 1,000    |
| (g) Private Service Vehicles                     | —       | Rs. 12,000". |

Provided that where a temporary permit is granted pending consideration of application for a permit under section 70, section 73, section 76 of section 77, Regional Transport Authority may, in its discretion and subject to such directions, if any, as may be issued by the State Transport Authority, at the time of granting a regular permit direct that a sum equal to a part or the whole of any fee paid, for the temporary permit shall be deducted from the fee payable for the regular permit. Provided that in the case of service of stage carriage the permit fee shall be charged on the basis of number of vehicles to be specified in the permit and accordingly Numbers of Parts B of the permit shall be issued. Explanation - The expression "regular permit" used in this rule and in rule 69 means a permit issued after consideration of an application in accordance with the provisions of the Act. (2) [ Fee for the counter-signatures of permits for transport vehicles registered in other State entering Punjab shall be payable as under] [Added vide Punjab Government Notification No. G.S.R. 90/C.A./59/88/S. 96/Amd. (13)/2000, dated 20.10.2000.] :-

| Description of Motor Vehicles                         | Rate of counter-signature for Punjab per year (in rupees) |
|-------------------------------------------------------|-----------------------------------------------------------|
| (a) Motor cabs                                        | Rs. 500.00                                                |
| (b) Maxi cabs.                                        | Rs. 1000.00                                               |
| (c) Private Service Vehicle                           | Rs. 12000.00                                              |
| (d) Goods Carriages (Light and Medium Goods Vehicles) | Rs. 500.00                                                |

**68A. [ Fee for late issue and late renewal of permit.] [Substituted vide Punjab Government Notification No. G.S.R. 103/C.A. 59/88/Ss. 65, 96 and 177/Amd. (16)/2001 dated 29.10.2001.]**

- In case where the vehicle remained without permit or counter-signatures or renewal of permit, the following amount of fee in addition to fee for permit or counter-signatures specified under rule 68 of the said rules, shall be charged :

| Period of Delay                       | Amount of Penalty                                            |
|---------------------------------------|--------------------------------------------------------------|
| (a) For each day up to 15 days        | Rupees ten per day subject to maximum of Rupees Fifty        |
| (b) More than 15 days up to 3 months  | Rupees ten per day subject to maximum of Rupees Five Hundred |
| (c) More than 3 months up to 6 months | Rupees ten per day subject to maximum of Rupees One Thousand |
| (d) More then 6 months to one year    | Rupees ten per day subject to maximum of Rupees two thousand |
| (e) More than one year                |                                                              |

Rupees two thousand per year and Rupees ten for every additional day

Provided that the Government may be general or special order and subject to such condition as may be specified, exempt any person or class of person from payment of all or portion of penalty payable.

## **69. Fees for temporary permits**

. - [ - ] [Omitted by Punjab Government Notification No. GSR84/CA/59/88/Ss. 28, 38, 65, 93/Amd.(1)94.]

## **70. Limitation of capacity of stage carriages and contract carriages**

. [Section 96(2)(xv)] - Save with the special permission of the Government, no permit or counter-signatures on the permit shall authorise the conveyance of more than seventy-two passengers, excluding the driver and the conductor in a stage carriage or contract carriage.

## **71. Conditions of carriage of goods in stage carriage and contract carriage**

. [Section 96(2)(xvi)] - (1) No goods shall be carried on the top deck of a double decked Stage carriage.(2)No goods liable to foul the interior of a vehicle or which makes it insanitary shall be carried at any time in any stage carriage or a contract carriage.(3)The dangerous or hazardous goods as specified in rule 137 of the Central rules or any other goods as may be specified by the Regional Transport Authority shall not be carried in a stage carriage or a contract carriage.(4)Subject to the provisions of the preceding sub-rules, the goods may be carried in a stage carriage or contract carriage at any time in accordance with the conditions specified in the permit; provided that the obligation of the holder to carry passengers in accordance with the terms of the permit is discharged.(5)When goods are carried in a stage carriage in addition to the passengers, the goods shall be of such a nature and shall be so packed and secured on the vehicle that no danger, inconvenience or discomfort is caused to any passenger. Such number of seats as may be specified in the permit shall be kept free and unimpeded for the use of passengers and the access to the entrance to and exit from the vehicle required under Chapter VIII shall be unobstructed.(6)The weight in kilograms of goods and personal luggage other than the luggage and effects allowed under sub-rule (1) of rule 72 carried in a stage carriage or contract carriage shall not exceed the maximum number of passengers for which the vehicle stands registered minus the number of passengers carried or number of passengers for whom seats are kept free and unimpeded by goods, whichever is greater multiplied by one hundred and sixty :Provided that in applying the provisions of the sub-rule to a double decked vehicle, account shall be taken of the number of passengers carried in the lower deck and the number of seats in the lower deck only.

## **72. Carriage of personal luggage in stage or contract carriage**

. [Sections 96(2)(xvi), 72(2)(xxiv) & 96(2)(xxxiii)] - (1) In the case of a permit for a stage carriage, it shall be a condition that the luggage and personal effects of each passenger shall be carried free of

charges subject to the limits given below :-(A)a stage carriage operating on routes other than route operating in urban areas locally -(a)30 Kilograms for each passenger occupying a seat in a stage carriage registered as Deluxe or Air-Conditioned;(b)15 Kilograms for each passenger occupying a seat in a stage carriage other than referred to in clause (a) above.(B)Stage carriages operating on routes other than those specified in clause (A), 5 Kilograms for each passenger, provided the luggage is carried by the passenger in his lap or underneath his seat :Provided that small articles such as overcoats and hand bags and the like shall not be weighed.(2)Subject to any directions issued by the State Transport Authority, a Regional Transport Authority may impose on the use of any contract carriage conditions in regard to the weight of luggage and goods which may be carried therein, generally or in any specified area.

### **73. Conditions that may be attached to a stage carriage permit or contract carriage permit**

. [Sections 72(2)(xxiv), 74(2)(xiii) & 96(2)(xxxiii)] - A Regional Transport Authority may attach to a stage carriage permit or a contract carriage permit the following conditions in addition to those specified in sub-section (2) of Section 72, sub-section (2) of section 74, section 84 or sub-section (11) of section 88, as the case may be, namely :-(i)a conductor shall be carried at the back of the vehicle;(ii)the holder of a stage carriage permit shall provide specified uniforms to the driver and the conductor;(iii)the holder of a stage carriage permit shall exercise supervision over the work and conduct of the employees as is necessary to ensure that the vehicle is operated in conformity with the provisions of the Act and the rules;(iv)in the case of a contract carriage permit, no passenger or goods shall be taken up or set down en route; and(v)in case of any alteration in the vehicle in pursuance of the provisions of section 52, the holder of a stage carriage permit or a contract carriage permit, as the case may be, shall intimate that fact to the Regional Transport Authority by which the permit was given and if the alteration does not conform to the conditions of the permit, the Regional Transport Authority shall be at liberty to -(i)vary the permit accordingly; and(ii)require the permit-holder to provide a substitute vehicle within such period as the authority may specify and if the holder fails to comply with such requirement it may cancel or suspend the permit and the authority making a variation in the permit or cancelling or suspending the permit as aforesaid shall intimate this fact to the authority of any other region in which a permit is valid by virtue of counter-signatures otherwise.

### **74. Conditions that may be attached to a goods carriage permit**

. [Sections 79(2)(ix) and 96(2)(xxxiii)] - A Regional Transport Authority may attach to any goods carriage permit the following conditions in addition to those specified in sub-section (2) of section 79 and section 84, namely :-(a)no passenger or goods shall be taken up or set down en route;(b)a condition restricting the type and the ownership of goods which may be carried; and(c)no trailer shall be attached to the vehicle.

## **75. Cancellation or revocation of permit.**

[Section 96(2)(ix)] - When a permit has been granted on an application by a Regional Transport Authority in respect of a particular vehicle or service or vehicles and it appears that a permit has been granted by another Regional Transport Authority, -(i)in respect of the same vehicle; or(ii)in respect of a service of vehicles requiring the use of a greater number of vehicles than the holder of the permit possessed at the time of the application, the former Regional Transport Authority may, in consultation with the later Regional Transport Authority forthwith cancel or modify the permit in such manner as it may deem fit.

## **76. Temporary authorisation in lieu of permit**

. [Section 95(1)] - (1) When the holder of a permit has submitted [-] [The words 'Part A or Part B or both of' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] the permit, to the State Transport Authority or a Regional Transport Authority for renewal or countersignatures of the permit or for any other purpose, or when a police officer or any court or other person authorised by the Government under Section 206 has taken possession of a permit from the holder thereof, the aforesaid authorities or the person shall furnish to the holder a receipt for the permit and a temporary authorisation in Form Temp. A. to ply the vehicle, during such period as may be specified in the said temporary authorisation, and during the said period the production of the temporary authorisation on demand, shall be deemed to be a valid production of the permit: Provided that the authority by which temporary authorisation was granted shall extend the period for which the temporary authorisation is to remain valid until the permit is returned but such extension shall not be beyond the period of validity of the permit. (2) Until a permit referred to in sub-rule (1) has been returned to the holder thereof, the vehicle concerned shall not be plied beyond the period as specified in the temporary authorisation referred to in sub-rule (1) or the extended period under the proviso to that sub-rule. (3) No fee shall be payable in respect of such temporary authorisation.

## **77. Permission authorising the replacement of a vehicle**

. [Section 83] - (1) If the holder of a permit relating to a particular vehicle desires at any time to replace the vehicle with another, he shall forward [-] [The words 'Part A of' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] the permit and apply in writing to the State or a Regional Transport Authority by which the permit was issued stating the reasons why the replacement is desired and shall, -(i) forward the certificate of registration, if the new vehicle is in his possession; or(ii) state any material particular in respect of which the new vehicle will differ from the old, if the new vehicle is not in his possession. (2) Upon receipt of an application under sub-rule (1), the State or a Regional Transport Authority may in its discretion reject the application -(i) if it has prior to the application given notice of its intention to reduce the number of transport vehicles of that class generally or in respect of the route or area to which the permit applies; or(ii) if the new vehicle proposed differs in material respects from the old; or(iii) if the holder of the permit has contravened the provisions of the permit or has been deprived of the possession of the old vehicle under the provisions of a hire purchase agreement : Provided that

in considering an application for new permit within its area, the State or a Regional Transport Authority shall, other things being equal, give preference to an applicant who has been deprived of a permit by the operation of clause (i) of this sub-rule.(3)If the State or a Regional Transport Authority grants an application for the replacement of a vehicle, it shall call upon the holder of the permit to produce [-] [The words 'Part B of' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] the permit and the certificate of registration of new vehicle, if not previously delivered to it and shall correct [-] [The words 'Parts A and B of' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] the permit and return them accordingly under its seal and signatures to the holder.(4)A fee of [rupees fifty] [Substituted vide Punjab Government Notification No. GSR84/CA/59/88/Ss.28, 38, 65, 93/Amd.(1)94.]shall be charged for the replacement of a vehicle under this rule.

## **78. Permits for the replacement of vehicle forming part of a service**

. [Section 83] - [-] [Rule 78, omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.]

## **79. Treatment of countersignatures on permit of replaced vehicle**

. [Section 83] - (1) The authority granting permission for the replacement of a vehicle under [rule 77] [Substituted for 'rules 77 and 78' vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] shall, unless the authority by which the permit was counter-signed has, by general or special order, otherwise directed, endorse on the correction made to [-] [The words 'Parts A and B of' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] the permit under the aforesaid rules the words, "Valid also for....", inserting the name of the authority concerned and shall intimate the particulars of the replacement to such authority.(2)Unless the permit has been endorsed as provided in sub-rule (1) or unless the alteration has been approved by endorsement by countersigning authority, the countersignatures on a permit shall not be valid in respect of any new vehicle.

## **80. Surrender of permits**

. [Sections 86 and 95(2)(ix)] - (1) The holder of a permit may, at any time, surrender it [-] [The words and brackets '(Parts A and B of Permit)' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] to the State or Regional Transport Authority by which it was granted and the State or Regional Transport Authority as the case may be shall forthwith cancel any permit so surrendered.(2)When the State Transport Authority or a Regional Transport Authority suspends or cancels any permit, -(i)the holder shall surrender [-] [The words 'Parts A and B of' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] the permit within seven days of receipt of a demand in writing by the authority; and(ii)the authority suspending or cancelling the permit shall send intimation to any other authority by which the permit has been countersigned and

to any authority to whose area the validity has been extended under rule 66.(3)A holder shall deliver [the permit] [Substituted for 'Parts A and B, or Part B' vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] to the State/a Regional Transport Authority by which it was issued within fourteen days of the expiry of any permit by efflux of time. The State or a Regional Transport Authority receiving any such permit shall intimate the fact of surrender to the authority or authorities by which it may have been countersigned and to any authority to whose area the validity has been extended under rule 66.

## 81. Transfer of a permit

. [Section 82] - (1) When the holder of a permit desires to transfer the permit to some other person under sub-section (1) of section 82 he and the person to whom he desires to make the transfer shall make a joint application, in writing, accompanied for grant of permit to the State or a Regional Transport Authority by which the permit was issued, setting forth the reason for the transfer and stating whether any premium, payment or other consideration arising out of the transfer is to pass or has passed between them and the nature and amount of any such premium, payment or consideration.(2)This State/a Regional Transport Authority, as the case may be, shall summon both the parties to the application made under sub-rule (1) to appear before it and may, deal with the application as if it were an application for a permit :Provided that a permit granted out of the permits reserved by the Government under clause (b) of sub-section (3) of section 71 shall not be transferable save as provided under sub-section (2) of Section 82 and if any person, who is granted or holds a permit out of the permits reserved as aforesaid does not want to make use of it, he shall surrender it to the authority which granted it.(3)If the State or a Regional Transport Authority having permitted any transfer of a permit is subsequently satisfied that the contents of the application on which the transfer was allowed were false or incomplete in respect of the matter specified in sub-rule (1) or any other material particulars, it may after hearing the parties shall thereupon declare the transfer to be void and the permit shall thereupon, without prejudice to any other penalty to which the parties may be liable, cease to have validity.(4)(i)[Section 96(2)(vii)] - If the State or a Regional Transport Authority allows transfer of a permit under sub-rule (2), it shall call upon the holder of the permit, in writing, to surrender [-] [The words 'Parts A and B of' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] the permit within seven days of the receipt of the order and shall likewise call upon the person to whom the Permit is to be transferred to deposit the fee specified for grant of permit under rule 68.(ii)Upon receipt of Parts A and B of the permit and of the specified fee the State or a Regional Transport Authority, as the case may be, shall cancel the particulars of the holders thereon and endorse particulars of the transferee and shall return the permit to the transferee.(iii)The State or a Regional Transport Authority making a transfer of a permit as aforesaid may, unless any other State of Regional Transport Authority by which the permit has been countersigned by general or special order has otherwise required, endorse parts A and B of the permit with the words "valid for ....." inserting the name of the extra area or route for which the permit has been countersigned.(iv)Unless Parts A and B of the permit have been endorsed as provided in clause (iii) or unless the transfer of a permit has been approved by endorsement by the authority which countersigned the permit, the countersignatures shall be of no effect after the date of transfer.

## 82. Regulation of service of contract carriage

. [Section 95] - An owner of a state carriage which is used as a contract carriage or that of a contract carriage shall ensure that it proceeds to the destination made by the hirer through the shortest route and shall not allow it to remain at any public place except when engaged as such and shall, - (i) not revoke the hiring contract without being discharged by the hirer; and (ii) station the vehicle at the stand in the order it arrives there and shall leave the stand on its turn.

## 83. Issue of duplicate permits

. [Section 96(2)(v)] - [(1) In case a permit is lost or destroyed, the holder thereof shall forthwith intimate this fact to the State Transport Authority or the concerned Regional Transport Authority, as the case may be, who had issued the permit. If the holder of the permit intends to obtain a permit, he may apply for the issue of a duplicate permit to the concerned authority.] [Substituted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.](2) The State or a Regional Transport Authority shall, upon receipt of application in terms of sub-rule (1), issue a duplicate permit or part [-] [The words 'or parts of a permit, as the case may be,' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] and to the extent that it is able to verify the fact may endorse thereon certified copies of any countersignatures by other authority, intimating the fact to that authority.(3) A duplicate permit issued under sub-rule (2), shall be clearly stamped as "Duplicate" in red ink and the certified copy of any countersignatures by any other State Transport Authority or Regional Transport Authority on a permit made under sub-rule (2), shall be valid in the region of that other authority as if, countersignatures were made by it.(4) When a permit has become so dirty, torn or defaced as in the opinion of the State Transport Authority or a Regional Transport Authority, as the case may be, to be illegible, the holder thereof, shall surrender the permit to the State Transport Authority or a Regional Transport Authority and shall apply for issue of a duplicate permit.(5) The fee for the issue of a duplicate permit shall be [one hundred rupees.] [Sub-rule (3), (4), and (5) of rule 83 substituted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] Provided that no fee shall be charged in the case of a duplicate permit issued in pursuance of sub-rule (4) if the original permit was issued prior to three years.(6) Any permit or part of a permit which is found by any person shall be delivered by that person to the nearest Police Station or the holder or to the State or a Regional Transport Authority by which it was issued and if the holder finds or receives any permit [-] [The words 'or part of a permit' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] in respect of which a duplicate permit has been issued, he shall return the original to the concerned State or the Regional Transport Authority.[84. Production of permit on demand. - A permit shall be produced on demand made at any reasonable time by any Officer under the control of the State Transport Commissioner or a Police Officer, not below the rank of a Sub- Inspector, if he is in uniform.] [Substituted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.]

## **85. Appeals against orders of State or Regional Transport Authority**

. [Section 96(2)(iii) and (xiii)] - (1) A person desiring to prefer an appeal against an order of the State or a Regional Transport Authority referred to in sub-section (1) of section 89 shall, within thirty days of the receipt of the order, prefer an appeal in the form of a memorandum, in duplicate, one copy of which shall bear a court fee stamp of [one hundred rupees] [Substituted vide Punjab Government Notification No. GSR84/CA/59/88/Ss.28, 38, 65, 93/Amd.(1)94.] to the State Transport Appellate Tribunal constituted under sub-section (2) of section 89 (hereinafter referred to in these rules as the appellate authority) setting forth concisely the grounds of objection to the order of the State or a Regional Transport Authority, as the case may be, together with a certified copy of that order.(2)Upon receipt of an appeal in accordance with sub-rule (1), the appellate authority shall appoint a time and place for hearing of the appeal giving the parties not less than thirty days' notice.(3)An appeal shall not operate as a stay of the order appealed against nor shall the appellate authority make an ex parte order for stay pending the hearing of the appeal. The appellate authority shall not decide any appeal or pass any order thereon unless an opportunity of being heard has been given to the appellants and the respondents and the State or a Regional Transport Authority which passed the order appealed against.(4)The appellant or the respondent shall be entitled to obtain a copy of any document filed in connection with the order appealed against on payment of a fee at the rate of rupees two per page and to inspect the file of the appellate authority and the application for inspection shall bear a court fee stamp of, -(a)in respect of urgent inspection - [Twenty rupees] [Substituted vide Punjab Government Notification No. GSR84/CA/59/88/Ss.28, 38, 65, 93/Amd.(1)94.]; and(b)in respect of an ordinary inspection - five rupees.(5)A copy of the orders made by the appellate authority in appeal may be obtained on payment of a fee at the rate of [rupees five] [ Substituted vide Punjab Government Notification No. GSR84/CA/59/88/Ss.28, 38, 65, 93/Amd.(1)94.] per page.

## **86. Procedure in hearing appeals**

. [Section 96(2)(iii) and (xiii)] - On the appellate authority appointing a time and place for hearing under rule 85, the appellant shall, within fourteen days of the receipt of intimation that a hearing will take place, forward to the appellate authority a list of the documents upon which he proposes to rely, together with copies of such documents in duplicate, and may upon the appointed day and at subsequent hearings, appear either in person or through an agent or representative authorised by him, in writing, in this behalf.

## **87. Interval of rest**

. [Section 91(5)] - (1) Any time spent by a driver of a vehicle on work other than driving in connection with the vehicle or with the load carried or to be carried on the vehicle including any time spent on the vehicle during a journey save as a passenger in a public service vehicle shall not be deemed to be an interval of rest for the purpose of section 91.(2)Any time spent by a driver of a vehicle on or near the vehicle when the vehicle is at rest and the driver is at liberty to leave the vehicle for rest and refreshment although required to remain within sight of the vehicle shall be deemed to be an interval of rest for the purpose of section 91.

## 88. Record of working hours to be maintained

. [Section 91] - The employer of any person whose work is subject to the provisions of sub-section (1) of section 91 shall fix the hours of work of such person so as to conform with those provisions and shall record the working hours in the table specified below and this record will be open to inspection by any officer under the control of the State Transport Commissioner on demand :-

Name of employee

| Date | Working hours in a day | Hours of rest | Total number of working hours in a week |
|------|------------------------|---------------|-----------------------------------------|
| 1    | 2                      | 3             | 4                                       |

## 89. Lost Property

. [Sections 96(2)(xvii) and 107(2)(f)] - (1) In the case of a public service vehicle other than Government owned vehicles, the conductor, or if there is no conductor, the driver shall at the conclusion of a journey, make search in the vehicle for anything left by any passenger and shall take into his custody anything so found and immediately shall make over the same to a responsible person at any office or station of the permit holder or to an official of a police station and shall likewise take into custody and dispose of anything so found by any other person. The responsible person at any office or station of the holder of the permit of the vehicle receiving the aforesaid goods shall keep them safe and if the goods are not claimed by the owner or any other person appearing to him to be entitled thereto, shall, if such owner of goods is known, cause a notice to be served upon him requiring him to remove the goods. If such owner is not known or a notice cannot be served upon him or he does not comply with the requisition in the notice such property shall be deposited with the nearest police station as unclaimed property after three months of taking over charge thereof :Provided that if the goods are of perishable nature and are not claimed within forty-eight hours, they shall be disposed of by the responsible person at the station of the holder of the permit by public auction and the receipts thereof shall be deposited with the nearest police station against proper receipt and shall be disposed of by the police under the laws affecting the articles.(2)In the case of a Government owned vehicle, the conductor or if there is no conductor, the driver shall deposit the goods in the nearest office of the State Transport Undertaking and if the goods are not claimed by the owner or any other person appearing to the incharge of the office of the State Transport Undertaking to be entitled thereto, he shall, if such owner or person is known, cause a notice to be served upon him, requiring him to remove the goods. If such owner or person is not known or a notice cannot be served upon him or he does not comply with the requisition in the notice, such incharge may, after three months of taking over charge of the goods sell the goods by public auction and proceeds thereof shall be credited into the Government treasury :Provided that if the goods are of perishable nature and are not claimed within forty-eight hours, they shall be disposed of by the incharge by public auction and the receipt thereof credited into the Government treasury.(3)If the goods are claimed within the period specified, a charge of rupee one per kilogram or a part thereof for twenty-four hours or fraction thereof subject to a minimum charge of two rupees shall be levied. The unclaimed articles shall also be liable to these charges on account of their custody and disposal.(4)Where articles such as arms, ammunition, explosive, intoxicating liquors,

opium and its preparation and hemp and drugs, the sale of which is prohibited by law, are left unclaimed, they shall be made over to the police or excise authorities for disposal under the laws affecting the articles.(5) Proper accounts shall be maintained in a separate register which shall be open for inspection to the authorities.

## 90. Conduct of passengers in a stage carriage

. [Section 99] - (1) If at any time a passenger in a stage carriage, -(i) behaves in a disorderly manner; (ii) behaves in a manner likely to cause annoyance to any female passenger; (iii) uses abusive language; (iv) molests any other passenger; (v) enters the vehicle under the influence of liquor or drugs; (vi) spits; (vii) obstructs the conductor or the driver or any authorised employee of the permit holder in the execution of his duties or interfere without due cause with the driving of the vehicle; (viii) intentionally avoids payment of the fare; (ix) refuses to show ticket on demand by any authorised person; (x) uses or attempts to use any ticket which has been altered or defaced or in the case of ticket bearing an indication that it is not transferable issued to another person; (xi) is reasonably suspected to be suffering from any contagious or infectious disease; (xii) commits or abets any offence under the Act or these rules; (xiii) uses or attempts to use a ticket other than the ticket valid for a particular journey; (xiv) carries with him in the vehicle luggage of a description which is likely to obstruct, annoy or cause inconvenience or be offensive to any other passenger; (xv) occupies accommodation for more than one seat or without lawful excuse occupies any seat exclusively reserved for ladies or other categories of passengers. (xvi) refuses to pay a fresh fare for the journey performed by him if he has so altered or defaced his ticket as to render its contents illegible; (xvii) is found travelling without ticket pertaining to the journey being performed by the vehicle at the time of his being so found; (xviii) refuses to leave the vehicle, if so requested by the conductor or driver at the completion of the journey for which he has paid the fare; (xix) knowingly enters and insists on travelling in a vehicle which is carrying the maximum number of passengers as specified for that vehicle; (xx) hangs on to any exterior part of a vehicle; (xxi) wilfully damages, spoils, removes or interfere with any fittings or equipment on or on the vehicle; (xxii) enters or alights from a vehicle except by the entrance or exit provided for the purpose; (xxiii) attempts to enter a vehicle without first permitting passengers who have completed their journey to alight; (xxiv) enters or leaves a vehicle except in a queue and in an orderly manner; (xxv) distributes printed or similar matter of any description or distributes any articles for the purpose of advertisement; or (xxvi) to the annoyance of other passengers uses or operates any noisy instrument or makes or combines with any person to make any excessive noise by singing or otherwise; (xxvii) begs, sells or offers for sale any article in or on the vehicle; (xxviii) smokes, the driver or the conductor or any authorised person of the service or any officer under the control of the State Transport Commissioner may require such passenger to alight from the vehicle and may stop the vehicle and keep it standing until the passenger has alighted, or on the request of the driver or conductor may be removed from the vehicle by any police officer or any officer of the State Transport Undertakings. (2) The passengers referred to in sub-rule (1) shall not refuse to give his correct name and address on demand for contravention of these rules and shall not be entitled to the refund of any fare which he may have paid and also be guilty of an offence for which he shall be liable to pay the penalty under section 177.

## **91. Prohibition of use of force to collect passengers**

. [Section 96(2)(xxvii)] - No driver or conductor of a public service vehicle or agent for the sale of tickets shall touch, annoy or use force to any person with the object of inducing that person or any other to travel in any public service vehicle or shout loudly or use any horn, bell, gong, whistle, gramophone, megaphone, loudspeaker, musical instrument or other device for creating loud noise with the object of attracting passengers.

## **92. Sale of tickets**

. [Section 96(2)(xxviii)] - No driver or conductor of a public service vehicle or agent for the sale of tickets in a public service vehicle shall sell or attempt to sell tickets or solicit customers in any place which has been notified by the District Magistrate, by public proclamation or in such other manner as he may find convenient, as a place in which such sale or soliciting is not permitted.

## **93. Licensing of ticket agents**

. [Section 96(2)(xviii)] - (1) No person shall act as an agent for the sale of tickets for travel by a public service vehicle, otherwise than in the vehicle itself or in a fixed office, unless he has obtained from the licensing authority a licence permitting him to do so.(2)For the purpose of sub-rule (1), any person soliciting or attempting to persuade another to travel in a vehicle shall be deemed to be acting as an agent for the sale of ticket for travel.(3)The licensing authority for the purpose of this rule and rules 94, 95 and 96 shall be the licensing authority specified under rule 3.

## **94. Issue of ticket agent's licence**

. [Section 96(2)(xxviii)] - (1) Licences under rule 93 shall consist of. -(a)a permit in form TAP; and(b)a metal badge of the kind illustrated in the First Schedule to these rules.(2)No licence shall be issued to any agent except on the application of the person or transport society, transport firm or transport company, being a holder of a permit, for one or more public service vehicles, for whom the agent is to act. The person or transport society, transport firm or transport company making the application (hereinafter called in these rules, the "Principal") shall be required to complete and authenticate the first part of the permit in Form TAP, the other entries being completed by or under the orders of the licensing authority.(3)The fee for issue of a ticket agent's licence shall be rupees fifty.

## **95. Cancellation of ticket agent's licence**

. [Section 96(2)(xxviii)] - (1) The licensing authority shall forthwith cancel any licence issued under rule 93 upon request made to him by the principal on whose application it was granted.(2)A principal proposing to apply for the cancellation of a licence issued to an agent on his application may call upon the agent to surrender the permit and badge, and the agent shall be bound to surrender the same to the principal forthwith.(3)Where a principal requires any agent to surrender

his badge and permit under sub-rule (2), he shall forward the same with his application for cancellation of the licence to the licensing authority with the least possible delay and in any case within forty-eight hours.

## **96. Terms of ticket agent's licence**

. [Section 96(2)(xxviii)] - Unless a shorter term is appointed, a ticket agent's licence shall be valid for one year from the date of issue or renewal but may be cancelled at any time by the licensing authority if it appears to it that the conduct of the agent in his relations with the public has been unsatisfactory or that the agent is not a suitable person to continue as such.

## **97. Ticket Agent's badge to be exhibited**

. [Section 96(2)(xxviii)] - (1) A ticket agent shall carry his badge and permit on his person at all times when he is engaged in his duties, the badge being displayed prominently on the left breast.(2)The ticket agent shall be bound to exhibit his permit in Form TAP on demand of any person whose custom he has sought to secure or of any police officer in uniform not below the rank of a Sub-Inspector or an officer under the control of the State Transport Commissioner.

## **98. Appeal against the orders made under rule 94, 95 or 96**

. [Section 96(2)(xxviii)] - (1) The authority to whom an appeal may be preferred against the order of the licensing authority refusing to grant ticket agent's licence under rule 94, cancellation of ticket agent's licence issued on the request of the principal under rule 95 or cancellation of ticket agent's licence under rule 96 shall be the State Transport Commissioner whose decision shall be final in this behalf.(2)The appeal under sub-rule (1) shall be preferred in the form of a memorandum which shall bear a cash receipt of a treasury challan of twenty rupees, setting forth concisely the grounds of objections to the order of the licensing authority and shall be accompanied by a certified copy of the order appealed against.(3)When an appeal is preferred, the State Transport Commissioner shall issue a notice to the licensing authority against whose order the appeal is preferred.(4)Any person preferring an appeal shall be entitled to obtain a copy of any document filed in connection with the order appealed against on payment of a fee at the rate of rupees two per page.(5)Any person preferring an appeal shall be entitled to inspect the file of the State Transport Commissioner and the application therefor shall be accompanied by a cash receipt or treasury challan of -(a)in respect of urgent inspection, .. ten rupees(b)in respect of an ordinary inspection, .. five rupees

## **99. Conduct of ticket agent**

. [Section 96(2)(xxviii)] - The licensed ticket agent shall,-(i)behave in a civil and orderly manner with the passengers or intending passengers;(ii)not behave in a manner likely to cause annoyance or embarrassment to any female passenger;(iii)not use abusive language towards any passenger or molest any passenger;(iv)not save for good and sufficient reasons refuse to issue a ticket to any intending passenger tendering the legal fare;(v)not make any discrimination between the

passengers;(vi)not wilfully deceive or refuse to inform any passenger or intending passenger as to the destination or route of the vehicle or as to the fate for any journey;(vii)properly guide the passengers to enable them to board the vehicle for which tickets have been issued to them;(viii)not altercate with passengers and shall give them his name and licence number if asked to do so;(ix)not be under the influence of any intoxicant while on duty; and(x)be dressed in such manner as the State Transport Authority may specify and shall observe cleanliness.

## 100. Disinfection

. [Section 95] - (1) All public service vehicles shall be disinfected with D.D.T. or Gammaxane formulations or any other disinfectant after every two months and the owners shall furnish to the Regional Transport Authority concerned a certificate to that effect duly signed by the Chief Medical Officer of Health or any other officer authorised by him in this behalf. The period of two months shall count from the date of the last certificate furnished as aforesaid :Provided that if adequate arrangements for the disinfection of vehicles are made by permit holder at his own premises to the satisfaction of the Chief Medical Officer of Health, a certificate of disinfection by such permit holder shall be sufficient.(2)The owner of a public service vehicle shall maintain and on demand by the Secretary or Assistant Secretary of the Regional Transport Authority or the District Transport Officer, produce for inspection a current register showing the dates on which the public service vehicle was disinfected from time to time.

## 101. Carriage of persons in goods carriage

. [Section 96(2)(xxxi)] - (1) Save in the case of a vehicle which is being used for the carriage of troops or police or in the case of a stage carriage in which goods are being carried in addition to passengers, no person shall be carried in a goods carriage other than its owner or hirer, a bona fide employee of the owner of the hirer of the vehicle and the persons allowed under this rules.(2)No person shall be carried in the driver's cab of a goods vehicle beyond the number for which there is seating accommodation at the rate of 330 millimetres measured along the seat excluding the space reserved for the driver for each person and not more than six persons in all connected with the load carried in addition to the driver shall be carried in any goods carriage :Provided that in the case of a goods carriage owned by Government of Punjab, carriage of more than six persons may be allowed by the State Transport Authority; subject to the condition that such number shall not exceed the area in square metres of the floor of the vehicle divided by 0.63 metre subject to a maximum of twelve persons.(3)No person shall be carried upon the goods or otherwise in such a manner that such person is in danger of falling from the vehicle and in no case shall any person be carried in a goods vehicle in such a manner that any part of his person, when he is in a sitting position, is at a height exceeding 3.048 metres from the surface upon which the vehicle rests.(4)Notwithstanding the provisions of sub-rule (2), a Regional Transport Authority may, as a condition of a permit granted for any goods carriage, specify the conditions subject to which a large number of persons may be carried in the vehicle, provided that such number shall not exceed the area in square metres of the floor of the vehicle divided by 0.63 subject to a maximum of twelve.(5)Nothing contained in this rule shall be deemed to authorise the carriage of any person for hire or reward in any vehicle unless there is in force in respect of the vehicle a permit authorising the use of the vehicle for such purpose and

save in accordance with the provisions of such permit.

## 102. Conditions for carriage of animals in goods carriage

. [Section 96(2)(xxvii)] - (1) No animal shall be carried in a goods carriage in a public place unless, -(i) the load body the vehicle is constructed of strong wooden planks or of iron sheets with a minimum height of 1.05 metres measured from the floor of the vehicle in all sides and the back; and(ii) the animal is properly secured by ropes tied to the side of the vehicle.(2) While carrying animal in a goods carriage, the owner of the vehicle shall, -(i) not carry more than forty at a time when the wheel base of such vehicle is below 3.6 metres and not more than fifty when the wheel base of such vehicle, is 3.6 metres or above in the case of goats, sheeps, pigs, deer, rams, owes, kids and the like; and(ii) not carry more than four with calves or young ones or five without calves or young ones, in the case of animals other than those referred to in clause (i) when the wheel base is below 3.6 metres and not carry more than five with calves or young ones or six without calves or young ones when the wheel base of such vehicle is 3.6 metres or above; and(iii) carry animals on the basis of floor space in the vehicle in accordance with the scale of floor space given below against each category of animals :-

| Category of animals                            | Floor space required per animal |
|------------------------------------------------|---------------------------------|
| (1) Mule or horse of gelding                   | .. 2.20 square metres           |
| (2) Buffalo or buffalo bull                    | .. 1.67 square metres           |
| (3) Cow or bullock or adult heifer or cow bull | .. 1.48 square metres           |
| (4) Pony or ass or colt or filly               | .. 1.20 square metres           |
| (5) Calves of two to three years               | .. 1.11 square metres           |
| (6) Calves below two years                     | .. 0.74 square metres           |
| (7) Deer and pig                               | .. 0.50 square metres           |
| (8) Sheep or ram and goat                      | .. 0.32 square metres           |

(3) In the case of goods carriage the record of daily haulage shall be maintained by the permit-holder in the following table :

| Name and address of the permit holder | Type of permit                               | Permanent _____ Temporary     | Registration No. of Vehicles | Goods Date carriage for hire or reward trade and business |        |
|---------------------------------------|----------------------------------------------|-------------------------------|------------------------------|-----------------------------------------------------------|--------|
| Serial No. of trip                    | Name and address of sender or booking Agents | Name and address of consignee | Name of commodity carried    | Weight in quintals/kgs.                                   | Origin |
| 1                                     | 2                                            | 3                             | 4                            | 5                                                         | 6      |

| Destination | Distance between 6 and 7 | Quintals per kms performed Col.(5) x Col.(8) | Freight charged in rupees | Remarks |
|-------------|--------------------------|----------------------------------------------|---------------------------|---------|
| 7           | 8                        | 9                                            | 10                        | 11      |

Signature of Permit-holder

(Strike out where not applicable Records of Daily Haulage.)N.B. (i) If more than one commodity is carried during the same trip or booked between places en route the debits of each commodity have to be shown separately in separate lines under all columns.(ii) Generally origin and destination of the vehicle will be origin and destination of cargo. In case they are different, origin and destination of cargos may be inserted under Columns (6) and (7) respectively with a note in the remarks column showing origin and destination of the vehicle.(4) No animal belonging to or intended for a circus or zoo shall be carried in a goods carriage in public place unless in the case of wild ferocious animals, a suitable cage, either separate from or integral with the load body of the vehicle, used of sufficient strength to contain the animal securely at all times is provided.(5) No animals under sub-rule (1) or under sub-rule (4) shall be carried for more than 200 kilometres at a stretch and there shall be a break of four to six hours after eight hours of continuous journey.(6) No goods carriage while carrying any animal shall be driven at a speed in excess of twenty-five kilometres per hour.(7) No goods carriage shall, while carrying animals, carry any other goods except fodder necessary to feed the animals on the way.

### 103. Log-books and complaint books to be maintained by drivers of transport vehicles

. [Sections 96(2)(vi) and (xxxii) and 95(1)] - (1) The owner of a transport vehicle other than a stage carriage shall ensure that the driver of the vehicle maintains a log-book and enters particulars of every hiring consignment therein.(2) The particulars to be entered in the log-book in the case of a contract carriage and a private service vehicle shall be as under :-(a) the name of the hirer, with sufficient particulars to enable him to be identified;(b) the approximate number of persons included in the party;(c) the starting point and finishing point of the trip and the route to be followed;(d) the date and time from which the hiring has effect;(e) the date and time when the journey is expected to be completed; and (f) the nature and weight of any goods carried; and in the case of a goods carriage, -(i) Serial No.(ii) Name of Driver.(iii) Hours of duty From \_\_\_\_\_ to \_\_\_\_\_(iv) Description and weight of goods.(v) Place and time with date of despatch.(vi) Destination with probable time of arrival.(vii) Distance.(viii) Amount of freight charged.(ix) Name and address of the consignor.(x) Name and address of the consignee.(xi) Signature and designation of inspection officer.(xii) Remarks.Provided that in the case of a vehicle carrying miscellaneous goods belonging to a number of owners, the record of each consignment shall be kept in the standard way Bill Form as under :-

#### 1. Name of the owner.

**2. Driver's name.**

**3. Vehicle No.**

**4. Consignor**

**5. Consignee.**

**6. From**

**7. To**

**8. Nature of goods and weight.**

**9. Distance.**

**10. Freight.**

**11. Remarks.**

(3)The particulars required by sub-rule (2) shall be entered in the log-book before the passengers or goods are taken into the vehicle and before the journey is begun.(4)The provisions of this rule shall also apply to a stage carriage authorised for use as a contract carriage for the carriage of goods.(5)Log-books required to be maintained under this rule shall be signed and stamped by the Secretary of State or a Regional Transport Authority, as the case may be, and be produced by the driver at any time when the vehicle is on the road or at any time on the demand of any police officer not below the rank of a Sub-Inspector or such other officer as may be authorised by the State Transport Commissioner.(6)A complaint book duly authenticated by the Secretary of the State or a Regional Transport Authority shall be kept in every stage carriage and contract carriage and shall be maintained in a clean and tidy condition by the conductor or the driver, as the case may be, and shall be produced by him on demand of any passenger, who shall be at liberty to make an entry therein.

## **104. Other records to be maintained**

. [Section 96(2)(xxxii)] - (1) The State or a Regional Transport Authority may by general or special order, require the holder of a permit in respect of any transport vehicle to maintain records and submit a return in respect of the vehicle in such form as that authority may specify and such records and returns may include, particulars of the daily use of the vehicle in respect of :-(i)the name and licence number of the driver and conductor and other attendant, if any;(ii)the route upon which or the area within which the vehicle was used;(iii)the number of kilometres travelled;(iv)the time of commencement and termination of a journey and of any halts on a journey when the driver obtained

rests;(v)the weight of goods carried between specified places and the nature of the goods; and(vi)in the case of goods carried in a stage carriage, the number of trips and the kilometres when goods were carried solely and when goods were carried in addition to the passengers and in the later case the number of the seats available for passengers.(2)No owner shall cause or allow any driver to drive a transport vehicle unless the owner has in his possession a record in writing of the name and address of the driver as set forth in this driving licence, the number of the licence and the name of authority by which it was issued.

## **105. Change of address of permit holder**

. [Section 96(2)(xxvii)] - (1) If the holder of a permit ceases to reside or to have his place of business, as the case may be, at the address set forth in the permit, he shall, within fourteen days, send [-] [The words 'part A of' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] the permit to the authority by which the permit was issued intimating the new address and shall pay a fee of rupees ten for making entry with regard to change of address.(2)Upon receipt of intimation under sub-rule (1), the authority shall, after making such enquiries, as it deems fit, enter in the permit the new address and shall intimate the particulars to the authority of any region in which the permit is valid by virtue of countersignatures of otherwise.

## **106. Intimation of damage to or failure of a public service vehicle**

. [Section 96(2)(xxiv)] - (1) The holder of a stage carriage or contract carriage permit shall, within seven days of the occurrence report, in writing, to the authority by which the permit of that vehicle was issued, any failure of or damage to such vehicle or to any part thereof, if the failure or damage is of such a nature as to render the vehicle unfit for use in accordance with the conditions of the permit for a period exceeding three days.(2)The holder of any permit in respect of a service of stage carriage shall within seven days of the occurrence report, in writing, to the authority by which the permit was issued, any failure of or damage to any vehicle used by him under the authority of the permit of such a nature as to prevent the holder from complying with any of the provisions or conditions of the permit for a period exceeding three days.(3)Upon receipt of a report under the proceeding sub-rules, the authority by which the permit was issued, may, subject to the provisions of [rule 77] [Substituted for 'rules 77 and 78' vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] :-(i)direct the holder of the permit, within such period not exceeding two months from the date of the occurrence, as the authority may specify either to make good the damage to or set right the failure of the vehicle or to provide a substitute vehicle; or(ii)if the damage to or failure of the vehicle is such that in the opinion of the said authority it cannot be made good or set right within a period of two months from the date of the occurrence, direct the holder of the permit to provide a substitute vehicle, and when the holder of the permit fails to comply with such a direction, may suspend, cancel or vary the permit accordingly.(4)The authority giving a direction, or suspending, cancelling or varying a permit under sub-rule (3) shall send intimation of this fact to the authority or any other region in which the permit is valid by virtue of countersignatures or otherwise.

## **107. Information of failure to ply the vehicle**

. [Section 96(2)(xxiv)] - (1) If the holder of a stage carriage permit is at any time unable to ply his vehicle for any cause whatsoever in accordance with the time-table approved by the Regional Transport Authority, he shall forthwith send an intimation about the same to the Regional Transport Authority by which the permit was issued as well as the nearest Deputy Commissioner or the Sub-Divisional Officer (Civil). (2) On receipt of a report under sub-rule (1), the Regional Transport Authority, Deputy Commissioner or Sub-Divisional Officer, as the case may be, may make such alternate arrangements as he may think fit.

## **108. Inspection of Transport Vehicles and their contents**

. [Section 96(2)(xxx)] - (1) Any Police Officer in uniform not below the rank of a Sub-Inspector or an Officer under the control of the State Transport Commissioner authorised in this behalf by him may at any time when the vehicle is in a public place, call upon the driver of goods vehicle to stop the vehicle and to keep it at rest for such time as may be necessary to enable the said Officer to make reasonable examination of the contents of the vehicle. (2) Notwithstanding the provisions of sub-rule (1), the officer referred to in sub-rule (1) shall not be entitled to examine the contents of any goods vehicle unless:-(i) the permit in respect of the vehicle contains a provision or conditions in respect of the goods which may or which may not be carried on the vehicle; (ii) the officer has reasons to believe that the vehicle is being used in contravention of the provisions of the Act or rules framed thereunder. (3) Any police officer in uniform not below the rank of a Sub-Inspector or any officer of the Department of Excise and Taxation not below the rank of Taxation Sub-Inspector or any officer under the control of the State Transport Commissioner authorised in this behalf by him, may at any time, when the vehicle is in a public place, call upon the driver of a public service vehicle to stop the vehicle and to keep it at rest for such time as may be necessary to enable him to make reasonable examination of the number of passengers and other contents of the vehicle so as to satisfy himself that the provisions of the Act and the rules framed thereunder and the provisions and conditions of the permit in respect of the vehicle are being complied with. (4) Any officer appointed to be a member of the Board of Inspection shall be entitled at any reasonable time to inspect any public service vehicle in a public place.

## **109. Taxi Meter**

. [Sections 74(2)(viii) and 96(2)(xx)] - (1) Every motor-cab except tourist vehicle shall be fitted with a taxi meter of a pattern approved by the State Transport Authority and shall be in conformity with any instructions that may be issued by the State Transport Authority. (2) A permit holder required to fit a taxi meter shall, at the time of production of his vehicle for inspection before the Board of Inspection furnish a certificate issued by the Controller, Weights and Measures, Punjab, or any officer authorised by him in this behalf to the effect that the taxi meter has been tested and sealed and shall produce the taxi meter for an examination subsequently whenever the vehicle to which it is attached is inspected or wherever for any reasons it has become necessary to break the seal.

## **110. Procedure for obtaining an Agents or Convassers' Licence under Section 93**

. [Sections 93 and 96(2)(xxix) and (xxxiii)] - (1) Any person desiring to obtain a licence under Section 93 to be made operative in one region may make an application to the Regional Transport Authority concerned in Form Pb. GBA-1: Provided that if the licence has to be made operative in more than one region, the application shall be made to the State Transport Authority in Form Pb. GBA-2. (2) An application in terms of sub-rule (1) shall be accompanied by cash receipt or a treasury challan showing a deposit of fee of rupees thirty. (3) In considering an application for licence made under sub-rule (1), the State or a Regional Transport Authority as the may be, shall have due regard among other things to the following matters, namely :- (a) the number of goods vehicle either owned by the applicant or under his control. Explanation. - For the purpose of clause (a), a person shall be deemed to have under this control such number of goods vehicles as are covered by declaration in Form Pb. GBA-4 obtained by him from the respective owners of goods vehicles. (b) the suitability of accommodation possessed by the applicant for the storage of goods at the operating place; (c) the facilities, if any, provided by the applicant for parking of goods vehicles; and (d) the financial resources of the applicant and his ability to manage the business of collecting, forwarding or distributing goods carried by goods carriages efficiently. (4) The State or Regional Transport Authority shall either grant the licence to the applicant (hereinafter referred to as the licence in this chapter) in Form Pb. GBA-5 or Form Pb. GBA-6, as the case may be, specifying the place or places where the business may be carried on or refuse to grant the licence: Provided that the licensing authority shall not refuse to grant a licence, unless the applicant is given an opportunity of being heard and the reasons for refusal are recorded and communicated to him in writing.

## **111. Security for compliance with the conditions**

. [Sections 93 and 96(3)(xxxix)] - (1) For ensuring compliance with the provisions of these rules and conditions of the licence granted under rule 110, the State or the Regional Transport Authority shall, at the time of granting a licence require the applicant to furnish security of a sum of rupees fifty thousand. (2) [Section 93(2)(c)(i)] - If a licensee contravenes any of the provisions of these rules or any of the conditions under which the licence is granted then without prejudice to any other action that may be taken against him, the State or a Regional Transport Authority, as the case may be, may, by order, for reasons to be recorded, in writing, forfeit the security in part or in whole : Provided that no order shall be passed under this sub-rule unless the licensee has been given an opportunity of being heard : Provided further that the licensee shall, if the amount of security at any time falls short of the amount specified in sub-rule (1), forthwith deposit further security to make up the amount of security. (3) The security deposit, unless forfeited, shall be refunded to the person concerned at the expiry of the period of the licence or earlier in the event of voluntary closing down of the business.

## **112. Period of validity and renewal**

. [Sections 93(2) and 96(xxxix)] - (1) A licence granted under sub-rule (4) of rule 110 shall be valid for a period of three years from the date of its grant and may be renewed for a period of three years

at a time.(2)An application for renewal under sub-rule (1) shall be made to the State or a Regional Transport Authority, as the case may be, in Form Pb. GBA-3 not less than thirty days before the date of its expiry.(3)The renewal of licence shall be given by an endorsement to that effect by the State or a Regional Transport Authority on the licence.

### 113. Fee for a licence

. - Fee for the grant or renewal of licence under rule 110, or rule 112 shall be follows :-

|                                                                                                                   |               |
|-------------------------------------------------------------------------------------------------------------------|---------------|
| (a) for the grant of principal licence                                                                            | Rs.<br>500.00 |
| (b) for the grant of supplementary licence for each additional establishment or sub-agency                        | Rs.<br>100.00 |
| (c) for renewal of a licence if application is made in time                                                       | -             |
| (i) Principal licence                                                                                             | Rs.<br>500.00 |
| (ii) supplementary licence for each additional establishment or sub-agency                                        | Rs.<br>100.00 |
| (d) Penalty for renewal of licence if application is not made in time but is made before the expiry of licence :- |               |
| (i) Principal Licence :-                                                                                          |               |
| (a) if application is made late by seven days                                                                     | Rs. 50.00     |
| (b) If application is made late by more than seven days, but not more than fourteen days                          | Rs. 60.00     |
| (c) if application is made late by more than fourteen days but not more than twenty-one days                      | Rs. 80.00     |
| (d) if the application is made late by more than twenty-one days but not more than thirty days                    | Rs.<br>200.00 |
| (ii) Supplementary Licence :-                                                                                     |               |
| (a) if the application is made late by fifteen days                                                               | Rs. 20.00     |
| (b) if the application is made late by more than fifteen but not more than thirty days                            | Rs. 30.00     |

Note. - In this rule, the expression, "Principal Licence" means a licence for the headquarters of a person engaged in the business of collecting, forwarding or distributing goods carried by goods carriages and "Supplementary Licence" means a licence which is for a branch office.

### 114. Conditions of a licence

. [Section 96(2)(xxix)] - (1) A licence issued or renewed under rules 110 and 112 shall be subject to the following conditions, namely:-(i)the licence shall, subject to the provisions of rule 116 provide places for loading and unloading of goods;(ii)the licensee shall be responsible for proper arrangement for storage of goods, collected for despatch and delivery;(iii)where the licensee is authorised to forward and distribute goods he shall, -(a)be liable to the consignee for any loss or

damage to goods while in his control or possession;(b)be responsible for proper delivery of goods to the consignee;(c)not issue a goods transport receipt without having actually received the goods;(d)not deliver the goods to the consignee without actually receiving from the consignee a goods transport receipt and in case of loss or misplacement of the same, an indemnity bond covering the value of goods.(iv)the licence shall insure the goods against any loss or damage while in his control or possession;(v)the licensee shall maintain a proper record of the vehicles under his control and of the collection, despatch and delivery of goods which shall be open to inspection by the State Transport Authority, the Regional Transport Authority or by any person duly authorised in this behalf by such authority and shall furnish to the State Transport Authority a return in respect of the previous six months in Form Pb. GBA-7 within thirty days after the 30th September and 31st March every year;(vi)the licensee shall furnish the person operating the vehicle with correct figures of the freight to be received by them from the consignors or the consignees;(vii)the licensee shall maintain proper accounts of the commission charged by him and the licensee with gross income of Rs. 25,000 or above per annum shall get his account audited by the Chartered Accountant;(viii)the licensee shall ensure that the goods vehicles under his control have valid permits for routes on which the vehicles have to ply;(ix)the licensee shall maintain in good condition a weighing device capable of weighing, at a time, not less than 200 kilograms;(x)the licensee shall attend to his customers in order in which they approach him:Provided that the customers in respect of such perishable goods, as may be notified by the Government in the Official Gazette, shall be given priority over the other customer, but such customers shall be attended to in order in which they approach the licensee;(xi)the licensee shall assign the consignment amongst the persons operating the vehicles in the order in which they have approached him and shall maintain a register chronologically recording particulars of the available goods and the persons waiting to operate the vehicles;(xii)the licensee shall comply with the provisions of these rules and shall observe such conditions as the State or Regional Transport Authority may specify in the licence;(xiii)the licensee shall make all contracts, in writing, containing the following particulars, namely :-(a)Name and address of consignor and the consignees;(b)Description and weight of the consignment;(c)Destination and its distance in kilometres from the starting station to the destination;(d)Freight per quintal per kilometre and for the whole vehicle per kilometre;(e)Delivery instructions, for example, the date by which and the exact place where the goods are to be delivered to the consignee;(f)Terms of agreement for payment; and(g)Name of the owner, driver, the registration number of the vehicles, its authorised load and amount of the commission.(xiv)the licensee shall administer his approved premises in an orderly manner and shall keep it in good and clean condition; and(xv)the licensee shall take all precaution to ensure that no breach of any of the provisions of the Act or rules made thereunder or the conditions of the licence is committed.(2)The State or a Regional Transport Authority may, after giving notice of not less than one month, in writing to the licensee either vary any conditions of his licence or attach to his licence any further conditions.

## 115. Rate of commission

. [Sections 93 and 96(2)(xxix)] - The licensee shall not charge commission from the persons operating the vehicles exceeding amount as may be notified by the Government from time to time keeping in view the expenses incurred by the licensee in maintaining the establishment, overhead

charges and other relevant factors :Provided that the commission will be exclusive of loading and unloading charges.

## **116. Premises to be used**

. [Sections 93 and 96(2)(xxix)] - (1) The Regional Transport Authority may, in consultation with the local authority or the Police authority having jurisdiction over the area concerned, approve any premises owned by or in possession of a licensee or any applicant for the licensee to be used for loading or unloading of goods or for parking goods vehicles for the storage of goods in the custody of the licensee having regard to the stability of the site, sanitary conditions and storage facilities provided at such premises.(2)Where the Regional Transport Authority refuses to approve any premises under sub-rule (1), it shall record, in writing, the reasons for such refusal:Provided that before such refusal an opportunity of being heard shall be given to the licensee or the applicant, as the case may be.

## **117. Suspension or cancellation of licence**

. [Sections 93 and 96(2)(xxix)] - Without prejudice to any other action which may be taken against a licensee, under the Act, the State or the Regional Transport Authority as the case may be, may be order, in writing, cancel the licence obtained under rule 110 or suspend it for such period as it thinks fit if in its opinion any of the conditions of the licence has been contravened:Provided that before making any order of suspension or cancellation under this rule, the State or Regional Transport Authority shall give the licensee an opportunity of being heard and shall record reasons, in writing, for such cancellation or suspension.

## **118. Issue of duplicate licence**

. [Sections 93 and 96(2)(xxix)] - (1) If at any time a licence is lost, destroyed or torn or otherwise defaced so as to be illegible, the licensee shall forthwith apply to the State or a Regional Transport Authority as the case may be for the grant of a duplicate licence.(2)The application under sub-rule (1) shall be accompanied by cash receipt or a treasury challan of ten rupees and on receipt of such an application, the State or a Regional Transport Authority, as the case may be, shall issue a duplicate licence stamped "Duplicate" in read ink.(3)If the duplicate licence is granted under sub-rule (2) on a representation that the licence originally granted has been lost or destroyed, and the original licence is subsequently found, it shall be surrendered to the authority concerned.

## **119. Display of licence**

. [Sections 93 and 96(2)(xxix)] - (1) A person who has obtained a licence under rule 110 for collecting the goods shall carry with him, his licence while on duty and shall produce it on demand for inspection by the Secretary, Regional Transport Authority or the District Transport Officer.(2)A person who has obtained a licence under rule 110 for forwarding and distributing the goods shall exhibit his licence at some conspicuous place in the approved premises and the licence shall be

made available for inspection by the Secretary, Regional Transport Authority or the District Transport Officer.(3)A person who has obtained a licence for collecting, forwarding and distributing goods shall carry with him his licence while on duty and shall produce it on demand for inspection by the Secretary, Regional Transport Authority or the District Transport Officer and shall also cause a true copy of his licence to be exhibited at a prominent place in the approved premises.

## **120. Appeal**

. [Sections 93 and 96(2)(iii) and (xiii)] - (1) Any person aggrieved by an order under rules 110 and 116 and 117 may, within a period of thirty days from the date of the receipt of such order appeal, - (a) to the Secretary to Government of Punjab, Department of Transport, if the order is made by the State Transport Authority; and (b) to the State Transport Authority, if the order is made by a Regional Transport Authority. (2) The memorandum of appeal shall be filed in duplicate setting forth concisely the grounds of objections and shall be accompanied by a certified copy of that order and a cash receipt or a treasury challan of rupees twenty.

## **121. Levy of fees for supply of copies**

. [Sections 93 and 96(2)(iii) and (xiii)] - The authority which passes an order to be appealed against under rule 120 shall, on an application by a person, give a certified copy of the order or any other relevant documents on payment of fee of rupees two per page.

## **122. Delegation of powers by State Transport Authority and Regional Transport Authority**

. [Sections 98(5) and 96(2)(xxxiii)] - (1) The State Transport Authority may by a general or special resolution passed in its meeting, delegate all or any of its powers under these rules to its Chairman: Provided that the aforesaid powers may also be delegated in the aforesaid manner to the Secretary of the State Transport Authority who shall exercise these powers only when the Chairman is away from the headquarters of the authority. (2) [Sections 68(5) and 96(2)(xxxiii)] - The Regional Transport Authority may delegate all or any of its powers to the Commissioners of the Divisions, Deputy Commissioners of the Districts or any other Officer of the Motor Vehicles Department by passing a general or special resolution : Provided that the Regional Transport Authority may by general or special resolution passed in its meeting, delegate its following powers to its Chairman, subject to the conditions mentioned therein, namely :- (i) The powers of permitting the transfer of permit under sub-section (2) of Section 82: Provided that this power is exercised after full enquiry and after full satisfaction about the contents of the application made for transfer of permit. (ii) the powers of granting replacement of vehicles under Section 83; (iii) the powers of granting temporary permits under Section 87; and (iv) the powers of granting countersignatures of permit under Section 88: Provided that the aforesaid powers may also be delegated to the Secretary of the Regional Transport Authority in the aforesaid manner who shall exercise these powers only in the case when the Chairman is away from headquarters of the authority and a reference to him will involve of delay which in the circumstances is unreasonable: Provided further that the aforesaid powers may also be

delegated to the Assistant Secretary of the Regional Transport Authority in the aforesaid manner who will exercise these powers only in the case when both Chairman and the Secretary are away from the headquarters of the authority and a reference to either of them will involve an amount of delay: Provided further that any order passed by the Assistant Secretary in the capacity of delegated authority the orders so passed shall be got confirmed from the Secretary of the Regional Transport Authority concerned. (3) A Regional Transport Authority may delegate its powers of issuing a duplicate permit or parts of a permit, as the case may be, under these rules to its Secretary or Assistant Secretary in the manner as specified in sub-rule (1).

## **Chapter VII**

### **Special Provisions Relating to State Transport Undertakings**

#### **123. Particulars of the Scheme**

. [Sections 99 and 107(e)(a)] - The proposal regarding a scheme formulated under section 99 shall be in the form of a memorandum and shall contain the following particulars :- (i) name of the State Transport Undertakings; (ii) area or route proposed to be covered under the scheme along with the full details of such area or route in the form of an annexure appended thereto; (iii) purpose of the scheme; (iv) number of service proposed to be operated in such area or on such route; (v) Whether the scheme is to the exclusion, complete or partial of other persons or otherwise; and (vi) in case of partial exclusion of other persons, - (a) the extent of the same in favour of the State Transport Undertakings; and (b) mode of grant of remaining services to be operated by other persons or otherwise.

#### **124. Publication of the scheme**

. [Sections 99 and 107] - The proposal regarding a scheme shall be published in the official Gazette as well as in one newspaper in Punjabi language having circulation in the area of route covered by the scheme and in newspaper in the English language with sufficient circulation in the State of Punjab for the general information of the public and for inviting objections as required under Section 100.

#### **125. Manner of filing objections**

. [Sections 99 and 107] - The objections in terms of the sub-section (1) of section 100 shall be filed through a communication addressed to the Secretary to the Government of Punjab, Department of Transport, with a copy to the Chairman, State Transport Authority and the State Transport Undertakings under registered post within a period of thirty days as specified in the said sub-section (1).

## **126. Manner of consideration and disposal of objections**

. [Sections 99 and 107] - (1) The State Transport Undertakings concerned shall forward its comments with regard to the objections received under rule 125 to the Chairman, State Transport Authority, as well as to the Secretary to the Government of Punjab, Department of Transport, within fifteen days after the expiry of the last date fixed for the receipt of such objections.(2)The Chairman of the State Transport Authority shall consider the comments of the State Transport Undertaking received under sub-rule (1) and shall give his views thereon to the Secretary to the Government of Punjab, Department of Transport, within a period of ten days from the receipt of comments of the State Transport Undertaking.(3)On receipt of the views of the Chairman of the State Transport Authority, in terms of sub-rule (2), the Government shall consider and dispose of the objections after giving an opportunity of being heard in the matter to the objector or his representative and the representative of the State Transport Undertaking and it may thereafter either approve or modify the scheme.

## **127. Publication of the scheme**

. [Sections 99 and 107] - The approved or modified scheme as the case may be, under sub-rule (3) of rule 126 shall be published in the Official Gazette and also in a newspaper in the Punjabi language having circulation in the area or route covered by the scheme.

## **128. [ Application and mode of grant of permit to State Transport Undertakings and other persons.] [Substituted vide Punjab and Haryana Notification No. G.S.R.6/C.A.59/88/Ss. 111, 71 and 96/Amd. (14)/2001, dated 15.1.2001.]**

(1)For securing a stage carriage permit in respect of a notified area or notified route in pursuance of an approved transport scheme under section 99 of the Act, State Transport Undertaking may make an application to the Regional Transport Authority concerned in the relevant form specified under rule 62 alongwith relevant documents specified under rule 63 of Punjab Motor Vehicles Rules, 1989 as and when the same are invited through public notice :Provided that the State Transport Undertaking may make an application for the issue of a stage carriage permit on Inter-State or Monopoly routes at any time.Provided further that in case the notified area or notified route falls within the jurisdiction of more than one Regional Transport Authority, the application shall be made to the Regional Transport Authority in whose jurisdiction major portion of the area or route lies and that Regional Transport Authority shall transmit the same to the State Transport Authority for consideration with its comments thereon.(2)(a)An application by a private operator for the grant of a stage carriage permit shall be made in the form specified under rule 62 alongwith relevant documents specified in rule 63 of Punjab Motor Vehicles Rule, 1989 within such time as may be indicated in the notice inviting applications.(b)The substance of application received in response to the notice referred to in clause (a) shall be published at the expense of the applicants for the information of all concerned and for inviting objection, if any, and the same shall be considered alongwith the applications on a date to be fixed and notified to all concerned by the Regional

Transport Authority or State Transport Authority, as the case may be.(3)The fee payable in respect of the application for the grant of permits in terms of sub-rules (1) and (2) shall be as specified in rule 67.(4)The fees for grant of permit under this sub-rule shall be as specified in rule 68 and 69, as the case may be.(5)The applicant or allottee of stage carriage permit shall, within three months of the sanction of the permit by the Regional Transport Authority or State Transport Authority or such longer period as may be specified by the Authority but not more than six months, produce the certificate or registration of the vehicle before the Authority so that the particulars of registration of the vehicle may be entered in the permit.(6)No permit shall be issued unless the registration mark of the vehicle to which it relates has, if the form of permit so requires, been entered therein in the event of any application or allottee failing to produce the certificates of registrations within the specified period, the Authority shall revoke the sanction of the permit.

## **129. Manner of services of orders**

. [Sections 99 and 107] - The orders of the State Transport Authority, or, as the case be, Regional Transport Authority concerned under sub-section (2) of section 103 shall be served under registered post or through notice published in a newspaper in the Punjabi language having circulation in the area covered by the scheme.

## **Chapter VIII**

## **Construction, Equipment and Maintenance of Motor Vehicles**

### **130. General**

. [Section 111] - (1) No person shall use and no person shall cause or allow to be used or to be in any public place, any motor vehicle which does not comply with the rules under this Chapter and the provisions contained in Chapter V of the Central Rules or with any order hereunder made by the State Transport Authority.(2)Nothing in this rule shall apply to a motor vehicle which has been damaged in an accident while at the place of the accident or to a vehicle so damaged or otherwise defective while being removed to the nearest reasonable place of repair or disposal:Provided that where a motor vehicle can no longer remain under the effective control of the person driving, the same shall not be used in any public place, except by towing.

### **131. Rear mirror**

. [Section 111] - Every motor vehicle other than a road roller and other vehicle specially constructed or adapted for the construction or maintenance of roads shall be fitted either internally or externally, with a mirror so placed as to enable the driver to be or become, aware of the presence, in the rear of any other vehicle the driver of which is desirous of passing such motor vehicles.

## **132. Dangerous projections**

. [Section 111] - (1) No mascot or other similar fitting or device shall be carried on any motor vehicle other than a road roller or other vehicles specially constructed or adapted for the construction or maintenance of roads registered in India in any position where it is likely to strike any person with whom the vehicle may collide unless the mascot is unlikely to cause injury or any person by reason of any projection thereon. (2) No motor vehicle shall be permitted to be used which is so constructed that any axle, hub or hub cap projects laterally more than 102 millimeters beyond the rim of the wheel to which it is attached, unless the axle, hub or hub cap does not project laterally beyond the body or wings of the vehicle and is provided with an adequate guard.

## **133. Wind screen wiper**

. [Section 111] - An efficient automatic wind screen wiper shall be fitted to every motor vehicle which is so constructed that the driver cannot be opening the wind screen or otherwise obtain an adequate view to the front of the vehicle without looking through the wind screen.

## **134. Springing**

. [Section 111] - Every motor vehicle and every trailer drawn hereby other than a road roller or other vehicles specially constructed or adopted for the construction or maintenance of roads shall be equipped with suitable and sufficient means of springing adequately maintained in good and sound condition between the road wheels and the frame of the vehicle : Provided that this rule shall not apply to :- (a) any tractor not exceeding 4,536 kilograms in weight unladen if all the unsprung wheels of the tractor are fitted with pneumatic tyres; (b) any land locomotive, land tractor, land implement, agricultural trailer or any trailer used solely for the haulage of felled trees; and (c) vehicles designed for use in works or in private premises and used on a road only in passing from one part of the works or premises to another or to works or premises within a distance of four kilometres.

## **135. Cars fitted with left hand steering control**

. [Section 111] - A motor car fitted with left hand steering control shall exhibit the words 'Left Hand Drive' at a conspicuous place on its rear on a plain plate or a plain surface of the vehicle in red colour on white background, each letter being not less than thirty five millimetres in height and of uniform thickness of thirteen millimetres.

## **136. Wings**

. [Section 111] - (1) Every motor vehicle except a locomotive, tractor, trailer or a road roller or other vehicles especially constructed or adapted for construction or maintenance of roads shall, unless adequate protection is afforded by the body of the motor vehicle, be provided with wings or other similar fittings to catch, so far as practicable, mud or water thrown up by the rotation of the wheels. (3) The rear wheels of every trailer except a trailer drawn by locomotive shall be provided

with wings as aforesaid.

### **137. Side car wheel**

. [Section 111] - Every side car attached to a motor cycle shall be so attached at the left hand side of motor cycle that the wheel thereof is not wholly outside perpendicular planes at right angles to the longitudinal axis of the motor cycle passing through the extreme projecting points in front and in the rear of the motor cycle.

### **138. Communication with driver**

. [Section 111] - [(1) Every transport vehicle, whether for the use of the passengers or the goods or the persons carried in a vehicle owned by an educational institution in which the driver's seat is separated from the passengers or the goods or the persons compartment by a fixed partition, which is not capable of being readily opened, shall be furnished with efficient means to enable the passengers, persons, conductor or the cleaner who shall be seated at the back in such compartment to give signal to the driver when the former notices a faster vehicle approaching the one in which he is travelling.] [Substituted vide Punjab Government Notification No. G.S.R. 45/C.A. 50/88/P. 111/Amd. (11)/2000, dated 19.5.2000.](2)Sub-rule (1) shall not apply to :-(i)Petrol tank lorries;(ii)the vehicle fitted with tanks on the entire chassis;(iii)the motor vehicles used by the local authorities for the carriage of refuse.(2)Every goods carriage or tractor trailer combination shall be furnished with efficient means of communication to enable the cleaner or conductor to signal the driver to stop the vehicle or to caution to allow passage for faster moving vehicle. The connection of the communication bell shall be of adapter and socket type so that the communication bell could be connected and disconnected while coupling and decoupling the trailer.

### **139. Restriction on painting**

. [Section 111] - (1) No motor vehicle shall be painted to olive green colour :Provided that any military motor vehicle purchased as Military disposal shall be repainted with a colour other than olive green before registration under the Act and such repainted colour shall conform to the colour specification, if any, laid down in these rules as applicable to a class or classes of motor vehicles.(2)The motor vehicles belonging to an Educational Institution :-(i)shall be painted in light blue or sky blue colour with a 254 mm. wide strip of dark blue paint going all around the body 178 mm. below the windows.(ii)the crest of the institutions shall be painted below the dark blue strip in white colour on both sides of the vehicle between the rear and the front wheels; and(iii)the name of the institution shall be written on the front side either above or below the wind screen according to the space available.(3)No motor-cycle shall be painted in yellow colour except those belonging to the Police organisation of the State.

### **140. Special marks to be exhibited on a stage carriage when it is used as a contract carriage**

. [Section 111] - (1) No stage carriage or vehicle forming part of a service of stage carriage shall be used as a contract carriage unless a board is affixed on each side of the vehicle showing that it is for the time being in use as such and not as a stage carriage.(2)The boards required by the preceding sub-rule shall exhibit the words 'ON CONTRACT' in red letters on a white ground, the letters being of a size not less than that specified for a numeral of a registration mark and shall be affixed in a prominent and unobscured position at or near roof level.(3)The board required by sub-rule (1) shall be affixed before the commencement of any trip for which the vehicle is being used as a contract carriage and shall be kept affixed throughout the whole of the trip and the boards or marks indicating the route or routes on which the vehicle is operated at other times shall be removed or covered up throughout the trip.

## **141. Special requirements for public service vehicle**

. [Section 111] - (1) Every public service vehicle, and all parts thereof including paint work or varnish, shall be maintained in a clean and sound condition and the engine mechanism and all workings parts in reliable working order.(2)Every public service vehicle shall carry a first-aid box with glazed front of dimensions suitable to accommodate the following articles, namely :-(i)leaflet containing first aid instructions;(ii)set of ordinary splints (consisting of six splints with four iron sockets);(iii)four triangular bandages;(iv)3 x 2½ packet surgeons lint;(v)sterilised cotton wool two in number, of twenty-five grams packets;(vi)sterilised fingers dressing twenty-four in number;(vii)sterilised hand or foot dressing twelve in number;(viii)sterilised body dressing three in number;(ix)sterilised burn dressing :- (i) two in number of small size;(ii)two in number of large size;(x)two eye pads;(xi)one card safety pins;(xii)one pair scissors;(xiii)one spool plaster twenty-five millimetres;(xiv)one medicine tumbler.(xv)antiseptic cream containing 0.5 per cent of centrimide BP in non-greasy base.(xvi)one bottle spirit surgical;(xvii)4 bottles Sal Volatile;(xviii)four small tourniquet;(xix)empty bottle fitted with cork and camel hair brush for every drops;(xx)one pad splinter forceps; and(xxi)medicine glass of 75 CCs.

## **142. Measure of stability of vehicles**

. [Section 111] - (1) The stability of double decked public service vehicle shall be such that when loaded with weight of 59 kilograms per person placed in correct relative position to represent the driver and conductor, if carried and full complement of passengers of the upper deck only if the surface on which the vehicle stands were tilted either side to an angle of twenty-eight degrees from the horizontal point at which overturning occurs would not be reached.(2)The stability of a single decked public service vehicle other than motor cab shall be such that under any conditions of load, at an allowance of 73 kilogrammes for every passenger for which the vehicle is registered if the surface on which the vehicle stands were tilted to either side to an angle of thirty-five degrees from the horizontal the point at which overturning occurs would not be reached.(3)For the purpose of conducting tests of stability the height of any stock used to prevent a wheel of the vehicle from slipping sideways shall not be greater than two-thirds of the distance between the surface upon which the vehicle stands before it is tilted, and that part of the rim of that wheel which is the nearest to such surface when the wheel is loaded in accordance with the requirements of this rule.

### 143. Seating space

. [Section 111] - (1) In every public service vehicle other than a motor cab there shall be provided for each passenger a reasonably comfortable seating space of not less than 375 millimetres square in the case of an ordinary vehicle and 450 millimetres square in the case of a deluxe vehicle, the seats measured on straight lines along and at right angles to the front of each seat, and, - (a) when the seats are placed along the vehicle, the backs of the seats on the side shall be at least 1.37 metres distant from the backs of the seats on the other side; (b) when the seats are placed across the vehicles and are facing in the same direction there shall be everywhere a clear space of not less than 68.5 centimetres between the backs of the seats; (c) when seats are placed across the vehicles and are facing each other there shall be everywhere a clear space of not less than 1.25 metres, between the backs of facing seats; (d) where seats are placed in such a manner that one row is alongside the vehicle and the other rows of seats across the vehicle, the clear space between the front and of the longitudinal seats and the nearest part of the transverse seats shall not be less than 450 millimetres; and (e) minimum leg space shall not be less than 254 millimetres in the case of an ordinary vehicle and 380 millimetres in the case of a deluxe vehicle: Provided that for a deluxe vehicle, the following additional specifications shall also apply, namely :- (i) the seats and back rests will be well sprung; and (ii) arms and head rests will be provided. (2) The back of all seats shall be closed to a height of 400 millimetres above seats level: Provided that in the case of a single decked vehicle the State Transport Authority may specify the measurements within the above limits to which public service vehicles or a particular type of public works vehicle, shall conform in specific areas or on hill roads : Provided further that if the Government is satisfied that a particular vehicle or class of vehicles, having the internal height or head room measured along the centre of the vehicle from the top of the floor boards or battens to the underside of the roof supports in excess of the height specified in this rule, is suitable for carrying out any work in furtherance of a public purpose, the Government may, by notification in the Official Gazette, exempt such vehicle or class of vehicles from the provisions of this rule either generally or in such areas or on such routes subject to such conditions, if any as may be specified in the notifications.

### 144. Driver's seat

. [Section 111] - (1) No public service vehicle shall be driven otherwise than from the right hand side of the vehicle. (2) On every public service vehicle space shall be reserved for the driver's seat such as to allow him to exercise full and unimpeded control of the vehicle and in particular :- (a) the part of the seat against which the driver's back rests shall not be less than 280 millimetres from the nearest point on the steering wheel and that the seat shall be so constructed as to be adjustable in such a way that the distance is increased 350 millimetres, the driver's seat shall be constructed as to permit an up and down adjustment in addition to the fore and after adjustments mentioned herein. (b) the width across the vehicle shall not be less than 680 millimetres and shall extend to the left of the centre of the steering column, in no case less than 250 millimetres and so that a line drawn parallel to the axis of the vehicle through the centre of any gear lever, brake lever, or other device to which the driver has to have frequent access lies not less than 50 millimetres inside the width reserved for the driver's seat; and (c) in the case of a public service vehicle other than a motor cab, the space reserved in accordance with clause (b) shall be at the left hand and be enclosed with a rigid wooden

or other suitable partition to a height not less than 300 millimetres above the seat and continued forward of the seat at an adequate height above the floor of the vehicle.(3)No public service vehicle shall be so constructed that any person may sit or any luggage may be carried on the right hand side of the driver.(4)Every public service vehicle shall be so constructed that save for the front pillar of the body, the driver shall have a clear vision both to the front and through an angle of ninety degrees to his right hand side. The front pillar of the body shall be so constructed as to obstruct the vision of the driver to the least possible extent.(5)The State Transport Authority, may by order, in writing, direct that until such time as the vehicles have been taken off the road after having lived their lives nothing in this rule in regard to and consequent upon the provisions requiring that the vehicle shall be driven from the right hand side shall apply to a public service vehicle or a specified class of public service vehicle fitted with left hand steering control and obtained through the Disposal Organisation of the Central Government.(6)Where a Registering Authority registers a public service vehicle in respect of which, or belonging to a class in respect of which an order under sub-rule (5) has been made, it shall note in the certificate of registration the fact that nothing in this rule in regard to and consequent upon the provision requiring that the vehicle shall be driven from the right hand side shall apply to the vehicle.

## **145. Gangway**

. [Section 111] - (1) In every public service vehicle, the entrance to which is from the front or the rear there shall be a gangway along the vehicle and, -(a)where seats are placed along the sides of the vehicle there shall be as gangway a clear space of not less than 60 centimetres measured between fronts of the seats; and(b)where seats are placed across the vehicle there shall be as gangway a clear space of not less than 300 millimetres upto a height of 760 millimetres and not less than 380 millimetres above 760 millimetres from the floor level and where standing passengers are allowed, there shall be as gangway, a clear space of not less than 500 millimetres in width a height of 760 millimetres from the floor level.(2)Where the vehicle has seats across the full width of the body with separate doors to each seat, a gangway from front to rear of the vehicle shall not be required.

## **146. Limit of seating capacity**

. [Section 111] - (1) Notwithstanding anything contained in these rules, no public service vehicle other than a motor cab, shall be registered for a number of passengers in excess of the number obtained by subtracting 118 kilogrammes from the difference in kilogrammes between the registered laden and unladen weight of the vehicle and dividing the resulting figures by 160 in the case of a single decked vehicle and 130 in the case of a double decked vehicle or for such number of passengers that when the vehicle is loaded in normal manner that axle weight of any axle will not exceed the registered axle weight for that axle.(2)In addition to the number of persons permitted to be carried in a public service vehicle. -(i)a child of not more than twelve years of age shall be reckoned as a half; and(ii)a child of not more than three years of age shall not be reckoned.

## 147. Head Room

. [Section 111] - Every public service vehicle other than a motor cab shall have the following internal height or head room measured along the centre of the vehicle from the top of the floor boards or battens to the underside of the roof supports : (a) in the case of a single decked vehicle with a permanent top not less than 1.4 metres and not more than 1.9 metres; (b) in the case of a single decked vehicle with a movable hood not less than 1.4 metres; (c) in the case of a double decked vehicle such measures as the Government may determine in each particular case : Provided that in the case of a single decked vehicle the State Transport Authority may specify the measurement within the above limits to which public service vehicles shall conform in specific or on hill roads.

## 148. Width of doors

. [Section 111] - (1) Every entrance and exit of a public service vehicle other than a motor cab shall be at least 530 millimetres in width and of sufficient height. (2) Every entrance and exit shall be capable of being opened outwards by one operation of the locking mechanism. (3) Door handles or levers to door catches shall be so designed and fitted that they are not liable to be dislodged or to be operated accidentally. (4) All doors shall be so designed as to be readily opened in case of need from inside and outside of the public service vehicle. (5) Every public service vehicle shall have an emergency exit separate from the entrance door. (6) All emergency exit shall, - (i) be clearly marked 'EMERGENCY EXIT' in bold letters on the inside; (ii) be fitted with doors to open outwards; (iii) be so designed as to be opened from inside and the outside of the vehicle; (iv) be equipped with a fastening device which can be quickly released but so designed as to offer protection against accidental release; (v) be easily accessible to persons of normal height standing on the ground outside the vehicle; (vi) be easily accessible to the passengers; (vii) be such that no seat or other object placed in the vehicle will restrict the passage to the emergency door; (viii) be located either at the back or on the right hand side of the vehicle; and (ix) have no step leading to it. (7) In the public service vehicle plied in the urban area where the turnover of passengers is large, the number of stops is great and the duration of stop is very short, different opening may be provided for entrance and exit in addition to the emergency and driver's exit. (8) There shall be unobstructed accessibility from every seat to at least one exit: Provided that this rule shall not apply to any seat along with the driver, if there is access to such seat by an entrance other than the driver's entrance; and (9) There shall be direct access to the driver's seat either from the off side of the vehicle or by means of a passage, which shall not be smaller in dimensions than the one specified from the gangway.

## 149. Grab rail

. [Section 111] - In a public service vehicle other than a motor cab, there shall be fitted to every entrance or exit except an emergency exit, a grab rail to assist passengers in boarding or alighting from the vehicle.

## 150. Steps

. [Section 111] - (1) In every public service vehicle other than a motor cab, the top of the tread of the lowest step for any entrance or exit, other than an emergency exit, shall not be more than 600 millimetres or less than 425 millimetres above the ground when vehicle is empty. Fixed steps shall not be less than 225 millimetres wide and shall be in no case project laterally beyond the body of the vehicle unless they are so protected by the front wings or otherwise that they are not liable to injure pedestrians. The shortest distance between any step well and vertical plane passing throughout the front edge of a seat shall not be less than 225 millimetres. (2) In the case of a double-decked vehicle, - (a) the risers of all steps leading from the lower to the upper deck shall be closed and no unguarded aperture shall be left at the top landing board; (b) all steps leading from the lower to upper deck shall be fitted with non-slip treads; (c) the horizontal distance from the nearest point of the riser of the top step to the vertical line passing through the nearest point of the seat opposite to the top tread of the staircase excluding any grab rail which does not project more than 75 millimetres from back of the seat, shall not be less than 660 millimetres; and (d) the outer stringer of an outside staircase shall be so constructed or a band shall be so placed, as to act as a screen to persons ascending or descending and the height of the outer guard rail shall not be less than one metre above the front of the tread of each step.

## 151. Cushions

. [Section 111] - Where the seats of public service vehicle are provided with fixed or movable cushions, the cushions shall be covered with the leather cloth of good quality or other material of such a kind that they are capable of being kept in a clean and sanitary condition.

## 152. Body dimension and guard rails

. [Section 111] - (1) Every public service vehicle other than a motor cab, shall be so constructed that :- (a) in the case of single decked vehicle with an enclosed body, - (i) the height of the body sides from the floor or the height to the sills of the windows, as the case may be shall not be less than 710 millimetres; and (ii) if the height of the sides of the body or the sills of the windows as the case may be above the highest part of any seats is less than 450 millimetres provisions be made by means of guard rails or otherwise to prevent the arms of seated passengers being thrust through and being injured by passing vehicles or the extent to which the side windows or venetians can be lowered in such a way that when lowered their top edge is not less than 450 millimetres above the highest part of any seat; (b) in the case of a single decked vehicle, open sides guards rails shall be provided along the right hand side of the vehicle to prevent any person other than the driver from mounting or alighting from the vehicle on that side; (c) In the case of a double-decked vehicle with an uncovered top deck and the top deck shall be provided with the side and end rails the top of which shall be atleast one metre above the highest part of any seat and the top of the front and back rails shall be atleast one metre above the deck boards or battens and shall follow the chamber of the deck. (2) For the purpose of this rule, seat-back shall not be deemed to be part of the seat.

### **153. Protection of passengers from weather**

. [Section 111] - (1) Every public service vehicle other than a double decked vehicle shall be either constructed with a fixed watertight roof or equipped with a watertight hood that may be raised or lowered as required.(2)Save in the case of uncovered top deck of a double-decked vehicle every public service vehicle shall have suitable windows, venetians or screens capable at all times of protecting the passengers from the weather without preventing adequate ventilation of the vehicle when the screens are made of fabric, the whole of them shall at all times be fastened securely to the vehicle.(3)Where glass windows or venetians are used, they must be provided with effective means to prevent their rattling.(4)There shall be adequate ventilation for both passengers and the drivers without the necessity for opening any main window or wind screen.

### **154. Prohibition on the fitting of mirrors**

. [Section 111] - No mirror or glass-covered pictures shall be fitted inside or the body of any public service vehicle :Provided that nothing herein shall prohibit the fitting of any mirror which may be necessary to enable the driver to obtain a view of the road in the rear of the vehicle or a view of interior of the vehicle.

### **155. Lighting**

. [Section 111] - Every public service vehicle shall be furnished with electric lights adequate to give reasonable illumination throughout the vehicle but of such power or so screened as not to impair the forward vision of the driver.

### **156. Body construction**

. [Section 111] - The body of every public service vehicle shall be so constructed and so fastened to the frame of the vehicle as to comply with such directions as may be issued by the State Transport Authority from time to time.

### **157. Fuel tanks**

. [Section 111] - (1) No fuel tank shall be placed in any public service vehicle under any part of any gangway which is within 60 milimetres of any entrance or exit of a single decked vehicle or the lower deck of a double-decked vehicle.(2)The fuel tank of every public service vehicle shall be so placed that no overflow therefrom shall fall upon any wood work or accumulate where it can be readily ignited. The filling points of all fuel tank shall be outside the body of the vehicle and the filler caps shall be so designed and constructed that they can be securely fixed in position.

## **158. Electric Wires**

. [Section 111] - All electric wires or leads shall be adequately insulated.

## **159. Fire extinguishers**

. [Section 111] - Every public service vehicle shall be equipped with a fire extinguisher of a type specified by the State Transport Authority and it may be inspected at such periods and by such persons as the State Transport Authority may specify.

## **160. Waterproof canvas**

. [Section 111] - Every public service vehicle shall be equipped with waterproof canvas for safe-guarding luggage belonging to the passengers and carried on the roof of the vehicle.

## **161. Locking of nuts**

. [Section 111] - All moving parts of every vehicle and all parts subject to service vibration connected by bolts or studs and nuts shall be fastened by lock nuts or by nuts with efficient spring or lock nuts washers or by castellated nuts and split pins or by some other efficient device so as to prevent them working loose.

## **162. Exhibition of starting and destination stations**

. [Section 111] - (1) The owner of a public service vehicle other than motor cab shall exhibit a board in the manner illustrated in the second schedule to these rules above the driver's seat on the front of the vehicle indicating the starting point and the terminus of the route for which he holds permit. The board shall cover the whole width of the vehicle. The letters of the words indicating the starting point and the terminus shall be in black on a white ground and shall each be not less than 100 millimetres height and twenty millimetres thick at any part. In the case of the public service vehicles which ply in the urban areas the words shall be in English and in all other cases in Punjabi language.(2)The owner of the public service vehicle other than a taxi cab shall exhibit on a black slip, divided into two parts, one showing the trip number and other showing the approved departure time written in white chalk in arabic figures below the board specified in sub-rule (I).

## **163. Floor boards**

. [Section 111] - (1) The floor boards of every public service vehicle shall be strong and so closely fitted or so covered with a suitable material as to exclude as far as possible draughts and dust.(2)The floor boards may be pierced for the purpose of drainage but for no other purpose.

## **164. Spare wheel and tools**

. [Section 111] - (1) Save as otherwise specified by the Regional Transport Authority in respect of the public service vehicles being exclusively plied in the urban areas, every public service vehicle shall at all times be equipped with not less than one spare wheel or rim fitted with a pneumatic tyre in good and sound condition readily inflated and mounted in such a way that it can be readily dismantled and fitted to the vehicle in the place of any one of the road wheels: Provided that it shall not be necessary to have a second spare wheel during the completion of any journey during which the spare wheel has been used. (2) Every public service vehicle shall at all times be furnished with an efficient jack and other tools necessary to change a wheel or rim and tyre and with the equipment necessary to repair a puncture, including the following, namely :-(i) spanners to fit every nut on the vehicle; (ii) one screw driver; (iii) one hammer; (iv) one pair pliers; (v) two tyre levers; (vi) tyre repair outfit; (vii) tyre pump; (viii) wheel jack; (ix) one spare headlight bulb and one spare rear lamp bulb; and (x) a supply of spare fuses. (3). Every Transport vehicle other than a motor cab shall be furnished with suitably fashioned block attached by chain to the vehicle to be used as a check when the vehicle is halted on a slope.

## **165. Advertisement and other markings on public service vehicles**

. [Section 111] - (1) No advertising device, figure or writing shall be exhibited on any public service vehicle save as may be permitted by the State Transport Authority by general or special order. (2) A public service vehicle, when regularly used for carrying Government mail by or under a contract with the Indian Posts and Telegraphs Department shall exhibit in a conspicuous place upon a plate or a plane surface of the vehicle the words 'MAIL' in read on the white ground, each letter being not less than 100 milimetres in height and of a uniform thickness of 20 milimetres. (3) Save as aforesaid, no motor vehicle shall display any sign or inscription which includes the words 'MAIL'.

## **166. Body and loading platform of goods carriage**

. [Section 111] - (1) The body of every goods carriage including a trailer shall be so fastened to the frame of the vehicle and so constructed as to comply with such directions as may be issued by the State Transport Authority from time to time. The vehicle shall be capable of carrying the load for which it is used without danger or inconvenience to other road users so that the load can be securely packed within the body or platform. (2) Every goods carriage with a trailer and tractor-trailer combination shall be fitted with an electric device so as to cause an alarm by working of a buzzer in the driver's cabin on account of failure of the towing mechanism and decoupling of the trailer.

## **167. Driver's seat of goods carriages**

. [Section 111] - (1) The provisions of rule 144 shall apply to every goods carriage in so far as the seat of driver is concerned.

## **168. Requirements for auto-rickshaw**

. [Section 111] - (1) Every auto-rickshaw shall, -(i)have body either of a station wagon or a box type or hackney carriage type as approved by the State Transport Authority soundly constructed to the satisfaction of the registering authority and shall be securely fastened to the frame of the vehicle and there shall be adequate arrangements for protection of passengers from sun, wind and rain;(ii)have the roof so constructed as to provide protection for passengers from sun and rain and shall be either of metal sheeting or canvas or some other suitable material;(iii)have road clearance not more than 225 millimetres and not less than 150 millimetres;(iv)have floor board not more than 550 millimetres above the surface on which the auto-rickshaw stand;(v)have the driver's seat at least 100 millimetres of clearance from the front panel of the body and a wind screen shall be provided for the driver;(vi)be provided at least 275 millimetres leg space in the case of an auto-rickshaw having seating capacity for four passengers and at least 375 millimetres leg space in the case of an auto-rickshaw having seating capacity for two passengers;(vii)be provided with taxi meter approved by the Bureau of Indian Standards;(viii)be fitted with a bulb horn in addition to electric horn; and(ix)be fitted with a rear view mirror mounted at a suitable place to give a clear unobstructed view of the rear to the driver:Provided that in case of an auto-rickshaw having seating capacity for four passengers the entrance to which is from the front or rear and the seats are placed across the auto-rickshaw there shall be gangway of not less than 300 millimetres.

## **169. Use of flag**

. [Section 111] - No motor vehicle other than vehicles used by dignitaries or officers authorised by the Central Government or Government of Punjab to use distinctive flags shall display such flags or flag rods.

## **170. Use of red lights**

. [Section 111] - No motor vehicle, other than the motor-cars attached with the dignitaries allowed to fly on their motor-cars distinctive flags according to the Flag Code of India and the officers allowed to use distinctive flags by the [Government of Punjab, and such other officers or persons as may be notified by the Government] [Substituted vide Punjab Government Notification No. G.S.R. 34/C.A. 59/88/S. 111/Amd.(10)/2000, dated 17.4.2000.], shall show the red light to the front or other than a read light to the rear:Provided that the provisions of these rules shall not apply to internal lighting of the vehicle or to an amber light displayed by any direction indicator :Provided further that the motor-cars attached with the officers who have been authorised to check vehicles on road shall be fitted with flickering red light.

**170A. [ Inscription of date of first registration on the left hand side of every vehicle.] [Added by Punjab Government Notification No. G.S.R. 95/C.A.59/88/S.111/Amd(6)/99, dated 28.11.1999.]**

- The owner of a motor vehicle shall incise the date of first registration with dimension of not less than 50 millimeters height and ten millimeters thick at a prominent place on the left hand side of the vehicle.

**170B. [ Pollution under Control Certificate.] [Inserted vide Punjab Government Notification No. G.S.R.6/C.A. 59/88/Ss. 111, 71 and 96/Amd. (14)/2001, dated 15.1.2001.]**

(1) All motor vehicles shall carry a pollution under control certificate issued by an authorised testing station under rule 115 of the Central Motor Vehicles Rules, 1989. (2) The State Government will authorise the testing stations after charging a fee as may be specified by the Government to issue pollution under control certificate. The authorised testing stations will issue the pollution under control certificate after charging a fee from the owner of the vehicle, as may also be specified by the Government.

**170C. [ Testing of head light beam and brake system. [Inserted by Notification No. 8/10/91-1T2/2834, dated 6.5.2009 (w.e.f. 17.8.1989).]**

(1) The State Government may authorise a testing station (hereinafter called the prescribed authority), after charging such fee as may be specified by the State Government, for testing head light beam and brake system of a transport vehicle. The prescribed authority shall issue a certificate after testing the head light beam and brake system, if the same fulfills the norms, fixed by the Central Government after charging such fee, as may be specified by the State Government from the owner of the transport vehicle. (2) The owner of the transport vehicle shall produce a certificate, issued by the prescribed authority under sub-rule (1) to the Board of Inspection. Explanation. - For the purpose of this rule, the testing station means a vehicle service station, which the State Government, having regard to the experience, training and ability of the operator of such station and the testing equipment and the testing personnel therein, may specify in accordance with the rules made by the Central Government for regulation and control of such station.]

## **Chapter IX**

### **Control of Traffic**

#### **171. Use of weighing device**

. [Section 138(2)(b)] - (1) No weighing device shall be used for the purposes of section 114, unless it is tested not less than once in every six calendar months by an officer appointed by the Chairman of the State Transport Authority, in consultation with the Controller, Weights and Measures, Punjab. (2) No weighing device shall be installed without the approval of the State Transport Authority. (3) The State Transport Authority while giving approval for the installation of weighing device in terms of sub-rule (2) shall have regard to the following matters, namely :- (a) the interests of the public generally and the efficient functioning of the weighing device; (b) the suitability of site

for installation from the point of view of traffic control;(c)the avoidance of annoyance to persons living or having property in the locality;(d)the suitability of the site of installation in relation to other existing weighing devices in the same area; and(e)any other consideration that may appear to be relevant.

## **172. Restriction on driving with gear disengaged**

. [Section 138(2)(f)] - Within the limits specified in the Third Schedule and elsewhere on any hill marked by traffic sign No. 10 in Part A of the Schedule to the Act, no person shall drive a motor vehicle with the clutch pedal depressed or with any free wheel or other device in operation which frees the engine from the driving wheels and prevents the engine from acting as a brake when the vehicle is travelling down an incline.

## **173. Prohibition on mounting or taking hold of vehicles in motion**

. [Section 138(2)(g)] - (1) No person shall mount or attempt to mount on or dismount from any motor vehicle when the motor vehicle is in motion.(2)No person shall take hold of and no driver of a motor vehicle shall cause or allow any person to take hold of any motor vehicle when in motion for the purpose of being towed or drawn upon some other wheeled vehicle or otherwise.

## **174. Towing**

. [Section 138(2)(g)]- (1) No vehicle other than a mechanically disabled or incompletely assembled motor vehicle or a registered trailer shall be drawn or towed by any motor vehicle.(2)No motor vehicle other than a registered trailer shall be drawn or towed by any other motor vehicle unless there is in the driver's seat of the motor vehicle being drawn or towed a person holding a licence authorising him to drive that type of vehicle or unless the steering wheels of the motor vehicle being towed are firmly and securely supported clear of the road surface by some crane or other device on the vehicle which is drawing or towing it.(3)When a motor vehicle is being towed by another motor vehicle, the clear distance between the rear of the front vehicle and the front of the rear vehicle shall at no time exceed 4.6 metre. Steps shall be taken to render the tow rope or chain easily distinguishable by other users of the road and there shall be clearly displayed on the rear of the vehicle being towed in black letters not less than 75 millimetres high and on a white ground the words "ON TOW":Provided that no person shall be liable to be convicted for the contravention of this sub-rule for failure to display the words 'ON TOW' if the motor vehicle which is towing the other is not a motor vehicle adapted and ordinarily used for the purpose and so long as the vehicle is being towed between the place of the breakdown and the nearest place on the route at which the necessary materials can be obtained.(4)No motor vehicle when towing another vehicle other than a trailer or side car shall be driven at a speed exceeding twenty-five kilometres per hour.

## **175. Traffic aggregation**

. [Section 138(2)(b)] - Where any road or street is provided with foot paths, or tracks reserved for

cycles or specified classes of other traffic, no person shall, save with the sanction of a police officer in uniform, drive any motor vehicle or cause or allow any motor vehicle to be driven on any such foot path or track.

## 176. Projection of loads

. [Section 138(2)(i)] - (1) Nothing shall be placed or carried upon the outside of the roof of a double-decked public service vehicle.(2)No person shall drive and no person shall cause or allow to be driven in any public place any motor vehicle which is loaded in a manner likely to cause danger or injury to any person or in such a manner that the load or any part thereof or anything extends, -(a)laterally beyond the side of the body or beyond a vertical plain in prolongation of the side of the body;(b)to the front beyond the foremost part of the vehicle;(c)to the rear to a distance exceeding [1 metres] [Substituted for '1.2 metres' vide Punjab Government Notification No. G.S.R. 6/C.A. 59/88/Sc. 138 and 212/Amd.(6)/2000 dated 4.1.2000.] beyond the rear most part of the vehicle excluding luggage carrier; and(d)in height by a distance which exceeds [3.8] [Substituted for '3.4' vide Punjab Government Notification No. G.S.R. 6/C.A. 59/88/Sc. 138 and 212/Amd.(6)/2000 dated 4.1.2000.] metres from the surface upon which the motor vehicle rests.(3)The provisions of clause (c) of sub-rule (2) shall not apply to goods carriage when loaded with any pole or other projecting things to long as, -(a)the projecting load falls within the limits of the body of a trailer being drawn by the goods carriage; or(b)the distance by which the pole or other thing projects beyond the rearmost point of the motor vehicle does not exceed 1.8 metres; and(c)there is attached to the rear of such pole or other thing in such a way as to be clearly visible from the rear at all times a white circular disc of not less than 375 milimetres in diameter and at night a lamp in addition to the specified lamps on the vehicle so arranged as to show a red light to the rear.(4)A Regional Transport Authority or its office if so authorised by it may, by an order in writing, in emergent cases, exempt any motor vehicle for such period and subject to such conditions as may be specified, from any or all the provisions of this rule.

## 177. Carriage of dangerous substances

. [Section 138(2)(i)] - (1) Except for the fuel and lubricants necessary for the use of the vehicle, the carriage of goods, of dangerous and hazardous nature to human life, highly inflammable or otherwise dangerous substance shall not be carried on any vehicle, unless it is so packed or the body has been so fabricated as approved by the Controller of Explosives, Government of India or by an officer authorised by him in this behalf that even in the case of an accident to the vehicle it is unlikely to cause damage or injury to the vehicle or persons carried thereon or to any public property.(2)If in the opinion of an officer authorised by the State Transport Commissioner, any vehicle is at any time loaded in contravention of sub-rule (1), he may order the driver or other person incharge of the motor vehicle to remove or repack the carriage of goods of dangerous or hazardous nature to human life as may be specified by the Department of Science and Technology, Government of Punjab otherwise the vehicle or goods shall be liable to be impounded by the Officer so authorised with the help of police authorities of the area.

## **178. Sound signals**

. [Sections 111(2)(b) and 138(2)(i)] - (1) No driver of a motor vehicle shall sound the horn or other device for giving audible warning with which the motor vehicle is equipped or shall cause or allow any other person to do so continuously or to an extent beyond what is necessary to ensure safety. (2) The District Magistrate may, by notification, published in the official Gazette or in one or more newspapers in circulation in the area and by the erection in suitably placed traffic sign No. 7 as set forth in the Fifth Schedule to the Act, prohibit the use by drivers of motor vehicles of any horn, gong, other device for giving audible warning in any area during such hours as may be specified by him in the notification : Provided that when the District Magistrate prohibits the use of any honking or other device for giving audible warning during certain specified hours he shall cause a suitable notice, in English and Punjabi languages to be affixed below the traffic sign setting forth the hours within which such use is prohibited.

## **179. Cut-outs**

. [Section 138(2)(i)] - No driver of motor vehicle shall in any public place make use of any cut-outs or any other device by means of which the exhaust gases of the engine are released save through the silencer.

## **180. Restriction on travelling backwards**

. [Section 138(2)(i)] - No driver of a motor vehicle shall cause the vehicle to travel backward without first satisfying himself that he will not thereby cause danger or undue inconvenience to any person, or in any circumstances, save in the case of a road roller, for any greater distance or period of time which may be reasonably necessary in order to turn the vehicle round.

## **181. Use of lamps when a vehicle is at rest**

. [Section 138(2)(i)] - (1) If within the limit of an urban area a motor vehicle is at rest within the hours during which lights are required, at the left hand side of any road or street or elsewhere in any duly appointed parking place it shall not be necessary for the motor vehicle to exhibit any light save as may be required generally or specifically by the District Magistrate. (2) Outside the limits of an urban area, if a motor vehicle is at rest within the hours during which lights are required in such a position as not to cause danger or undue inconvenience to other users of the road, it shall not be necessary for the motor vehicle to display any lights.

## **182. Dazzling lights**

. [Section 138(2)(i)] - (1) The driver of a motor vehicle shall at all times when the lights of the motor vehicle are in use so manipulate them that danger or undue inconvenience is not caused to any person by dazzle. (2) The District Magistrate may, by notification in the official Gazette and by the erection of suitable notices in the English and Punjabi languages within such areas or in such places

as may be specified in the notifications, prohibit the use of lamps giving a powerful or intense light.

### **183. Visibility of lamps and registration marks**

. [Section 138(2)(i)] - (1) No load or other things shall be placed on any motor vehicle so as at any time to mark or otherwise interrupt vision of any lamp registration mark or other mark required to be carried by or exhibited on any motor vehicle by or under the provisions of the Act, unless a duplicate of the lamp or mark so marked or otherwise obscured is exhibited in the manner required by or under the Act for the exhibition of the marked or obscured lamp or mark. (2) All registration and other marks required to be exhibited on a motor vehicle by or under the provisions of the Act shall at all times be maintained as far as may be reasonably possible in a clear and legible condition.

### **184. Stop sign on road surface**

. [Sections 115 and 138(2)(h)] - (1) When any line is painted on or inlaid into the surface of any road at the approach to a road junction or to a pedestrian crossing or otherwise, no driver shall drive a motor vehicle so that any part thereof projects beyond that line at any time when a signal to stop is being given by a police officer or by means of traffic control lights or by the temporary display of sign No. 3 of the Schedule to the Act. (2) A line for the purposes of this rule shall not be less than 50 millimetres in the width at any part and shall be either in white or yellow colour.

### **185. Special provisions on hill roads**

. [Sections 112, 115 and 138(2)(i)] - On the road enumerated in the Third Schedule to these rules all drivers shall observe the following special rules, namely :- (a) no motor vehicle shall overtake another, except at a place where the whole road is clearly visible for at least 180 metres ahead; (b) When two motor vehicles approach each other in opposite directions at a point where they cannot meet without danger of collision, the vehicle proceeding down hill shall give way to the vehicle proceeding uphill and when such a meeting takes place in a dip or on level stretch of road, the vehicle on the inside of the road, that is, the side from which the hill side sloped upwards, shall give way; (c) the driver while taking turn on every bend and curve shall give horn provided that it shall not be necessary to give a horn at a bend or curve near a hospital if an indication for not giving a horn has been put at that bend or curve.

### **186. Trailers prohibited with motor cycles**

. [Section 138(2)(i)] - (1) A motor cycle with not more than two wheels with or without a side car shall not draw a trailer. (2) No motor vehicle shall draw trailer exceeding 227 kilogram in weight unladen or 1.5 metres in overall width except with permission of the State Transport Authority.

## **187. Prohibition of attachment of trailer to certain vehicle**

. [Section 138(2)(i)] - No motor vehicle which exceeds 9.14 metres in length shall draw a trailer :Provided that this rule shall not apply to any motor vehicle being towed in consequence of disablement.

## **188. Attendants on trailer**

. [Section 138(2)(i)] - (1) When a trailer is or trailers are being drawn by a motor vehicle there shall be carried in the trailer or trailers or on the drawing motor vehicle, as the case may be, the following persons, not being less than eighteen years of age and competent to discharge their duties that is to say, -(a)if the brakes of the trailer or trailers cannot be operated by the driver of the drawing motor vehicle or by some other person carried on that vehicle, -(i)One person on every trailer competent to apply the brakes; and(ii)one person placed at or near the rear of the last trailer in train such a position as to be able to have a clear view of the road in rear of the trailer to signal to the drivers of overtaking vehicles and to communicate with the driver of the drawing motor vehicle.(b)if the brakes of the trailer can be operated by the driver of the drawing motor vehicle or by some other person carried on that vehicle, such other person in addition to the driver shall be carried on their vehicle and one person on the last trailer in the train in accordance with the provisions of sub-clause (ii) of clause (a).(c)if the trailer is or trailers are being drawn by a locomotive, notwithstanding that the brakes of the trailer or trailers can be operated by the driver or some other person on the locomotive, not less than one person on each trailer and not less than two persons on the last trailer in train, one of whom shall be the person required by provisions of sub-clause (ii) of clause (a).(2)This rule shall not apply, -(a)to any trailer having not more than two wheels and not exceeding 771 kilograms in weight laden when used singly and not in a train with other trailers;(b)to the trailing half of an articulated vehicle;(c)to any trailer used solely for carrying water for the purposes of the drawing vehicle when used singly and not in a train with other trailers;(d)to any agricultural or road-making or road repairing or road cleansing implement drawn by a motor vehicle;(e)to any trailer specially constructed or adapted for any purposes upon which an attendant cannot safely be carried; or(f)to any close trailer specially constructed for any purpose and specifically exempted from any or all of the provisions of this rule by an order, in writing, made by the registering authority to the extent so exempted.

## **189. Distinguishing mark for trailers**

. [Sections 65(2)(g) and 138(2)(i)] - (1) No person shall drive or offer or cause to be driven in any public place any motor vehicle to which a trailer is or trailers are attached unless there is exhibited on the back of the trailer or of the last trailer in train, as the case may be, a distinguishing mark in the form set in the diagram contained in the Third Schedule to these rules in white colour on a black ground.(2)The mark shall be kept clear and unobscured and shall be so fixed to the trailer that, -(a)the letter on the mark is vertical and easily distinguishable from the rear of the trailer;(b)the mark is either on the centre or to the right hand side of the back of the trailer; and(c)no part thereof is at a height exceeding 1.2 metres from the ground.(3)This rule shall not apply to the cases referred to in clauses (a), (b), (c), (d) and (e) of sub-rule (2) of rule 188.

## **190. Use of trailers**

. [Section 138(2)(i)] - (1) No trailer other than the trailing half of an articulated vehicle shall be attached to a public service vehicle.(2)Save in the case of a trailer being used for the carriage of troops of police or in the case of a tractor trailer used for agricultural purposes and carrying not more than six persons including the attendant, no person other than the attendant or attendants as required by rule 188 shall be carried on a trailer.

## **191. Crossing Unmanned Railway level crossing**

. [Sections 11 and 138(2)(i)] - On the approach of any Railway crossing guarded or unguarded, the driver of every motor vehicle shall stop the vehicle and shall not enter the Railway crossing until he has made himself sure that the Railway track on both sides is clear.

## **192. Traffic signals**

. [Sections 119 and 138(2)(i)] - Every driver of a motor vehicle shall comply with the traffic signals specified in the Fourth Schedule to these rules given to him by any police officer for the time being engaged in the regulation of traffic in any public place.

## **193. Use of protective head gear**

. [Sections 129 and 138(2)(i)] - Every person driving or riding a motor cycle of any class or description shall wear a protective headgear approved by the Bureau of India Standards from time to time :Provided that in addition to the persons exempted under the provisions of section 129, persons who are medically advised by a Chief Medical Officer not to wear such a headgear or a Sikh woman shall not be required to wear a headgear.

# **Chapter X**

## **Halting of Motor Vehicles in Public Places Control of Stands**

### **194. Halting of stage carriage**

. [Sections 96(2)(xxi), (xxii), 117 and 138(2)(e)] - (1) No Stage carriage shall be halted in an urban area on a notified bus stop for more than five minutes consecutively for the taking up or setting down of passengers or at any time during the course of a run except at a bus stand.(2)The District Magistrate may direct that in an urban area, in any street or any road notified by him in this behalf (the notification made through the public proclamation or in such other manner as the District Magistrate may deem fit) no stage carriage shall take up or set down passengers except at a place appointed by him at a bus stop or at a bus stand.(3)No stage carriage shall be halted at a bus stop for longer than it is necessary to take up such passengers as are waiting when the vehicle arrives and to set down such passengers as wish to alight.(4)If the run of any stage carriage starts or finishes in an

urban area, it shall, unless, the District Magistrate specially exempts the vehicle from the provisions of this rule, be begun from or be ended at a bus stand.(5)Where a stage carriage is exempted from the provisions of the preceding sub-rule, it shall be a condition of the exemption that no passenger shall be taken up or set down, as the case may be, at any point within a distance of 183 metres or such other distance as may be named in the order of exemption from the place where the stage carriage is garaged or parked at the start or finish of the run.(6)In exempting a stage carriage from the provisions of sub-rule (4), the District Magistrate may make it a condition that the first passengers will be taken up, or the last passengers be set down, at a particular bus stop fixed for the purpose in the order of exemption.(7)An order of exemption made under sub-rule (4) shall remain in force for one year or such lesser period as the District Magistrate may direct and may be cancelled or modified by him at his discretion at any time.(8)A Regional Transport Authority may attach to a stage carriage permit, a condition that when the vehicle is not in use, it shall not be halted at any public place except at a bus stand or at a parking place appointed under rule 196 :Provided that the aforesaid provisions shall not apply to a stage carriage when it is being used as a contract carriage or as a vehicle for the carriage of goods without passengers; provided that a board has been affixed to the vehicle bearing the inscription "ON CONTRACT" or "CARRYING GOODS ONLY", as the case may be; provided further that the particulars of the hiring have been entered in the log book of the vehicle.

## **195. Halting of contract carriages**

. [Sections 96(2)(xxi) and 138(2)(e)] - A Regional Transport Authority may impose on the use of any contract carriage or any stage carriage when the same is being used as a contract carriage a condition that the vehicle shall not be halted for more than ten consecutive minutes in any public place in an urban area save at parking place or in the case of a motor cab at taxi stand duly appointed under rule 196.

## **196. Parking Places**

. [Sections 96(2)(xxi) and 138(2)(e)] - Subject to the provisions of rule 201, a District Magistrate, may, subject to the control of the Regional Transport Authority concerned and after consultation with the Superintendent of Police and the local authority having jurisdiction in the area concerned, make orders appointing parking places and stands for motor vehicles under section 117 :Provided that no place which is privately owned shall be appointed as a parking place or a stand except on application by or with the written consent of the owner.

## **197. Taxi Stands**

. [Sections 96(2)(xxi) and 138(2)(e)] - (1) At every taxi stand appointed under rule 1996. -(a)the drivers shall station their motor cabs in the stand in the order in which they arrive, the motor cab which has been waiting longest being stationed in the front position and the motor cabs being moved up as vacancies occur :(b)the drivers of the first two motor cabs shall stay by their vehicles ready to be hired by any person;(c)no motor cab engaged for some future time shall be kept in the taxi stand unless the driver is willing to accept any intermediate hiring that may be offered;

and(d)no disabled motor cab shall be kept in taxi stand unless the disablement can be and is intended to be remedied forthwith.(2)The District Magistrate may in the case of any taxi stand relax any or all the provisions contained in sub-rule (1).(3)Nothing in sub-rule (1) shall render it obligatory on a person wishing to hire a motor cab from a taxi stand to take the first cab or restrict his freedom to choose whichever vehicle he prefers.

## **198. Involuntary halts**

. [Sections 122 and 138(2)(e)] - No person shall be liable to be punished for halting a vehicle in contravention of any of the rules contained in this chapter, if the stopping of vehicle was occasioned by a mechanical defect or by any other cause beyond the control of the driver or person incharge :Provided that the driver or other person incharge shall continue to be liable for contravening section 122, unless all practicable steps have been taken to dispose of the vehicle in such a way that it shall not cause danger, obstruction or inconvenience to other users of the road.

## **199. Prohibition on the use of horn**

. [Section 138(2)(i)] - Except to avoid an imminent accident, no person shall sound the horn or other audible warning device of any motor vehicle within the limits of a bus stand, parking place or taxi stand.

## **200. Classification of Bus Stands**

. [Sections 96(2)(xxii) and 138(2)(e)] - (1) Bus Stands shall be classed as follows :-A - Bus Stands, being General Bus Stands administered directly by the State Transport Undertaking;B - Bus Stands being General Bus Stands entrusted for management, under arrangements made by the District Magistrate, to a private person or company;C - Bus Stands, being General Bus Stands administered by a Municipal Committee or other local authority either directly or through the agency of a contractor;D - Bus Stands, or Company Bus Stands.(2)Every order made by the District Magistrate under rule 196 shall show clearly the class of stand which is allowed to be established and shall be in the respective Form that is Form Stand 'A', Form Stand 'B', Form Stand 'C' or Form Stand 'D' and shall be notified by publication in one or more newspapers in circulation in the District or by such other means as the District Magistrate may consider appropriate.(3)The District Magistrate shall from time to time fix the fees or the maximum fees payable at every stand.

## **201. Considerations governing the location of stands**

. [Sections 96(2)(xxii) and 138(2)(e)] - In deciding whether to grant permission for the use of any place as a stand, the District Magistrate shall have regard to the following matters, namely :-(a)the interests of the public generally and the efficient organisation of transport system;(b)the suitability of the site from the point of view of traffic control;(c)the avoidance of annoyance to persons living or having property in the locality;(d)the suitability of the site in relation to other stands in the same town; and(e)any other consideration that may appear to be relevant.

## 202. Conditions applicable to all stands

. [Sections 96(2)(xxii) and 138(2)(e)] - (1) Every order permitting a place to be used as stand under rule 196 shall be subject to the following conditions, namely :-(a)that the land and building of the stand shall at all times be kept clean and in a goods state of repair;(b)that the stand shall be administered in a seemly and orderly manner;(c)that the person, transport company, transport firm, transport society or authority permitted by the District Magistrate to use the place as a stand shall take all possible precautions to ensure that no breach of the Act or of these rules is committed in respect of any vehicle entering or leaving or halting at the stand;(d)that a board shall be set up in a conspicuous position at the stand showing the fees payable and that the full amount of fees due from the owners and drivers of vehicles shall be charged neither more nor less;(e)that weighing machine shall be maintained at the stand for determining the weight of the goods to be carried by passengers in public vehicles or in the goods carriages; and(f)the local authority or person authorised to administer the stand shall :-(i)maintain such records as the District Magistrate may from time to time direct;(ii)employ such staff at the stand as may be specified in the order made by the District Magistrate;(iii)provide waiting rooms for the largest number of passengers as may reasonably be expected to use the stand at any one time including separate accommodation for women;(iv)provide suitable lavatories for both sexes;(v)provide rest rooms for the drivers and conductors of the vehicles regularly kept at the stand;(vi)provide an adequate supply of drinking water for the passengers, drivers and all persons likely to be employed at the stand;(vii)provide covered accommodation or other form of shelter for all the vehicles regularly kept at the stand or for such percentage of those vehicles as the District Magistrate may specify;(viii)provide for the illumination of the stand at night;(ix)provide in a separate portion of the stand facilities for washing and cleaning vehicles and for executing ordinary repairs;(x)provide toilet and refreshment facilities in keeping with the appropriate requirements of privacy and hygiene; and(xi)provide cloak-rooms containing wash basins, water taps for women passengers.(2)With the approval of the State Transport Authority the District Magistrate may attach to the order any other condition that may seem to him to be necessary to secure the efficient administration of the stand or otherwise to be in the public interest.

## 203. Stands of Class-B

. [Sections 96(2)(xxii) and 138(2)(e)] - (1) When an order has been made permitting a place to be used for the establishment of a stand of Class-B, the District Magistrate may enter into an agreement with any person, firm or Company (hereinafter referred to as the manager) to undertake the maintenance and management of the stand and to be responsible for the fulfilment of the conditions attached to the order of sanction and of all the provisions of the Act and these rules.(2)It shall be a condition of every agreement made under the preceding sub- rule that the manager shall maintain accounts containing such particulars as the District Magistrate may require and such accounts shall be open at all reasonable times for inspection by the District Magistrate or any official or auditor appointed by him.(3)Every such agreement shall further state whether the manager shall be entitled to retain the whole of the fees collected at the stand or whether some portion thereof or a consolidated sum in lieu, shall be payable to the Government of Punjab.(4)An agreement under sub-rule (1) may be so made as to require the manager within a certain time to erect specified

buildings or carry out specified works on the site of the stand, or to fulfil the conditions specified in rule 202.(5)Save with the approval of the Regional Transport Authority, no agreement shall be made under sub-rule (I) with any person who has a financial interest, direct or indirect, in any of the vehicles likely to be kept at the stand and unless the person with whom the agreement is to be made agrees that he will not employ in the working of the stand any person having such interest.

## **204. Stands of Class-C**

. [Sections 96(2)(xxii) and 138(2)(e)] - (1) A local authority administering a stand of Class-C shall maintain separate accounts of the income received and expenditure incurred in respect of it and these accounts together with the accounts of any manager or contractor employed by the local authority in connection with the stand shall be subject to audit under arrangements made by the Government of Punjab and shall be open to inspection at all reasonable times by the District Magistrate and any official appointed by him for this purpose.(2)It shall be a condition of every order permitting a place to be used as a site for a stand of Class-C that the whole of the profits derived from the administration of the stand, after deducting such expenditure for the management, lighting and maintenance of the stand as may be incurred with the approval of the District Magistrate together with the deductions specified in the next following sub-rule, shall be devoted by the local authority in defraying the cost of new buildings and improvements at the stand or providing amenities for the drivers of vehicles or waiting passengers.(3)In determining the amount to be expended by the local authority under the preceding sub-rule on new buildings, improvements and amenities, a deduction shall be made equal to -(a)the interest which the local authority may actually be paying on any sum borrowed by it during the preceding twenty years for the purpose of acquiring land or buildings for the stand or if the local authority has during the preceding twenty years expended capital of its own in acquiring land and buildings, a sum representing interest on that capital at the current bank rate;(b)any rent which may be due from the local authority to person on account of the land and buildings included in the stand; and(c)such additional sum not exceeding three per cent of the gross receipts from fees as may be agreed between the District Magistrate and the local authority.(4)Save with the approval of the Regional Transport Authority, the local authority administering a stand of Class-C shall not entrust the management of the stand to, or permit to be employed in the working of the stand, any person who has a financial interest direct or indirect in any of the vehicles likely to be kept thereat.

## **205. Disposal of moneys accruing to Government**

. [Sections 96(2)(xxii) and 138(2)(e)] - Moneys accruing to the administration of stands shall be devoted, subject to the vote of the legislature to, -(a)the carrying out of improvements and the provisions of amenities at stands;(b)the acquisition of sites for stands; or(c)any other object which in the opinion of the Government conduces to the welfare of persons employed in the motor transport industry and the travelling public.

## **206. Stands to be open to all transport vehicles**

. [Sections 96(2)(xxii) and 138(2)(e)] - No transport vehicles the driver or person in-charge of which offers to pay the fees, shall be refused admittance to a stand of Class A, B or C unless the sanctioned accommodation at the stand is already fully occupied :Provided that where the owner of any vehicle has been granted a licence for a stand of Class D or has been given permission to make use of a stand of Class D his vehicle shall have no right of admission to any Class A, B or C stand situated within eight kilometres of that stand.

## **207. Stands of Class-D**

. [Sections 96(2)(xxii) and 138(2)(e)] - (1) Order permitting a place to be used as a stand of Class D shall specify clearly the area which may be so used.(2)Save with the special permission of the Regional Transport Authority no order in terms of sub-rule (1) shall be made unless the person, transport company, transport firm or transport society applying to use the place as a stand holds permits being permits in the name of the person, transport company, transport firm or transport society making the application for not less than five transport vehicles.(3)Before giving permission for the establishment of any stand of Class D, the District Magistrate shall satisfy himself that the proposed site is not in such location as would give the user an undue advantage over the owners of stage carriages operating in competition with him from the stand.(4)No vehicle shall be admitted to any stand of Class D other than a vehicle in respect of which a permit is held by the person, a transport company, transport firm or transport society in whose name the stand has been sanctioned together with any vehicle which may have been specially mentioned in the District Magistrate's order as entitled to use the stand.

## **208. Boundaries of stands to be demarcated**

. [Sections 96(2)(xxii) and 138(2)(e)] - The local authority or person entrusted with the administration of a stand shall erect and maintain to the satisfaction of the District Magistrate pillars or other marks of a permanent character clearly indicating the boundaries of the land included in the stand.

## **209. Prohibition on use of loud sounding devices at stand**

. [Sections 96(2)(xxii) and 138(2)(e)] - No horn, gong, bell, whistle, gramophone, loud- speaker, musical instrument or other device of creating a loud noise shall be used to attract passengers to any stand.

## **210. Cancellation of orders for the establishment of stands**

. [Sections 96(2)(xxii) and 138(2)(e)] - (1) A District Magistrate may, at any time, revoke any order made by him or any of his predecessors permitting the establishment of any stand if in his opinion any of the conditions on which the stand was permitted to be established, have been contravened or

the stand has not been satisfactorily managed or its continuance is no longer in the public interest.(2)Before revoking any order under the preceding sub-rule, the District Magistrate shall give the person authorised to administer the stand, an opportunity of being heard and shall record his reasons in writing.(3)An order permitting the establishment of a stand, unless revoked under sub-rule (1), shall remain in force for a period of three years or such lesser period as may be specified in the order and such order may be renewed from time to time by the District Magistrate for a further period of not more than three years.

## **211. Control over District Magistrate**

. [Sections 96(2)(xxii) and 138(2)(e)] - (1) Any person aggrieved by an order of the District Magistrate sanctioning the establishment of a stand or revoking an order permitting the establishment of a stand may, within thirty days of the receipt of the order, appeal to the Commissioner of the Division, whose order thereon shall be final and conclusive.(2)Saving always the powers of the Commissioner of the Division as the authority appointed to hear appeals under sub-rule (1), the District Magistrate shall in all matters relating to the establishment of stands and the appointing of bus stops be subject to the control of the State Transport Authority and shall comply with any particular or general instructions that may be issued by that authority.

## **212. Control of officers over the stands**

. [Sections 96(2)(xxii) and 138(2)(e)] - Any officer authorised by the State Transport Commissioner in this behalf shall ensure that provisions of the rules contained in this Chapter are complied with by the manager maintaining stands.

# **Chapter XI**

## **Insurance of Motor Vehicles Against Third Party Risks**

### **213. Presentation of certificate of insurance while paying tax**

. [Section 146(2)(3)] - An owner of a motor vehicle other than of a vehicle to which sub-section (2) or sub-section (3) of section 146 applies shall, while applying for payment of tax under the provisions of the Punjab Motor Vehicles Taxation, Act, 1924, present for the perusal of the registering authority a certificate of insurance in the following form showing that there is in force the necessary policy of insurance for the motor vehicle concerned :-Certificate of InsuranceCertificate No. \_\_\_\_\_ Policy No. \_\_\_\_\_ (Optional)

#### **1. Registration mark and number or description of the vehicle insured.**

**2. Name and address of insured.**

**3. Effective date of commencement of insurance for the purpose of Act.**

**4. Date of expiry of insurance.**

**5. Persons or classes of persons entitled to drive.**

**6. Limitation as to use.**

I/We hereby certify that the policy to which this certificate relates as well as this certificate are issued in accordance with the provisions of Chapter XI of the Act.

(Seal) Authorised Insurer.

## **214. Motor Vehicles Reserve Fund**

. [Section 146(3)] - A Motor Vehicles Reserve Fund shall be established and the contribution thereto shall be made at the rate of not less than rupees five hundred per annum per vehicle by any of the authorities specified in sub-section (3) of section 146 :Provided that the contribution may cease when the maximum limit of rupees two thousand per vehicle is reached but it shall again be continued at the aforesaid rate when the accumulation in the Motor Vehicle Reserve fund falls below the maximum as a result of withdrawals from the Fund.

## **Chapter XII**

### **Motor Accidents Claims Tribunal**

**215. [ Application for claim for compensation. [Substituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]**

(1)Every application for claim of compensation to be made under section 166 shall be in FORM P.M.A.C.T.A(A), accompanied by spare copies (equal to the number of respondents cited in the claim application).(2)There shall be appended to every such application:-(a)all the documents on which the applicant relies in context of his claim, entered in a properly prepared list of documents:Provided that the Claims Tribunal may not allow the applicant to rely in support of his claim, on any document not filed with the application, unless it is satisfied that for good or sufficient cause, he was prevented from filing such document earlier;(b)proof of identity of the applicant (s) to the satisfaction of the claims Tribunal, unless exempted from doing so for reasons to be recorded by it in writing;(c)passport size photograph(s) of the applicant(s) duly attested by an Advocate or a Gazetted Officer;(d)reports obtained from investigating police officer, and registering authority; and if no such report(s) have been obtained, reasons there of and(e)medical certificate of injuries, or the

effect thereof.(3)The Claims Tribunal may also require the applicant to furnish the following information to satisfy itself that false or a collusive claim has not been preferred:- (a) full particulars of all earlier accidents in which the applicant or the person deceased, as the case may be, has been involved; (b) the amount of compensation paid in such earlier accidents, name and particulars of the victim, and of the person, who paid the damages; and (c) connection of persons mentioned in clause (b), if any, with the applicant.(4) Any application which is found defective on scrutiny, may be returned by the Claims Tribunal, for resubmission after removing the defects within a specified period but not exceeding two weeks' time.(5) Every application for compensation shall be registered separately in the prescribed register.

## **215A. Duties of investigating Police Officer in motor accident**

cases.(1) It shall be the duty of the investigating police officer to use modern technology while making investigation, including the following, as expeditiously as possible, to- (a) get the scene of accident photographed from such angles as to clearly depict, and in case of inability to do so, prepare a site plan, drawn to scale, as to indicate the lay-out and width, etc. of the road(s) or place, as the case may be, the position of vehicle(s), or person(s), involved in an accident and such other facts as may be relevant, so as to preserve the evidence in this regard, for the purposes of proceedings before the Claims Tribunal; (b) gather full particulars of the insurance certificate / policy in respect of the motor vehicle involved in the accident and to require the production of the documents mentioned in sub-section (1) of section 158 of the Act, and thereupon either to take the same in possession Section 176 against receipt, or to retain the duly attested photocopies of the same; (c) verify the genuineness of the documents mentioned in clause (b) by obtaining confirmation in writing from the office / authority purporting to have issued the same; (d) submit detailed report regarding an accident to the Claims Tribunals, in Part-1 of FORM P.M.A.C.T.A. (D) by not later than thirty days of the receipt of order in FORM P.M.A.C.T.A (B)' accompanied by requisite documents, which shall include copy of report under section 173 of the code of criminal Procedure, 1973 (Central Act No. 2 of 1974), medico legal certificate, postmortem report (in case of death), first information report, photographs, site plan, photocopies of documents mentioned in clause (c), report regarding confirmation of genuineness thereof, if received, or otherwise action taken; (e) furnish to the applicant all information and particulars about the accident in Part-1 of FORM P.M.A.C.T.A (D) within thirty days, on receiving the application in FORM P.M.A.C.T.A (C), by the person, who wishes to make an application for compensation and who is involved in an accident, or his next of kin, or the legal representative of the deceased, or the insurance company, as the case may be: Provided that such information shall be given to the insurance company on payment of a fee of rupees ten per page.(2) The provisions of sub-rule (1), shall be construed as duties given in section 47 of the Punjab Police Act, 2007, and the rules framed thereunder and any breach thereof, shall entail consequences envisaged in the said Act.

## **215B. Investigation of Motor Accident Claims.**

- Notwithstanding anything contained to the contrary in any other Rules in force, the motor accident claims shall be investigated by the police in the following manner-(1) On receipt of the information about a motor accident, the Investigating Officer shall visit the site of accident, make inspection of

the site, take photographs of the site from all angles, prepare a site plan drawn to a scale, to indicate the lay-out of the road or place, as the case may be, the Section 176, position of vehicle or person as the case may be, such other facts, as may be relevant and shall also examine the eye-witnesses in order to preserve complete evidence with regard to the accident.(2)The Investigating Officer shall collect complete particulars and documents:-(i)date, time and place of the accident;(ii)particulars of the persons injured or deceased in the accident;(iii)name and address of the driver of the offending vehicle;(iv)driving license of the driver of the offending vehicle;(v)names and address of the owner of the offending vehicle;(vi)certificate of registration of the offending vehicle;(vii)insurance policy or in the alternative cover note or certificate of insurance of the offending vehicle;(viii)fitness certificate and the permit (in the case of a commercial vehicle);(ix)names and addresses of the witnesses of the accident;(x)circumstances of the occurrence of the accident:(xi)in case of death of the victim:(a)proof of age of the deceased;(b)death certificate;(c)post-mortem report;(d)proof of income of the deceased;(e)details of the dependents, (i.e. their age, occupation and marital status); and(f)expenditure on treatment; and(xii)in case of an injury to the victim:(a)Medico legal Certificate;(b)proof of age of the injured;(c)proof of income of the injured;(d)nature of injuries suffered by such victim;(e)treatment taken by the injured (including the discharge summary);(f)disability certificate ( if issued by a Government Hospital);(g)expenditure on treatment, conveyance, special diet or In attendant etc; and(h)proof of absence from work (on the basis of which loss of income on account of injury is being assessed or claimed) such as certificate from the employer and extracts from the attendance register or log record or like records.(3)The Investigating Officer shall verify the authenticity of the documents mentioned in Part - II of FORM P.M.A.C.T.A (D) by obtaining confirmation in writing from the office or authority or person purporting to have issued the same or by such further investigation or verification, as may be necessary, for arriving at a conclusion of authenticity of the documents in question (including but not limited to verifying the license of the driver and permit of the vehicle, where applicable), from the registering authority:(4)The registering authority shall verify the registration certificate, driving licence, fitness and permit in respect of the offending vehicle within a period of fifteen days of the application being made by the Investigating Officer. The concerned hospitals shall issue the Medico legal Certificate and Post-Mortem Report to the Investigating Officer within a period of fifteen days of the accident.(5)The Investigating officer shall complete the process of, collection of the aforesaid documents specified in sub-rules (3) and (4)and their date of verification and shall complete the investigation of the criminal case within a period of thirty days of the date of accident. The Investigating Officer shall file the Accident Information Report in FORM P.M.A.C.T.A(D) before the Claims Tribunal within a period of Thirty days of the date of accident. The Accident Information Report shall be accompanied by requisite documents (which shall include a copy of the report under section 173 of the Code of criminal Procedure, 1973, First Information Report with the police, Medico legal Certificate, Post-Mortem Report (in case of death), photographs, site plan, mechanical inspection report, seizure memos and documents mentioned in Part-II of FORM P.M.A.C.T.A (D) and also a report regarding confirmation of authenticity thereof, if received or otherwise action taken' Copy of the Accident Information Report, shall simultaneously be sent to the Insurance Company, victim or their claimant of the accident and owner or driver of the offending vehicle.(6)Upon receipt of copy of Accident Information Report, the Insurance Company shall appoint a Designated Officer within a period of ten days. The Designated Officer shall be responsible for dealing or processing of the case and to pass a reasoned decision in writing about the amount

payable in accordance with law within a period of twenty days from the date of his appointment.(7)Where the Investigating Officer is unable to complete the investigation of the case within a period of thirty days for reasons beyond his control, such as cases of hit and run accidents, cases where the parties reside outside the jurisdiction of the court, where the driving licence is issued outside the jurisdiction of the court, or where the victim has suffered grievous injuries and is under going treatment, the Investigating Officer shall approach the Claims Tribunal, for extension of time whereupon the Claims Tribunal shall suitably extend the time in view of the facts of each case.(8)If the offending vehicle is found to be un-insured, the Investigating Officer, shall prosecute the owner and driver of the offending vehicle under section 196 of the Act.(9)If the driving licence of the driver is found to be fake, the investigating Officer shall prosecute the driver or such other persons involved in forging or issuance of a fake driving licence.(10)The Investigating Officer, shall produce the driver, owner, claimant and eye-witnesses before the Claims Tribunal along with the Accident Information Report. However, if the police is unable to produce the owner, driver, clamant and eye-witnesses before the Claims Tribunal on the first date of hearing for reasons beyond its control, the Claims Tribunal, shall issue notice to them to be served through the Investigating Officer for a date for appearance not later than thirty days time. The Investigating Officer, shall give an advance notice to the concerned Insurance Company about the date of filing of the Accident Information Report before the Claims Tribunal so that the nominated counsel for the Insurance Company could remain present on the date of hearing before the Claims Tribunal.(11)The Claims Tribunal, shall examine whether the Accident Information Report, is complete in all respects, and shall pass an appropriate order in his regard. If the Accident Information Report is not complete, the Claims Tribunal shall direct the Investigating Officer to complete the said report and shall fix a date for the its completion.(12)The claims Tribunal, shall treat the Accident Information Report filed by the Investigating Officer, as a claim petition under section i 66(4) of the Act. However, where the police is unable to produce the claimants on the first date of hearing, the Claims Tribunal shall initially register the Accident Information Report as a miscellaneous application, which shall be registered, as a claim petition after the appearance of the claimants.(13)The Claims Tribunal, shall grant thirty day's time to the Insurance company to examine the Accident Information Report and to take a decision as to the quantum of compensation payable to the claimants in accordance with law. The decision shall be taken by the Designated Officer of the Insurance Company in writing and it shall be a reasoned decision. The Designated Officer of the Insurance company shall place the written reasoned decision before the Claims Tribunal within a period of as specified in sub-rule (6) from the date of receipt of the copy of Accident Information Report from the Investigating Officer.(14)The compensation assessed by the Designated officer of the Insurance company, shall constitute a legal offer to the claimants and if the said amount is fair and acceptable to the claimants, the Claims Tribunal. shall pass a consent award and shall give thirty day's time to the Insurance Company to make the payment of the amount so awarded. However, before passing the consent award, the Claims Tribunal, shall ensure that the claimants are awarded just compensation in accordance with law. The Claims Tribunal shall also pass an order with respect to the shares of the claimants and the mode of disbursement.(15)If the claimants are not in a position to immediately respond to the offer of the Insurance Company, the Claims Tribunal, shall grant them time not later than thirty days, to respond to the said offer.(16)If the offer of the Insurance Company is not fair and acceptable to the claimants or if the insurance Company has any defence available to it under law, the claims Tribunal shall proceed to conduct an inquiry under sections 168 and 169 of

the Act, and shall pass an award within a period of thirty days thereafter.(17)If the offending vehicle is not covered by the policy of insurance against third party risks or the driver was not holding a valid driving licence or if the registered owner fails to furnish copy of the insurance policy or the driving licence of the driver, the motor vehicle involved in an accident resulting bodily injury or damage to property, shall not be released, unless and until the registered owner, furnishes sufficient security to the satisfaction of the court, to pay compensation that may be awarded in a claim case arising out of such accident. On the expiry of three months of the vehicle being taken in possession by the Investigating officer such motor vehicle shall be sold off in public auction by the Magistrate, having jurisdiction over the area where accident occurred, and proceeds thereof, shall be deposited with the Claims Tribunal having jurisdiction over the area in question, within fifteen days for purpose of satisfying the compensation that may have been awarded or may be awarded in a claim case arising out of such accident. Provided there the vehicle involved in an accident is having insurance certificate and the driver of the said vehicle having a valid driving license then the Investigation Officer, shall release the vehicle on superdary at his own level.(18)Any breach in duty by the police personnel shall be dealt with as provided in sub-rule (2) of rule 215-A.

### **215C. Duties of the Registering Authority.**

- It shall be the duty of the concerned registering authority to-(a)submit a detailed report in FORM P.M.A.C.T.A(E)to the Claims Tribunal regarding a motor vehicle involved in the accident or about the licence of the driver of such vehicle, within a period of fifteen days of the receipt of order in FORM P.M.A.C.T.A (F);(b)furnish the requisite information in FORM P.M.A.C.T.A(E) within a period of fifteen days from the date of receipt of an application in FORM P.M.A.C.T.A (G) from the person, who wishes to make an application for compensation, or who is involved in an accident arising out of use of his next of kin, or to the legal representative of the deceased, or to the insurance company, as the case may be:Provided that information shall be given to the insurance company on payment of rupees ten per page.

### **215D. Duties of the Insurance Company.**

- It shall be the duty of the Divisional Manager of an insurance company after receiving information about the accident, or on receipt of notice from the Claims Tribunals under rule 21 8, to-(a)make an application in FORM P.M.A.C.T.A (C) to the Section 176. Section 176. investigating police officer (with prescribed fees) to obtain complete information about the accident, at the earliest;(b)ascertain and verify the facts about insurance of motor vehicle(s) involved in the accident and inform about it to the Claims Tribunal within a period of from the date of receipt of notice of the claim case;(c)move application before the concerned registering authority in FORM P.M.A.C.T.A(G) to obtain information about the motor vehicle, involved, and the driving licence held by the driver of such motor vehicle as per information available in FORM P.M.A.C.T.A (E).(d)deposit (with the written statement in the Claims Tribunal), the amount equivalent to the compensation awardable on the principle of no fault liability under section 140 of the Act, in such cases, where the information is received in FORM P.M.A.C.T.A {D} and FORM P.M.A.C.T.A (E) confirming either death or permanent disability has been caused, as a result of the use of the motor vehicle so insured by such insurance company.

## **215E. Presumption about reports.**

- The contents of the reports sent to the Claims Tribunal in Part-1 of FORM P.M.A.C.T.A (D) and Form P.M.A.C.T.A (E) by the investigating police officer, the registering authority concerned, and the confirmation given under clause (b) of rule 215-C by the insurance company, shall be presumed to be correct and shall be read in evidence without formal proof till it is proved to the contrary.

## **215F. Police report and action thereon.**

(1) The police report under sub-section (6) of section 158, shall be in FORM P.M.A.C.T.A (D). (2) On receipt of, report mentioned in sub-rule (1) accompanied by the verification reports of driving licence, registration certificate of motor vehicle, insurance, permit etc., the Claims Tribunal shall examine the same and it may call for such further information or material, as considered necessary, for proper disposal of the matter in accordance with the provision of sub-section (4) of section 166 of the Act. (3) The Claims Tribunal after examination of the report, shall register the claim case and issue notice for appearance in FORM P.M.A.C.T.A (H) to all the parties concerned, which would include the victim of the accident, or his legal representative, as the case may be, driver, owner and insurer of the vehicle involved. (4) On receipt of notice under sub-rule (3) above, the parties shall put in their presence before the Claim Tribunal and declare claim case, if any, and if so, the police report shall be treated as claim case and be tagged to such claim case preferred independently by the parties. (5) If the person injured or the legal representative of the person deceased do not appear after notice under sub-rule (4), the Claims Tribunal may presume that the said parties are not interested in pursuing the claim for any compensation and on such presumption it shall close the case. (6) Unless the police report is treated as a claim case stands tagged to independent claim case preferred by the parties themselves, the Claims Tribunal shall call upon the person injured or legal representative of the person deceased, as the case may be, who have appeared in response to the notice, shall give before the Claim Tribunal statement in FORM P.M.A.C.T.A (A). (7) If statement by the parties is given in the manner as specified in sub-rule (6), the case shall proceed further in the same manner as if parties have come directly before the Claims Tribunal for compensation. (8) If the statement for claiming compensation has been given by the party, but subsequently commits default in appearance, in that case the provisions of order IX of the code of civil Procedure, 1908 (5 of 1908) shall apply: Provided that in case accident in question involves more than one vehicle and persons connected to all such vehicles make claim for compensation, the police report treated as claim case, shall be presumed to be a claim case preferred by each of therein and the absence by any one or more of such parties, shall not prejudice the claim of the party, which continues to appear.]

## **216. Examination of applicant [Sections 168(1) and 176].**

- On receipt of an application for claims of compensation, the Claims Tribunal may examine the applicant on oath, and the substance of such examination, if any, shall be reduced to writing. When the application is time-barred as per provisions of sub-section (3) of section 166, the Claims Tribunal may ask the applicant to give reasons for condonation of delay, in writing and if there is no sufficient cause, it may be dismissed without calling upon the applicant to appear.

## **217. Summary dismissal of application [Sections 169 and 176].**

- The Claims Tribunal may, after considering the application and the statement, if any, of the applicant recorded under rule 216, dismiss the application summarily, if for reasons to be recorded, it is of the opinion that there are no sufficient grounds for proceeding therewith.

## **218. [ Notice to parties involved. [Substituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]**

- If an application for claim is not dismissed under rule 217, the Claims Tribunal shall send the same to the person against whom the applicant claims relief, with a notice in FORM P.M.A.C.T.A (1) of the date, to put in their appearance before it and may ask them to file their written statement as per rule 219: Provided that, if documents produced along with the written statement by the applicant are voluminous, the Claims Tribunal may dispense with the requirement to send copies thereof to the opposite party.]

## **219. [ Appearance and examination of the parties. [Substituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]**

(1) The opposite party, shall, at or before the first hearing, or within such further time as the Claims Tribunal may allow, file a written statement which shall become part of the Claim Tribunal's record. (2) The opposite party shall file all the documents in support of facts on which he relies in its defence along with the written statement and shall duly prepare a list of documents and a copy thereof shall give to the applicant: Provided that the Claims Tribunal may not allow the opposite party to rely in support of its defence any document, not filed along with the written statement, unless it is satisfied that, for certain good or sufficient reasons, it was prevented from filing such document earlier. (3) If the opposite party contests the claim, the Claims Tribunal may, if no written statement has been filed by it, it shall, proceed to examine him qua the claim and shall reduce the statements writing. (4) The Claims Tribunal may also require the opposite party to furnish the following information : - (a) full particulars of all earlier accidents in which it was involved and in which cases the claims have been awarded either wholly or in part; and (b) the amount of compensation paid in such earlier accidents, the name and address of the victims and the persons to whom the damages have been paid and their relation, if any, with the opposite party.]

## **220. [ Summoning of witnesses. [Substituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]**

- If an application is made by any party to the proceeding for the summoning of witnesses, the Claims Tribunal shall, on payment of the expenses involved, if any, issue summons for the

appearance of such witness unless it considers that their appearance is not necessary for a just decision, of the case: Provided that where the Claims Tribunal is of the opinion that, party is unable to bear the expenses to summon witnesses, it may not insist for such payment of the expenses and in that case the same shall be borne by the Government: Provided further that in case where the party succeeds claim in whole or in part, the expenses so incurred by the Government, shall be directed to be paid to the Government.]

## **221. Appearance of legal practitioner**

. [Sections 169 and 176(2)(b)] - The Claims Tribunal may, in its discretion, allow any party to appear before it through a legal practitioner.

## **222. [ Local inspection. [Subtituted by Notification No.**

**G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]**

(1) The Claims Tribunal, may, at any time during the course of any proceedings before it, visit the site, at which such accident has occurred for the purpose of making a local inspection or examination of any person, who gives information relevant to the claims. (2) Any party to a proceeding or a representative of any such party, may accompany the Claims Tribunal, for local inspection. (3) The Claims Tribunal. after making a local inspection, shall note briefly in a memorandum the facts observed and such memorandum shall form part of the record of the proceedings. (4) The memorandum under sub-rule (3), may be shown to any party to the proceedings who desires to see it, and a copy thereof, may be supplied to any such party on application, at the rate of rupees two per page. (5) The Claims Tribunal, may, if any journey is undertaken under this rule at the instance of a party, require the party, to deposit an amount equivalent to the actual expenses likely to be incurred by it and its staff before hand and it shall draw only the amount so deposited by the parties, to meet all the incidental expenditure in connection with such journey.]

## **223. Inspection of vehicles**

. [Sections 169 and 176(2)(b)] - The Claims Tribunal may, if it thinks fit require the motor vehicle involved in the accident to be produced by the owner for inspection at a particular time and place to be mentioned by it, if necessary, in consultation with the owner.

## **224. Power of summary examination**

. [Sections 169 and 176(2)(b)] - (1) The Claims Tribunal may during a local inspection or at any other time save at a formal hearing of a case pending before it, examine summarily any person likely to be able to give information relating to such case, whether such person has been or is to be called as a witness in the case or not and whether any or all of the parties are present or not. (2) No oath shall be administered to person to be examined under sub-rule (1).

## **225. Method of recording evidence**

. [Sections 169 and 176(2)(b)] - The Claims Tribunal shall, as examination of witnesses proceeds, make a brief memorandum of the substance of the evidence of each witness and such memorandum shall be written and signed by the members of the Claims Tribunal and shall form part of the record: Provided that the evidence of any medical witness shall be taken down as nearly as may be, word for word.

### **225A. [ Obtaining of supplementary information and documents. [Inserted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]**

- The Claims Tribunal shall, obtain whatever supplementary information and documents, which are found necessary, from the police, medical and other authorities and proceed to adjudicate upon the claim, whether the parties who were given notice appear or not, on the appointed date.

### **225B. Power to direct medical examination.**

- The Claims Tribunal may, if it considers necessary direct in FORM P.M.A.C.T.A(J), any medical officer or any board of medical officers in a government or municipal hospital, to examine the injured and issue certificate indicating the degree and extent of the disability, if any, suffered as a result of the accident, and it shall be the duty of such medical officer or board to submit the report within fifteen days of receipt of such direction.]

## **226. Adjournment of hearing**

. [Sections 169 and 176(2)(b)] - If the Claims Tribunal finds that an application cannot be disposed of at one hearing it shall record the reasons which necessitate the adjournment and also inform the parties present of the date of adjournment of hearing.

## **227. Co-opting of persons during inquiry**

. [Sections 169 and 176(2)(b)] - (1) The Claims Tribunal may, if it thinks fit, co-opt one or more persons possessing special knowledge with respect to any matter relevant to the inquiry. (2) The remuneration, if any to be paid to the person co-opted shall in every case be determined by the Claims Tribunal.

## **228. Framing of issues**

. [Sections 169 and 176(2)(b)] - After considering any written statement, the evidence of the witnesses examined and the result of any local inspection, the Claims Tribunal shall proceed to frame and record the issue upon which the right decision of the case appears to it to depend.

**229. [ Determination of issues. [Subtituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]**

(1)After framing the issues, the Claims Tribunal shall, proceed to decide such issues after allowing both parties to cross examine each other in accordance with the provisions of the Code of Civil Procedure, 1908 (5 of 1908).(2)The Claims Tribunal may, if it appears to it to be necessary for just decision of the case, allow the parties to adduce such further evidence as it may desire:Provided that no such further opportunity shall be permitted unless it is shown that such further evidence could not be adduced earlier despite exercise of due diligence by or that such evidence was not within the knowledge of the party relying on it.]

**230. Diary**

. [Sections 169 and 176(2)(b)] - The Claims Tribunal shall maintain a diary of the proceedings on an application.

**231. [ Judgment and award of compensation. [Subtituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]**

(1)The Claims Tribunal while passing order, shall record concisely in a judgment the findings on each of the issues framed giving reasons for such findings, and make an award specifying the amount of compensation, to be paid by the insurer and also the person, to whom compensation shall be paid.(2)Where compensation is awarded to two or more person, the Claims Tribunal shall also specify the amount payable to each of them.(3)The procedure of adjudicating the liability and award of compensation may be set apart from the procedure of disbursement of compensation to the legal heirs in a case of death, and where the Claims Tribunal feels that the actual payment to the claimant is likely to take some time because of the identification and determination of legal heirs of the deceased, the Claims Tribunal may call for the amount of compensation awarded to be deposited with it, and, then, proceed with the identification of the legal heirs, for disbursing payment of compensation to each of the legal heirs equitably.(4)The Claims Tribunal shall, obtain a receipt from the claimant in duplicate out of which, one copy shall be issued to the person. who makes the payment, and the other copy to be retained on the record.

**231A. Securing the interest of claimants.**

(1)Where any lump sum amount deposited with the Claims Tribunal, is payable to a person under legal disability, such sum may be invested. applied or otherwise dealt with for the benefit of such person, during his disability, in such manner as the Claims Tribunal may direct, to be paid to any dependent of the injured or heirs of the deceased or to any other person, whom the Claims Tribunal thinks best fit to provide for the welfare of the injured or the heir of the deceased, as the case may be.(2)Where on application made to the Claims Tribunal in this behalf or otherwise, the Claims

Tribunal is satisfied that on account of neglect of the children by their parents or on account of change of circumstances of any dependent or for any other sufficient cause, an order of the Claims Tribunal as to the distribution of any sum paid as compensation or as to the manner in which any sum payable to any such dependent is to be invested or applied or otherwise dealt with, ought to be varied, the Claims Tribunal may make such further orders for the variation of the former order as it may think just in the circumstances of the case.(3)The Claims Tribunal shall, in the case of a minor, order that amount of compensation awarded to such minor be invested in fixed deposits till such minor attains majority. The expenses incurred by the guardian or the next friend, may be allowed to be withdrawn by such guardian or such next friend, from such deposits, before the same are deposited.(4)The Claims Tribunal shall, in the case of illiterate claimants, order that the amount of compensation awarded, be invested in fixed deposits for a minimum period of three years, but if any amount is required for effecting purchase of any moveable or immoveable property for improving the income of the claimant, the Claims Tribunal may consider such a request after being satisfied that the amount would be actually spent for the purpose.(5)The Claims Tribunal shall, in the case of semi-literate person, opt the procedure for the deposit of award amounts given in sub-rule (4) unless it is satisfied, for reasons to be recorded in writing that the whole or part of the amount is required for the expansion of any existing business or for the purchase of some property as specified in sub-rule (4), in which case the Claims Tribunal shall ensure that the amount has been invested for the purpose. for which it was prayed for.(6)The Claims Tribunal may in the case of literate persons may also opt the procedure for deposit of the awarded amount specified in sub-rules (4) and (5), if the age, financial background etc. of the claimant, with a view to ensuring the safety of the compensation awarded, thinks it necessary and pass such order as it may deem fit.(7)The Claims Tribunal, may in personal injury cases, if further treatment is necessary pass an order in writing, permitting to draw such amount, as is necessary for meeting the expenses of such treatment.(8)The Claims Tribunal shall, in the matter of investment of money, with a view to have maximum return for the claimant, pass orders to deposit the same with public sector undertakings of the State or Central Government, which offers higher rate of interest.(9)The Claims Tribunal shall, in investing such money, direct that the interest on the deposits be paid directly to the claimants or the guardian of the minor claimants by such institutions under intimation to the Claims Tribunal.]

**231B. [ Prohibition against release of motor vehicle involved in an accident.  
[Inserted by Notification No. G.S.R.19/C.A.59/1988/S.176/Amd.(26)/2019, dated  
3.4.2019 (w.e.f. 17.8.1989).]**

(1)No court shall release a motor vehicle involved in an accident resulting in death or bodily injury or damage to property, when such vehicle is not covered by the policy of insurance against third party risks taken in the name of registered owner or when the registered owner fails to furnish copy of such insurance policy despite demand by investigating police officer, unless and until the registered owner furnishes sufficient security to the satisfaction of the court to pay compensation that may be awarded in a claim case arising out of such accident.(2)Where the motor vehicle is not covered by a policy of insurance against third party risks, or when registered owner of the motor vehicle fails to furnish copy of such policy in circumstance mentioned in sub-rule (1), the motor vehicle shall be sold off in public auction by the Magistrate having jurisdiction over the area where accident occurred, on expiry of three months of the vehicle being taken in possession by the

investigating police officer, and proceeds thereof shall be deposited with the Claims Tribunal having jurisdiction over the area in question, within fifteen days for purpose of satisfying the compensation that may have been awarded, or may be awarded in a claim case arising out of such accident.]

## **232. The Code of Civil Procedure to apply in certain cases**

. [Sections 169 and 176(2)(b)] - The following provisions of the First Schedule to the Code of Civil Procedure, 1908, shall so far as may be apply to proceedings before the Claims Tribunal, namely, Order V, Rules 9 to 13 and 15 to 30; Order IX; Order XIII, Rule 3 to 10; Order XVI, Rules 2 to 21; Order XVII; Order XXI and Order XXIII, Rules 1 to 3.

## **233. [ Form and manner of appeals against the award of Claims Tribunal. [Subtituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]**

(1)An appeal against the judgment of the Claims Tribunal, shall be preferred in the form of a memorandum signed by the applicant or by anadvocate duly empowered by such applicant in this behalf, before the HighCourt.(2)The memorandum shall concisely specify the grounds of appeal without any argument or narration and such grounds shall be numbered consecutively.(3)Save as provided in sub-rules (1) and (2), the provisions of Order XLI and XXI in the First Schedule to the Code of Civil Procedure, 1908, (5 of 1908), shall mutatis mutandis apply to the appeals referred above.

## **234. Fees.**

(1)No court fee shall be leviable on an application under section 166 for payment of compensation.(2)The amount of the court fee to be charged for inspecting the files shall be twenty rupees for first hour and ten rupees for every subsequent hour in each case.(3)The carbon copies of the evidence shall be given to the parties concerned, if asked for, on payment of court fee of rupees two per page and application for obtaining such copies shall bear court fee of rupees ten.(4)An amount of rupees two per page shall be charged in the form of court fee. for obtaining an attested copy of the award on final order or an intermediate order of any documents filed with the claims Tribunal.]

## **235. Powers of Claims Tribunal [Section 176(2)(c)].**

- In endorsing the orders, the Claims Tribunal shall have all the powers in regard to contempt, resistance and the like which a Civil Court may exercise in the execution of a decree.

## **235A. [ Custody and preservation of records, Registers and certified copies. [Inserted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]**

(1)The necessary documents and records relating to the cases, shall be preserved in the record room for a period of six years of the satisfaction of the award, if any, granted or for a period of twelve years after the Judgment and award become final, whichever is earlier.(2)The Claims Tribunal, shall maintain in addition to all registers required to be maintained by the court of an Additional district and Sessions Judge, the following registers, namely:-(i)for applications for interim award on principle of no fault liability;and(ii)for deposit of payments in the Tribunal through cheques.(3)Claim petitions on the ground of death- permanent disability, injury and damage to property shall be entered in a separate register.(4)The rules relating to the issue of a certified copy, followed by the courts subordinate to the High court, shall mutatis mutandis apply to the Claims Tribunal.]

## **Chapter XIII**

### **Motor Vehicle Department**

#### **236. Constitution and extent of application.**

- [Section 213] - The rules in this Chapter shall apply to all the officers appointed under section 213 who shall be under the control of the State Transport Commissioner (hereinafter referred to as the officers of the Motor Vehicles Department).

#### **237. Classification of officers.**

- The Officers specified in rule 236 shall be classified as Class I, Class II, Class III and Class IV officers as enumerated in rule 238.

#### **238. [ Powers of Officers of Motor Vehicles Department.] [Substituted vide Punjab Government Notification No. G.S.R. 16/C.A. 59/88/S. 213/Amd. (5)/99., dated 26.2.1999.]**

- The following officers of the Motor Vehicles Department shall exercise the powers of the police as specified against each in respect of offences under the Act :-

|                                                                                |                                                          |
|--------------------------------------------------------------------------------|----------------------------------------------------------|
| (a) State Transport Commissioner                                               | Power exercisable by a Superintendent of Police;         |
| (b) Joint State Transport Commissioner and Secretary, StateTransport Authority | Power exercisable by a Superintendent of Police;         |
| (c) Deputy State Transport Commissioner                                        | Power exercisable by a Deputy Superintendent of Police;  |
| (d) Secretary, Regional Transport Authority                                    | Powers exercisable by a Deputy Superintendent of Police; |
| (e) District Transport Officer                                                 | Power exercisable by a Deputy                            |

|                                          |                                                                                       |
|------------------------------------------|---------------------------------------------------------------------------------------|
| (f) Consultant Route Planner             | Superintendent of Police;<br>Powers exercisable by a Deputy Superintendent of Police; |
| (g) Assistant District Transport Officer | Power exercisable by an Inspector of Police;                                          |
| (h) Motor Vehicle Inspector              | Power exercisable by an Inspector of Police; and                                      |
| (i) Incharge of the Traffic Check-Post   | Power exercisable by a Sub-Inspector of Police]                                       |

## **239. Duties, powers and functions of the Officers of the Motor Vehicles Department**

. [Section 213] - (1) All Officers of the Motor Vehicles Department shall be responsible to administer and enforce the provisions of the Act, rules, regulations or Notifications made or issued thereunder and carry out such duties as have been assigned to them under these rules or such other duties as may be assigned to them.(2)The Officers of the Motor Vehicles Department shall be responsible for the regulation of and proper control of traffic and transport within their respective charge and inspection of stands, collecting, forwarding and/or with a view to ensuring provisions of amenities for the public in general.(3)Traffic control in districts shall continue to be performed by the District Police and the checking by the officers of the Motor Vehicles Department shall in no way interfere with the normal working of the Police in the matter of traffic control.(4)[ The persons appointed as officers under section 213 and specified as such in rule 238 shall have powers, if they have reasons to believe that a motor vehicle has been or is being used in contravention of the provisions of section 3 or section 4 or section 39 or without the permit required by sub- section (1) of section 66 or in contravention of any condition of such permit relating to the route on which or the area in which or the purpose for which the vehicle may be used, to seize and detain the vehicle, and shall keep the same in safe custody of the nearest police station or in the premises of a Government Department against a proper receipt to be given by him in form M.O.S.S. to the owner or incharge of the vehicle from whose custody the vehicle was seized and detained.(5)The officer incharge of the police station of a Government Department, shall ensure that the vehicle in question is kept in safe custody alongwith the goods contained therein, if any, at the time of keeping the same in his custody.(6)The vehicle may be got released by the concerned person within a period of ten days from the date of the seizer or detention of the vehicle, as the case may be.(7)[ In case the vehicle is not got released within the stipulated priod referred to in sub-rule (6), then rental charge at the rate of rupees one hundred per day, shall be charged after the expiry of a period of ten days from the date of seizer or detention of the vehicle.] [Added vide Punjab Government Notification No. 7/13/99-IT(2)15196, dated 17.12.1999.]

## **240. Identity Card**

. [Section 213] - Every Officer of the Motor Vehicles Department shall carry with him an identity card giving brief description of his name, designation, date of birth and special mark of identification with a passport size photograph duly attested by the State Transport Commissioner or

Joint State Transport Commissioner, Punjab.

## 241. Uniforms

. [Section 213] - (1) The uniform for the officers of the Motor Vehicles Department will be so designed that it does not get mistaken for or confused with uniforms used by the regular police force. (2) Every officer of Class III and IV of the Motor Vehicles Department shall, while on duty, wear the uniform and insignia specified as under :- Uniform for the Officers of the Motor Vehicles Department For summer :-

**1. Trousers Chocolate Brown.**

**2. Shirt Khakhi.**

**3. Turban Chocolate Brown.**

**4. Whistle with Khakhi Cord.**

**5. Leather Belt Brown.**

For winter :-

**1. Trousers Chocolate Brown.**

**2. Shirt Khakhi Serge.**

**3. Woollen Jersey Chocolate.**

**4. Turban Chocolate Brown.**

**5. Whistle with Khakhi Cord.**

**6. Leather Belt Brown.**

(a) Insignia for MMPIS/MMPSIS

12 CM

ENFORCEMENT STAFF, PUNJAB MMPIS/MMPSIS \_\_\_\_\_ NAME 3  
OF DISTRICT \_\_\_\_\_ CM.

(b) Insignia for lower/subordinates ..... 12 C.M. ....

Enforcement Staff, Punjab 3 CM.

5 CM.

12 CM.

**8. CM**

(3)The uniform shall not be worn by the officers of the Motor Vehicles Department at fancy dress balls, in dramatic performance, or other entertainments and it shall not be lent for use to any other persons.(4)No Officer, other than Class I and Class II, of the Motor Vehicles Department shall cause a vehicle to stop, keep it stationary, enter, travel, inspect or carry out any duty imposed by or under the Act or these rules, unless he is wearing the uniform and insignia and is carrying the identity card.

## Chapter XIV

### Miscellaneous

**242. Repeal and Savings**

. - The Punjab Motor Vehicle Rules, 1940, the Punjab Motor Accidents Claims Tribunal Rules, 1964, the Punjab Public Carrier Agents Licensing Rules, 1979 and the Punjab Motor Vehicles State Transport Service Undertaking Schemes Rules, 1989 are hereby repealed :Provided that any order issued or any action taken under the rules so repealed shall be deemed to have been issued or taken under the corresponding provisions of these rules.The First Schedule(Rules 18, 29 and 94 of Punjab Motor Vehicles Rules, 1989)Badges For Drivers, Conductors And Ticket AgentsDriver's BadgeWhite metal of light weight 45 millimetres in diameter. The words and the number to be engraved or embossed in blue.Conductor's Badge(See rule 4.49)White metal of light weight 45 millimetres in diameter. The words and the number to be engraved or embossed in blue.Ticket Agents BadgeTriangular badge, the bottom side 100 millimetres long, each of the other two sides 70 millimetres. Lettering in white on a red ground.The Second Schedule(Rule 162 of the Punjab Motor Vehicles Rules, 1989)

(325 millimetres) (250 millimetres) (325 millimetres)

|            |          |            |
|------------|----------|------------|
| Removeable | Fixed    | Removeable |
| Amritsar   | PNS-999  | Delhi      |
| or         |          | fdZbh      |
| (Amritsar) | PNS-999  | Delhi      |
| ornzfwqs;o | gB;- 999 | fdZbh      |
| Amritsar   | PNS-999  | Delhi      |
| nzfwqs;o   | gB;- 999 | fdZbh      |

**1. The starting and the terminating places shall be depicted in black letters on white ground.**

**2. Registration number shall be depicted in black letters on white ground.**

**3. The letters of the words indicating the starting point and the terminus shall be in English or in English and Hindi or in English and Gurmukhi and shall each be not less than 65 millimetres high and 12 millimetres thick at any part.**

The Third Schedule(See rules 172 and 185)

#### HILL ROADS

| District   | Description of the Roads                                                                             |
|------------|------------------------------------------------------------------------------------------------------|
| Hoshiarpur | Hoshiarpur-Bharwain Hoshiarpur-UnaJaijon-Guzarnangal<br>Garhshanker-Santokhgarh<br>Balachaur-Nurpur. |
| Ropar      | Ropar-Nurpur.<br>Chakki-Dalhousie.                                                                   |

The Fourth Schedule(See Rule 189 of Punjab Motor Vehicles, Rules, 1989)Distinguishing Mark To Be Exhibited on the Rear of A Trailer of the Last Trailer In A Train of TrailersLetter to be in, white on a black ground.Letter to be 175 millimetres in height and 125 millimetres in width, the strokes being 30 millimetres broad. Overall measurements of the mark 200 millimetres high, 175 millimetres wide. The above dimensions are minimal. The mark may be exhibited in a larger size, if desired.The Fifth Schedule(See Rule 192 of Punjab Motor Vehicles Rules, 1989)Signal No. 1. - To stop a vehicle approaching from behind.The signaller shall extend his left arm horizontally from the shoulder and parallel to the ground, with the palm facing front, its back being towards the rear vehicle.Signal No. 2. - To stop a vehicle coming from front.The signaller shall raise his right arm above his head slightly extending to the front with fingers closed and the palm facing the on-coming vehicle.Signal No. 3. - To stop a vehicle approaching simultaneously from the front and behind.The signaller shall extend both of his arms as specified in signals 1 and 2.Signal No. 4. - To stop a vehicle approaching from the left and wanting to run to the right.The signaller shall extend his left arm as specified in signal No. 1. His right arm will be extended a little forward with the palm facing downward.Signal No. 5. - To stop a vehicle approaching from the right to allow a vehicle approaching from the left to turn to the right.The signaller shall extend both of his arms as specified in signal No. 3 with the exception that the right arm shall be extended on the right side with the palm facing the right.Signal No. 6. - To allow a vehicle coming from the right and wanting to run to the right by stopping a vehicle approaching from the left.The signaller shall raise his right arm as specified in signal No. 2 and his left arm shall be raised side-ways with the palm facing the left.Signal No. 7. - Warning signal closing traffic.The signaller shall extend both of his arms side-ways, right arm as in signal No. 5 and left arm as in signal No. 6.Signal No. 8. - Come on; Backoning a vehicle approaching from left.The signaller shall raise his right arm as specified in signal No. 2 and his left arm shall be raised from the elbow upwards and bring it up to the position of the shoulder. The signaller shall also look to the left. This movement shall be repeated so that driver of the vehicle can understand that he is being called up.Signal No. 9. - Come on; Backoning a vehicle approaching from the right.The signaller shall stretch his left arm as specified in signal No. 1

and the right arm shall be raised from the elbow upwards and bring it up to the position of the shoulder. The signaller shall also look to the right. This movement shall be repeated as in signal No. 8. Signal No. 10. - Come on; Backoning a vehicle approaching from front. The signaller shall raise his right arm from the elbow upwards and bring it up to the position of the shoulder with the back of the palm facing towards the vehicle. This movement shall be repeated as in signal No. 8. [The Sixth Schedule] [Inserted vide Punjab Government Gazette (Extra.), dated 27.11.97.] (See rule 42-A) Reserved numbers in each series.

| Serial No. | Group No. | Registration No. |      |      |      |      |      |      |      |      |     |
|------------|-----------|------------------|------|------|------|------|------|------|------|------|-----|
| 1          | 2         | 3                |      |      |      |      |      |      |      |      |     |
| 1          |           | 1                |      |      |      |      |      |      |      |      |     |
| 2          | (a)       | 0002 to 0011     |      |      |      |      |      |      |      |      |     |
|            | (b)       | 22               | 33   | 44   | 55   | 66   | 77   | 88   | 99   | 100  | 101 |
| 3          | (a)       | 0012 to 0021     |      |      |      |      |      |      |      |      |     |
|            | (b)       | 0023 to 0032     |      |      |      |      |      |      |      |      |     |
|            | (c)       | 0034 to 0043     |      |      |      |      |      |      |      |      |     |
|            | (d)       | 0045 to 0054     |      |      |      |      |      |      |      |      |     |
|            | (e)       | 0056 to 0065     |      |      |      |      |      |      |      |      |     |
|            | (f)       | 0067 to 0076     |      |      |      |      |      |      |      |      |     |
|            | (g)       | 0078 to 0087     |      |      |      |      |      |      |      |      |     |
|            | (h)       | 0089 to 0098     |      |      |      |      |      |      |      |      |     |
|            | (i)       | 111              | 222  | 333  | 444  | 555  | 666  | 777  | 888  | 999  |     |
|            | (j))      | 1111             | 2222 | 3333 | 4444 | 5555 | 6666 | 7777 | 8888 | 9999 |     |
|            | (k)       | 200              | 300  | 400  | 500  | 600  | 700  | 800  | 900  |      |     |
|            | (l)       | 1000             | 2000 | 3000 | 4000 | 5000 | 6000 | 7000 | 8000 | 9000 |     |
| 4          | (a)       | 110              | 121  | 123  | 151  |      |      |      |      |      |     |
|            | (b)       | 202              | 212  | 234  |      |      |      |      |      |      |     |
|            | (c)       | 303              | 313  | 323  | 330  | 345  |      |      |      |      |     |
|            | (d)       | 404              | 414  | 440  | 456  |      |      |      |      |      |     |
|            | (e)       | 505              | 515  | 525  | 550  | 567  | 575  |      |      |      |     |
|            | (f)       | 606              | 616  | 660  | 678  |      |      |      |      |      |     |

Authority \_\_\_\_\_ I \_\_\_\_\_ of (permanent address) \_\_\_\_\_ of (present address) \_\_\_\_\_ (father's name) \_\_\_\_\_ hereby report that driving licence No. \_\_\_\_\_ issued by Licensing Authority \_\_\_\_\_ on or about the \_\_\_\_\_ day of \_\_\_\_\_ 19, has been lost/destroyed in the following circumstances :-

**2. I hereby apply for a duplicate licence and tender twenty-five rupees as fees through cash receipt/treasury challan No. \_\_\_\_\_ and date \_\_\_\_\_.**

**3. I attach two clear copies of a recent photograph of myself. (1)**

(Date) Signature or thumb-impression of applicant.

use in the office of the Licensing Authority

**Part I – (1) Duplicate of driving licence No. \_\_\_\_\_**  
**first granted on \_\_\_\_\_ has been issued by me this**  
**day of \_\_\_\_\_ 19.**

(1) Application refused in letter No. \_\_\_\_\_, dated the \_\_\_\_\_, to the applicant giving reasons.

(Date) Licensing Authority,

out alternative not required.

## **Part II – Forward to the Licensing Authority** \_\_\_\_\_, for verification and **completion of Part III.**

(Date) Licensing Authority,

## **Part III – Returned to the Licensing Authority**

The photograph and | Signature thumb-impression | (1) have been compared with my records. No such licence appears to have been issued by this office (1). I am not satisfied that the applicant was the holder of the licence described (1). I am satisfied that the applicant was the holder of a licence issued by this office as follows :- (1) Number \_\_\_\_\_ (2) Date of issue \_\_\_\_\_ 19. (3) Last renewed by the Licensing Authority \_\_\_\_\_ (4) Date of expiry \_\_\_\_\_ 19. (5) Classes of vehicle (2) \_\_\_\_\_ (6) The licence - (a) entitled the holder to drive as a paid employee. (1) (b) carried an authorisation to drive a public service vehicle, granted by (1) \_\_\_\_\_. (c) carried the following endorsements. (Date) Licensing Authority,

out alternative not required. (2) Here fill in (a), (b), (c), etc. as specified in section 8(2) of the Act.

## **Part IV – Returned to the Licensing Authority,** \_\_\_\_\_ **the record.**

A duplicate licence has been issued by me on the \_\_\_\_\_ day of \_\_\_\_\_ 19. (1) A copy of the photograph affixed thereto is attached. (1) Strike out alternative not required. I have in my letter No. \_\_\_\_\_, dated the \_\_\_\_\_, declined to issue the duplicate licence applied for. A copy of that letter is attached (1),

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

Name of holder  
Father's name  
Present address

(\*) \_\_\_\_\_ (Date) \_\_\_\_\_ The above receipt is hereby  
extended up to the \_\_\_\_\_ day of \_\_\_\_\_ 19\_\_\_\_ on the same  
conditions. (\*) \_\_\_\_\_ (Date) \_\_\_\_\_ \*Signature and designation of  
the authority granting or extending the receipt. Form L. TEM. (MVD)[Sub-section (3) of Section 206  
of the Motor Vehicles Act, 1988 and Rule 13 of the Punjab Motor Vehicles Rules, 1989] Motor  
Vehicles Department Book No. \_\_\_\_\_ Form No. \_\_\_\_\_

(Date) (Signature designation)

[Form M.O.S.S.] [Form M.O.S.S. added vide Punjab Government Notification No. 7/13/99-IT(2)15196, dated 17.12.1999.](See rule 239)(Motor Vehicle Offence, Compounding, Seizure Slip)Book No.\_\_\_\_\_Form No.\_\_\_\_\_(in Triplicate)

**1. Enforcement Agency**\_\_\_\_\_

**2. Date**\_\_\_\_\_

**3. Place**\_\_\_\_\_

**4. Time** \_\_\_\_\_

**5. Regd. Mark of Vehicle**\_\_\_\_\_

**6. Class of the Motor Vehicle**\_\_\_\_\_

**7. Offence committed with relevant provisions of law**\_\_\_\_\_

**8. Name of the owner or incharge of the vehicle and address**\_\_\_\_\_

\_\_\_\_\_

**9. Date, time and place for compounding of the offence committed**

\_\_\_\_\_

**10. Place where the vehicle has been kept after seizer or detention**

\_\_\_\_\_

**11. The offence is compounded for Rs.** \_\_\_\_\_

**(Rupees \_\_\_\_\_) on request by the incharge of the vehicle.**

(Signature of the Authority)I agree to compound the offence for the amount specified above.(Signature of owner or incharge of the vehicle).Note :- Strike out whichever is not applicable.Form L. E.[Section 21 of the Motor Vehicles Act, 1988 and Rule 15(1) of the Punjab Motor Vehicles Rules, 1989]Intimation By Court of Endorsement of LicenceCourt of \_\_\_\_\_, Magistrate \_\_\_\_\_ Class\_\_\_\_\_ToThe Licensing Authority,\_\_\_\_\_Licence No. \_\_\_\_\_, dated the \_\_\_\_\_ issued by you in favour of -Name \_\_\_\_\_Name of father \_\_\_\_\_Permanent address \_\_\_\_\_Present

address \_\_\_\_\_ has been endorsed by this Court as follows :-Date of  
endorsement \_\_\_\_\_,Section  
\_\_\_\_\_ of the Motor Vehicles Act, 1988 and rule  
\_\_\_\_\_ of the Punjab Motor Vehicles Rules, 1989.Punishment order by the Court  
\_\_\_\_\_Magistrate  
\_\_\_\_\_Class,

(Date) \_\_\_\_\_

Copy forwarded to the Licensing Authority, \_\_\_\_\_ by whom the licence  
was last renewed on \_\_\_\_\_ 19 .Magistrate

\_\_\_\_\_ Class, \_\_\_\_\_(Date)Form

L.R.[Section 15(6) of the Motor Vehicles Act, 1988 and rule 15(2) of the Punjab Motor Vehicles  
Rules, 1989.]Intimation of Renewal of LicenceFromThe Licensing

Authority, \_\_\_\_\_ .ToThe Licensing

Authority, \_\_\_\_\_ .Licence No. \_\_\_\_\_ , dated, \_\_\_\_\_ issued

by you in favour of -Name \_\_\_\_\_Name of father

\_\_\_\_\_Address \_\_\_\_\_ has been renewed  
by me for a period of twelve months with effect from the \_\_\_\_\_ day of

\_\_\_\_\_ 19 .Licensing Authority.Form L.A.D.[Rule 15(3) of the

Punjab Motor Vehicles Rules, 1989]Intimation of An Addition Made By One Licensing Authority

Upon A Licence Issued by Another Authority In Respect of The Classes of Vehicle Which The Holder

is Entitled to DriveFromThe Licensing Authority, \_\_\_\_\_ToThe Licensing

Authority, \_\_\_\_\_ Licence No. \_\_\_\_\_, dated \_\_\_\_\_ issued by

you in favour of -Name \_\_\_\_\_Name of father

\_\_\_\_\_Perrmanent address

\_\_\_\_\_Present address

\_\_\_\_\_ has, with effect from the

\_\_\_\_\_ day of \_\_\_\_\_ 19 , been extended by me to entitle the

holder to drive the following further class of vehicle.

(Date) Licensing Authority,

Form L. CON. A.[Rule 22(1) of the Punjab Motor Vehicles, Rules, 1989]Form of Application For A

Conductor's Licence

**1. Name** \_\_\_\_\_

**2. Name of father** \_\_\_\_\_

**3. Present address** \_\_\_\_\_

**4. Permanent address** \_\_\_\_\_

5. I have| not previously held a conductor's licencepreviously held a conductor's licence issued by :-

**6. I am not disqualified for holding a conductor's licence.**

**7. I hereby declare that I am not less than eighteen years of age and that the above statements are true. I attach two copies of a recent photograph of myself.**

(Signature or thumb-impression of applicant)(Date){||-| Duplicate signature or thumb-impression of applicant.}|Licence No. \_\_\_\_\_ (expiring on the 19 .) and Badge No. \_\_\_\_\_

(Date) Licensing Authority,

Form F.A.B.[Rule 22(1) of the Motor Vehicles Rules, 1989]Form of Medical Certificate Showing competence to undertake first-aid work(To be granted by the St. John Ambulance Association, India).I certify that \_\_\_\_\_ aged about \_\_\_\_\_ years is qualified to use the first-aid box.

(Date) Signature

DesignationForm M. C. CON.[Rule 22(2) of the Punjab Motor Vehicles Rules, 1989]Form of Medical Certificate For A Conductor(To be filled in by a registered medical practitioner)

**1. Name of person examined** \_\_\_\_\_

**2. Father's Name** \_\_\_\_\_

**3. Apparent age** \_\_\_\_\_

**4. Is the person examined, to the best of your judgement, fit physically and mentally to perform the duties of a conductor of a stage carriage ?**

**5. Does he show any evidence of being addicted to the excessive use of alcohol or drugs?**

**6. Marks of identification.**

\_\_\_\_\_  
I certify that the person examined has affixed his signature or thumb- impression hereto in my presence and that to the best of my knowledge and belief the above statements are true and that the attached photograph is a reasonably correct likeness of the person described.

{|

Space for Photograph

| Signature or thumb-impression of person examined|-| Name

\_\_\_\_\_|-| Signature \_\_\_\_\_|-|

Designation \_\_\_\_\_}|Form L. CON.[Rule 22(4) of the Punjab Motor

Vehicles Rules, 1989]Government of PunjabConductor's LicenceName

\_\_\_\_\_,son  
of \_\_\_\_\_ of (present address)  
\_\_\_\_\_(permanent address)  
\_\_\_\_\_

{|

Photograph

|| {|-|| Duplicate signature or thumb-impression of applicant from From L.Con.A|}|}|it licensed as a  
conductor and has been issued conductor's badge No. \_\_\_\_\_.

(Date) Licensing Authority,

Form L. CON. R.A.(Rule 24 of the Punjab Motor Vehicles Rules, 1989)Form of Application For  
Renewal of A Conductor's Licence

**1. Name**

**2. Name of father**

**3. Present Address**

**4. Permanent Address**

**5. Conductor's Licence No.**

**6. Valid upto**

**7. Issued by**

**8. Fee paid for renewal, vide cash receipt/Treasury Challan No. and date**

**9. Badge No.**

**10. I am not disqualified for holding a Conductor's Licence.**

(Signature or thumb impression of applicant)Verified and renewedUpto

\_\_\_\_\_. (Licensing Authority)\_\_\_\_\_

(Station)No. \_\_\_\_\_ Dated \_\_\_\_\_ Copy is forwarded to the

Licensing Authority (Motor Vehicle) \_\_\_\_\_ for information. It is requested that the

records of his office with regard to the issue of Conductor's Licence to the above named

applicant.Licensing AuthorityThis information is required to be sent if the licence renewed by any

authority other than the authority which had issued the licence.Form P.P.T.V.(Rule 37 of the Punjab

Motor Vehicle Rules, 1989)Form of Exhibition of Particulars of Transport Vehicles

1. Registered No. of Vehicle \_\_\_\_\_
2. Name and address of owner as set forth in the certificate of Registration  
\_\_\_\_\_
3. Engine No. \_\_\_\_\_
4. Chassis No. \_\_\_\_\_
5. Date of validity of certificate of fitness \_\_\_\_\_
6. The registered unladen weight in Kgs. \_\_\_\_\_
7. The gross vehicles weight in Kgs. \_\_\_\_\_
8. Carrying capacity (a) if a stage carriage or a contract carriage number of passengers for whom accommodation is provided (i) \_\_\_\_\_(ii)(b) if a goods vehicle in Kgs. \_\_\_\_\_
9. Registered front axle weight \_\_\_\_\_
10. Rear axle weight \_\_\_\_\_
11. Number and size of tyres :-

(a)Front axle \_\_\_\_\_(b)Rear axle  
\_\_\_\_\_(c)Intermediate axle, if any  
\_\_\_\_\_.Signature and name of authority issuing the original certificate of  
registration.Place of issue \_\_\_\_\_Dated  
\_\_\_\_\_Form C. F.(See Rule 39 of the Punjab Motor Vehicles Rules,  
1989)Government of The PunjabTemporary Authorisation Permitting The Use of A Vehicle When  
The Certificate of Fitness Has ExpiredThe certificate of fitness of (1)  
\_\_\_\_\_Registration mark  
\_\_\_\_\_Last renewed by  
\_\_\_\_\_on  
\_\_\_\_\_ has expired.I hereby authorise the  
use of the vehicle until the \_\_\_\_\_ day of \_\_\_\_\_ 19;  
provided that it is forthwith removed with all reasonable despatch to the area of the authority by  
whom the certificate of fitness is due to be renewed:Provided also that while being used under this  
authorisation the vehicle shall not (2)-(a)carry more than \_\_\_\_\_ persons  
excluding the driver (2);(b)carry any goods (2);(c)be driven at a speed in excess of \_\_\_\_\_ 1

(kilometres) per hour (2)(3)\_\_\_\_\_Dated at \_\_\_\_\_  
\_\_\_\_\_on the \_\_\_\_\_  
day of \_\_\_\_\_ 19\_\_\_\_\_.

**1. Here enter brief description of vehicles.**

**2. Strike out if not required.**

**3. Signature and designation of authority.**

Form C.F.X.(See rule 40 of Punjab Motor Vehicles Rules, 1989)Certificate of Fitness of Transport  
VehiclesInspection Record

## **Part I – Registration Particulars**

Note. - Details will be entered after verification of the physical features of the vehicle with the particulars noted in the Certificate of Registration.

**1. Registration Mark and Class.**

**2. Make and Model.**

**3. Date of Original Registration.**

**4. Type of body.**

**5. Chassis number.**

**6. Engine number.**

**7. Wheel base.**

**8. Seating Capacity/R.L.W.**

**9. Number and size of tyres**

Front axleRear axleAny other axle,

**10. Number, date and validity of last certificate of fitness.**

**11. Name and address of Registered owner.**

**12. Remarks (alteration of Registration particulars and connected matters.)**

## **Part II – Currency of Record**

Note. - Details will be entered on a reference to the concerned documents. Period of validity of :- (a) Permit. (b) Insurance. (c) Vehicle Tax. (d) Passenger Tax. (e) Goods Tax.

## **Part III – Condition of Import Units and Systems**

Note. - If the condition is satisfactory state 'O.K.' and if defective state the defects in brief against each item :-

**1. Engine**

**2. Clutch**

**3. Gear Box.**

**4. Propeller Shafts.**

**5. Universal Joints.**

**6. Differential.**

**7. Road Wheels.**

**8. Tyres.**

**9. Chassis Frame.**

**10. Front Axle.**

**11. Rear Axle.**

- 12. E.A. Springs.**
- 13. R.A. Springs.**
- 14. Exhaust Pipes.**
- 15. Foot Brake and Sarvo Equipments.**
- 16. Hand Brake.**
- 17. Fuel System.**
- 18. Steering System.**
- 19. Electrical System.**
- 20. Lights.**
- 21. Wind Screen Wiper.**
- 22. Horn.**
- 23. Speedometer.**
- 24. Rear View Mirror.**
- 25. Instruments and Gauges.**
- 26. Paint Work.**
- 27. Upholstery cushions and Curtains.**
- 28. Tool Box.**
- 29. Spare Wheel.**
- 30. Luggage Carrier and Tarpaulin.**

### **31. Taxi meter (for Motor Cabs).**

## **Part IV – General**

Note. - State Yes/No against each item.

### **1. Part B Permit Exhibited.**

### **2. Fare Table Exhibited.**

### **3. Time Schedule Exhibited.**

### **4. Blue print of seating arrangements exhibited inside stage carriage.**

### **5. Registration marks exhibited properly.**

### **6. First Aid Box Provided.**

### **7. Fire Extinguisher Provided.**

### **8. Complaint Book Provided.**

### **9. Particulars (weight, tyre size etc.) displayed on the left side of the body.**

Certificate of fitness refused for the defects stated above and for the following reasons:-Certificate of fitness issued/renewed valid from \_\_\_\_\_ to \_\_\_\_\_ vide No. \_\_\_\_\_

Place Signature

Dated Make

SignatureName(Designation)Inspecting Officer.Instructions of inspecting staff points to look for in the inspection of a vehicle.

### **1. Engine -**

(a)Check engine for easy starting.(b)Check if any noise in engine such as piston main bearing connecting rod, bearing of loose tappet.(c)Check if engine gives exclusively smoke due to poor compression or defective fuel injection pump or injectors.(d)Check the water body.(e)Check fan belt and its play.(f)Check the air cleaner.(g)Check the silencer pipe.(h)Any other defect.

## **2. Transmission -**

(a)Check clutch Pedal free play.(b)Check clutch and brake pedals bushes for some play.(c)Check the slipping of the clutch plate.(d)Check whether the gears are shifted smoothly when the clutch pedal is pressed.(e)Check any noise in the gear box.(f)Any other defect.

## **3. Propeller shaft and Universal Joints -**

(a)Check the propeller shaft centre bearing gear oil seals for wear.(b)Check all the universal joints and yokes for wear.(c)Check the splines of the propeller shaft for wear.(d)Any other defect.

## **4. Differential -**

(a)Check the backlash between level pinion and crown wheel and any noise in the differential.(b)Any other defect.

## **5. Front Axle -**

(a)Check the king pins and bushes play after jack up of the front axle in the centres.(b)Check front wheel bearing play.(c)Check front shock absorbers.

## **6. Steering -**

(a)Check the steering backlash.(b)Check the rod end.(c)Check drag link and drop arm ends.(d)Check steering box foundation nut bolts.

## **7. Rod Springs and suspension -**

(a)Check the alignment of the rod springs if they require retensioning.(b)Check hanger brackets and shackle pins for wear.

## **8. Electric System -**

(a)Check the self-starter and dynamo working.(b)Check the head light and dipper.(c)Check the parking lights and electric indicator.(d)Check the wiper.(e)Check the electric horn.(f)Check tail and stop lights.(g)Check amps meter charging.(h)Check the battery terminals and poles.

## **9. Instruments and Gauges, -**

(a)Check the air pressure vacuum gauges.(b)Check the oil pressure gauges.(c)Check the speedometer/technograph while road test.(d)A rear view mirror to be fitted near the driver door.(e)Two cat eyes reflectors to be fitted in the front and the rear of the vehicle.

## 10. Tyres -

(a)Check the condition of the tyres and tread wear, check the spare wheel of the vehicle.

## 11. Final Road Test -

Each vehicle should be tested on road and the following items should be checked:-(a)Check the efficiency of foot and hand brakes.(b)Working of Speedometer.

## 12. Condition of body of stage carriages -

The length, width, height, rear overhang and the overall length of the transport vehicles should be according to the permissible dimensions as per the Central Motor Vehicle Rules, 1989. The transport vehicles should be built according to the approved drawing of the Authority.

## 13. Particulars to be displayed on left side of body -

(a)Name of the owner.(b)Class of the vehicles.(c)U. L.W.(d)G. V. W.(e)R. A. W.(f)Tyre size.(Signature of the Board of Inspection/Authorised Testing Station with seal).It is certified that the above-referred particulars from serial Nos. 1 to 13 have been personally checked and found in order/not in order by me.[Form C.R. TEM] [Substituted vide Punjab Government Notification No. G.S.R.7/C.A.59/88//Ss. 43, 65 and 212/Amd.(7)/2000, dated 4.1.2000.][Rule 42(4) of the Punjab Motor Vehicles Rules, 1989]Temporary Certificate Of RegistrationFoil 'A'Temporary Registration Marks\_\_\_\_\_Name of Owner\_\_\_\_\_Father's/Husband's Name\_\_\_\_\_Full AddressDESCRIPTION OF VEHICLE

1. Class of Vehicle\_\_\_\_\_

2. Maker's Name\_\_\_\_\_

3. Type of Body\_\_\_\_\_

4. Chassis No.\_\_\_\_\_

5. Engine No.\_\_\_\_\_

6. Fuel used\_\_\_\_\_

**7. Month and year of Manufacture** \_\_\_\_\_

**8. Seating Capacity** \_\_\_\_\_

**9. (a) Name of Insurance Cover Note** \_\_\_\_\_

(b) Name and date of Insurance Company \_\_\_\_\_ (c) Validity of the Insurance Company \_\_\_\_\_

**10. Place at which the vehicle is to be** \_\_\_\_\_

permanently registered \_\_\_\_\_

**11. Valid upto the date with effect from** \_\_\_\_\_ **to** \_\_\_\_\_

Date: Name and Signature of Registering Authority For Temporary Registration. Place Foil 'B' Copy in duplicate is forwarded to the Registering Authority \_\_\_\_\_ for information and necessary action.

Date: Name and Signature of Registering Authority For Temporary Registration. Place Counter Foil A copy is returned to M/s. \_\_\_\_\_ with the remarks that the above specified vehicles has been assigned permanent registration Mark No. \_\_\_\_\_. Please confirm the genuineness of the temporary certificate of registration and other documents issued by you.

Form R. TEM. [Section 130(1) of the Motor Vehicles Act, 1988 and Rule 46 of the Punjab Motor Vehicles Rules, 1989] Receipt For Certificate of Registration and Certificate of Fitness of A Transport Vehicles. I have taken possession of the certificate of registration and the certificate of fitness hereunder described :-

Registration number \_\_\_\_\_ Engine Number \_\_\_\_\_ Chassis Number \_\_\_\_\_

\_\_\_\_\_ Seating capacity including driver \_\_\_\_\_

\_\_\_\_\_ Last date of expiry of the certificate of fitness \_\_\_\_\_

\_\_\_\_\_ Name of holder \_\_\_\_\_

\_\_\_\_\_ Father's name \_\_\_\_\_

\_\_\_\_\_ Present address \_\_\_\_\_

\_\_\_\_\_

**2. The holder is hereby exempted from the obligation to produce the certificate of registration and the certificate of fitness.**

**3. This receipt is valid until the \_\_\_\_\_ day of \_\_\_\_\_, 19 , or until the licence has been suspended or cancelled by competent authority, whichever is sooner.**

(1) \_\_\_\_\_ (Date) The above receipt is hereby extended up to the \_\_\_\_\_ day of \_\_\_\_\_ 19 , on the same

conditions.(1)\_\_\_\_\_ (1)Signature and designation of the authority granting or extending the receipt.

\_\_\_\_\_Form T. O.[Rule 48(1) of the Punjab Motor Vehicles Rules, 1989]Intimation of Transfer of Ownership of A Motor VehicleI (1) \_\_\_\_\_, son of \_\_\_\_\_ of (2) \_\_\_\_\_ forward herewith the certificate of registration and the certificate of fitness; (3) of motor vehicle No. \_\_\_\_\_ (4) the ownership of which has been transferred to me by (5) \_\_\_\_\_ and hereby request that the said vehicle may be registered in my name and that the certificate of registration be amended accordingly.

(Date) Signature or thumb-impression of transferee.

Endorsement in the case of a vehicle which is the subject of an agreement of hire purchase.I/We - (6) being a party to an agreement of hire purchase in respect of the vehicle specified above consent to the transfer of ownership of the said vehicle to (1) \_\_\_\_\_ with whom I/We - (6) have entered into an agreement of hire purchase in respect of this vehicle (6).

(Date) Signature of the party other than the owner.\_\_\_\_\_

(1)Here enter full name of transferee.(2)Here enter full address of transferee.(3)Strike out the words "and the certificate of fitness" when inapplicable.(4)Here enter registration mark.(5)Here enter name and address of person or firm from whom the vehicle has been transferred.(6)Strike out whichever is inapplicable.Form C. R. T. I.[Rule 48(2) of the Punjab Motor Vehicles Rules, 1989]Communication To Original Registering Authority of transfer of Ownership of A Motor VehicleToThe Registering Authority,\_\_\_\_\_Motor Vehicle No. \_\_\_\_\_ (1) registered by you in the name of \_\_\_\_\_ has, with effect from the \_\_\_\_\_ day of \_\_\_\_\_ 19\_\_\_\_ been transferred to the name of \_\_\_\_\_ (2), son of \_\_\_\_\_ of (3) \_\_\_\_\_The other party to the hire purchase agreement has consented to the transfer, and has transferred and has entered into an agreement of hire purchase in respect of the vehicle with the transferee (4).

(Date) Registering Authority,

\_\_\_\_\_enter registration mark.(2)Here enter full name of transferee.(3)Here enter address of transferee.(4)Strike out, if inapplicable.Form R. M. J.[Section 49 of the Motor Vehicles Act, 1988 and Rule 49 of the Punjab Motor Vehicles Rules, 1989]Intimation of Assignment of New Registration Mark And Call For Records From Original AuthorityFromThe Registering Authority,\_\_\_\_\_To(1)\_\_\_\_\_

hereby assign the registration mark \_\_\_\_\_ to the motor vehicle previously registered as \_\_\_\_\_.The new mark shall within ten days of the issue of this notice, be affixed to the vehicle in the place of the old, in the manner prescribed.

(Date) Registering Authority,

Copy forwarded to the Registering Authority \_\_\_\_\_ for information. It is requested that the registration records of the vehicle or a certified copy of the same be transferred to this office.

(Date) Registering Authority,

(1)Here enter full name and present address of owner.If the vehicle is the subject of hire-purchase

agreement, a copy of this letter should be sent to the hire-purchase company concerned. Form H.P. ENTRY [Rule 53 of the Punjab Motor Vehicles Rules, 1989 and Section 51(10) and (11) of the Motor Vehicles Act, 1988] Form of Intimation of Entry of Hypothecation of Vehicle In The Certificate of Registration To The Financier From The Registering Authority

(M.V.) \_\_\_\_\_ . To \_\_\_\_\_  
(Name and address of the financier) No. \_\_\_\_\_ Dated \_\_\_\_\_  
\_\_\_\_\_ The motor vehicle bearing Engine No. \_\_\_\_\_,  
Chassis No. \_\_\_\_\_, Model \_\_\_\_\_ has been registered with this office in the name  
of \_\_\_\_\_, resident of \_\_\_\_\_ has been assigned  
mark \_\_\_\_\_. The following entries have been made in the certificate of  
registration on the basis of request/consent given by you :-

1. \_\_\_\_\_

2. \_\_\_\_\_ &

3. \_\_\_\_\_

(Registering authority) Form S. R. V. [Rule 54 of the Punjab Motor Vehicles Rules, 1989 and Section 62 of the Motor Vehicles Act, 1988] Form of Intimation Regarding

Stolen/recovered From \_\_\_\_\_ (name of Police  
Station/I/C) To The State Transport Commissioner, Punjab. No. \_\_\_\_\_

Dated \_\_\_\_\_ Sir, The following  
particulars of stolen/recovered vehicle are forwarded for your information and record :-

**1. Serial No.**

**2. Registration mark.**

**3. Name of owner and his address.**

**4. Type/Model and class of vehicle.**

**5. Engine No.**

**6. Chassis No.**

**7. Date, time and place when stolen.**

**8. Date, time and place of recovery.**

**9. FIR Number and date.**

**10. Remarks**

(Signatures)Police Officer (authorised)\*Strike out whichever is not applicable. Form P.St. S.A. (Rule 62 of the Punjab Motor Vehicles, Rules, 1989) Application For A Permit In Respect of a Service of Stage Carriages To The Regional Transport

Authority \_\_\_\_\_ In accordance with the provisions of sections 69, 70 and 80 of the Motor Vehicles Act, 1988, I/We the undersigned hereby apply for a permit under section 66 of that Act in respect of a service of stage carriages as hereunder set out :-

**1. Full name** \_\_\_\_\_

**2. Name of father (in the case of an individual)** \_\_\_\_\_

**3. Address** \_\_\_\_\_

**4. Route, routes or area for which a permit is desired** \_\_\_\_\_

**5. Maximum number of vehicles which it is desired to operate at any one time under the terms of the permit** \_\_\_\_\_

**6. Minimum number of vehicles which will be operated at any one time under the terms \_\_\_\_\_ of the permit in the area or on any route or part of any route, and the minimum number of daily vehicles trips** \_\_\_\_\_

**7. The type or types of vehicles to be used on the service and the approximate seating capacity are**

\_\_\_\_\_ vehicles of not less than \_\_\_\_\_ and not more than \_\_\_\_\_ seats \_\_\_\_\_ vehicles of not less than \_\_\_\_\_ and not more than \_\_\_\_\_ seats \_\_\_\_\_ vehicles of not less than \_\_\_\_\_ and not more than \_\_\_\_\_ seats \_\_\_\_\_ vehicles of not less than \_\_\_\_\_ and not more than \_\_\_\_\_ seats

**8. Particulars of the time-tables(s) proposed are appended.**

**9. The standard rate of fare which it is proposed to charge is \_\_\_\_\_  
paise per passenger per kilometre.**

**10. Particulars of any stage or contract carriage permit (or similar authorisation under the Motor Vehicle Act, 1939/the Motor Vehicles Act, 1988 valid in the State) held by the applicant and details of the route over which or area in which the applicant's vehicles were regularly operated (i) before July, 1989 (ii) subsequently.**

\_\_\_\_\_

**11. Particulars of any permit or public motor vehicle licence held by the applicant in respect of the use of any transport vehicle in India during the last four years which has been the subject of an order of cancellation.**

**12. Provided that sufficient passengers do not offer at any time I/We desire to carry goods in these vehicles in addition to passengers on the understanding that goods will be so carried on not more than \_\_\_\_\_ of the vehicle trips on any route on any one day and that not more than \_\_\_\_\_ the accommodation for passengers in any vehicle will be replaced by goods.**

13. | I/We | declare that not more than \_\_\_\_\_ of these vehicles are or will be the subject to permits (other than temporary permits) for use as contract carriages.

14. | I am/We are | at present in possession of \_\_\_\_\_ vehicles available for use under the permit applied for. The vehicles are my/our own property.

(If the vehicles are not the property of the applicant, give particulars of the hiring agreement).

15. | I/We | desire a permit valid for \_\_\_\_\_ year.

16. | I/We | hereby declare that the above statements are true and agree that they shall be conditions of any permit issued to | me/us

(Date) Signature or thumb impression of applicant,

To be filled in by the office of the Transport Authority.

**1. Date of receipt.**

**2. Date of publication.**

**3. Date or dates of hearing of objections.**

**4. Granted/Granted in modified form/Rejected on the \_\_\_\_\_ day of \_\_\_\_\_ 19**

**5. Number of permit issued.**

SecretaryRegional Transport Authority,Form P. Co. P.A.(Rule 62 of the Punjab Motor Vehicles Rules, 1989)Application For A Contract Carriage PermitToThe Regional Transport Authority,\_\_\_\_\_.In accordance with the provisions of sections 69, 73 and 80 of the Motor Vehicles Act, 1988, I/we the undersigned hereby apply for a permit under section 66 of that Act in respect of a contract carriage as hereunder set out.

**1. Full name** \_\_\_\_\_

**2. Name of father (in the case of an individual)** \_\_\_\_\_

**3. Address** \_\_\_\_\_

**4. Area for which required** \_\_\_\_\_

**5. Brief description of vehicle (I)** \_\_\_\_\_

**6. Seating capacity**

(1)Here state whether single or double deck fixed roof or hood only, glass window or side curtains, in the case of a motor cab enter accordingly.

**7. Particulars of service to be performed by the contract carriage (not necessary in case of a motor cab other than one used, on a hill road), and the manner in which it is claimed that the public convenience will be served.**

\_\_\_\_\_

**8. (In the case of a motor cab). District or other area which the applicant desires to have appointed as the head quarters of vehicle.**

\_\_\_\_\_

**9. Particulars of any stage carriage or contract carriage permit (or similar authorisation under the Motor Vehicles, Act, 1939 or the Motor Vehicles, Act, 1988 valid in a State and held by the applicant in respect of :-**

(a) this vehicle \_\_\_\_\_ (b) any other vehicles \_\_\_\_\_

**10. Particulars of any permit, public motor vehicles licence or similar authorisation under the Motor Vehicles Act, 1939 or the Motor Vehicles Act, 1988 held by the applicant in respect of the use of any transport vehicle in India during the last four years which has been the subject of an order of suspension or cancellation.**

11. | I am | We are | in possession of the vehicle, which is | my | your | own property.

(If the vehicle is not the property of the applicant give particulars of the hiring agreement).

12. | I | We | have not yet obtained possession of the vehicle and | I | We | understand that the permit will not be issued until | I | We | have done so and have produced the certificate of registration.

13. | I | We | intend to drive the vehicle.

14. | I | We | desire a permit valid for \_\_\_\_\_ years.

15. | I | We | hereby declare that the above statements are true and agree that they shall be conditions of any permit issued to me/us.

(Date) Signature or thumb-impression of applicant. \_\_\_\_\_

be filled in the office of the Transport Authority.

**1. Date of receipt** \_\_\_\_\_

circulation to members \_\_\_\_\_

**2. Date of consideration at meeting** \_\_\_\_\_

decision by Chairman \_\_\_\_\_

**3. Granted/Granted in modified form/Rejected on the \_\_\_\_\_ day of \_\_\_\_\_ 19 .**

**4. Number of permit** \_\_\_\_\_

Strike out in applicable alternatives throughout. Form PPSVA (Rule 62 of the Punjab Motor Vehicles Rules, 1989) Application For Permit In Respect of Private Service Vehicle. To The Regional Transport Authority, \_\_\_\_\_ In accordance with the provisions of sections 69, 76 and 80 of the Motor Vehicles Act, 1988, I the undersigned hereby apply for a permit under section 66 of the Act in respect of a Private Service Vehicle as hereunder.

**1. Full Name** \_\_\_\_\_

**2. Name of father (in the case of an individual)** \_\_\_\_\_

**3. Address** \_\_\_\_\_

**4. Route or routes or area for which the permit is desired.** \_\_\_\_\_

**5. Manner and purpose of carrying persons otherwise than for hire or reward or in connection with the traders business :** \_\_\_\_\_

**6. Brief description of vehicle (1)** \_\_\_\_\_

**7. Seating capacity** \_\_\_\_\_

8. A time-table is appended will be arranged with other operators on the route (Alternatively). - No time-table is proposed but I undertake to run the following minimum service :-  
\_\_\_\_\_

**9. Particulars of any stage carriage or contract carriage permit (or similar authorisation under the Motor Vehicles Act, 1939/or the Motor Vehicles Act, 1988) valid in the State and held by the applicant in respect of**

(a) This vehicle \_\_\_\_\_ (b) any other vehicle  
\_\_\_\_\_  
Details of any route or routes over which this vehicle was operated regularly (i) before December, 1988 and (ii) subsequently  
\_\_\_\_\_

**10. Particulars of any permit or public motor vehicle licence held by the applicant in respect of the use of any transport vehicle in India during the last four years which has been the subject of an order of cancellation.** \_\_\_\_\_

**11. (i) I/We desire to use the vehicle for the carriage of goods as a goods carriage and I/We apply for a goods carriage permit in addition to a stage carriage permit in respect of the route, routes or area above specified.**

**(ii) I/We intend to carry goods of the following description \_\_\_\_\_**

**12. I/we are already in possession of the vehicle which is my own property, (If the vehicle is not the property of the applicant, give particular of the hiring agreement).**

**13. I/We have not yet obtained possession of the vehicle and I/We understand that the permit will not be issued until I/We have done so and have produced the certificate of registration.**

**14. I/We intend to drive the vehicle.**

**15. I/We desire a permit valid for \_\_\_\_\_ years.**

**16. I/We hereby declare that the above statements are true and agree that they shall be conditions of any permit issued to me/us.**

(Date) Signature or thumb impression of the applicant. To be filled in the office of the Regional Transport Authority.

**1. Date of receipt.**

**2. Date of publication.**

**3. Date or dates of hearing of objection.**

**4. Granted/Granted in modified form/Rejected on the \_\_\_\_\_ day of \_\_\_\_\_ 19 .**

**5. Number of permit issued.**

Secretary, Regional Transport Authority. Strike out inapplicable entries or alternative throughout. Form P.G.C.T.B.A. (Rule 62 of the Punjab Motor Vehicles Rules, 1989) Application For Goods Carriage For or in Connection with Trade or Business. To The Regional Transport Authority, \_\_\_\_\_. In accordance with the provisions of sections 69, 76 and 80 of the Motor Vehicles Act, 1988, I/We the undersigned hereby apply for a goods carriage

permit under the provisions of section 66 of that Act as hereunder set out.

**1. Full name** \_\_\_\_\_

**2. Name of father (in the case of an individual)** \_\_\_\_\_

**3. Address** \_\_\_\_\_

**4. Area for which the permit is desired, with giving full particulars of the basis of the application.** \_\_\_\_\_

**5. Type and capacity of vehicles including trailers and the alternative trailers of articulated vehicles.** \_\_\_\_\_

| Number of vehicles | Type | Load capacity (1Kgs.) | Laden weight (1Kgs.) | Registration mark |
|--------------------|------|-----------------------|----------------------|-------------------|
|--------------------|------|-----------------------|----------------------|-------------------|

Notes. - (1) If any of the vehicles are not in the possession of the applicant it will suffice if the figures in columns 3 and 4 are correct within ten per cent above or below, subject to any limitation of weight in force. The certificates of registration must be presented to the Transport Authority so that the registration marks may be entered on the permit before the permit is issued. (2) If the application is in respect of a large number of vehicles than can be specified above, an additional schedule may be appended in the same form.

**6. Nature of the applicant's business** \_\_\_\_\_

**7. Specification of the goods to be carried** \_\_\_\_\_

**8. Particulars of any other goods carriage permit (or similar authorisation under the Motor Vehicles Act, 1939) the Motor Vehicles Act, 1988 held by the applicant, and the area in which the vehicle was regularly used (a) before July, 1989 and (b) subsequently.** \_\_\_\_\_

9. | IWe| desire a permit valid for \_\_\_\_\_ years.

10. | IWe| hereby declare that the above statements are true and agree that they shall be conditions of any permit issued to| meUs| .

(Date)(Signature or thumb-impression of applicants)\_\_\_\_\_

out inapplicable alternatives throughout.To be filled in the office of the Transport Authority.

**1. Date of receipt \_\_\_\_\_ . Circulation to members \_\_\_\_\_ ,**

**2. Date of consideration at meeting \_\_\_\_\_ decision by Chairman \_\_\_\_\_**

**3. Granted/Granted in modified form/Rejected on the \_\_\_\_\_ day of \_\_\_\_\_ 19 \_\_\_\_**

**4. Number of permit \_\_\_\_\_**

Secretary,Regional Transport Authority.Strike out inapplicable alternatives throughout.Form P.G.C.H. R.A.(Rule 62 of the Punjab Motor Vehicles Rules, 1989)Application For A Goods Carriage For Hire or RewardToThe Regional Transport Authority,\_\_\_\_\_.In accordance with the provisions of sections 67, 77 and 80 of the Motor Vehicles Act, 1988, I/We the undersigned hereby apply for a goods carriage permit under section 66 of the Act as hereunder set out.

**1. Full Name \_\_\_\_\_**

**2. Name of father (in the case of an individual) \_\_\_\_\_**

**3. Address \_\_\_\_\_**

**4. Route, Routes or area for which the permit is desired - \_\_\_\_\_**

**5. Type and capacity of vehicles including trailer and alternative trailers of articulated vehicle.**

Number of vehicles   Type   Load capacity (1Kgs.)   Laden weight (1Kgs.)   Registration mark

Note 1. - If any of the vehicles not in the possession of the applicant it will suffice if the figures in columns 3 and 4 are correct within ten per cent above or below, subject to any limitation of weight in force. The certificate of registration must be presented to the Transport Authority so that the registration marks may be entered in the permit before the permit is issued. Note 2. - If the application is in respect of a larger number of vehicles than can be specified above an additional schedule may be appended to the form.

**6. Full particulars of the service to be performed by the vehicles and the manner in which claimed that the public convenience will be served.**

**7. Particular of any goods carriage permit or public motor vehicle licence held by the applicant at present or at any time during the last two years, and the maximum and minimum rates charged for the carriage of goods with details or area over which the vehicles have been regularly operated.**

(Note :- If the particulars are extensive append a further statement.)

**8. Particulars of any goods carriage or public motor vehicle licence held by the applicant which has been the subject of any order of cancellation.** \_\_\_\_\_

**9. Particulars, other than particulars furnished under item 7, of any agreement or arrangement affecting in any material in respect the provision within the region of the Regional Transport Authority of facilities for the transport of goods for hire or reward entered into by the applicant with any other person by whom such facilities are provided, whether within or without the region** \_\_\_\_\_

10. (1) I/We| desire to use the vehicle or vehicles as \_\_\_\_\_ for the carriage of goods which are

myour| own property or the carriage of which is incidental to| myour| business of

(2) The goods which I/We desire to carry as goods carriage are \_\_\_\_\_

11. I/We| forward herewith the certificates of registration of the vehicles, (or)

I/We| will produce the certificates of registration of the vehicles before the permit is issued.

12. I/We| desire a permit valid for \_\_\_\_\_ years.

13. I/We| hereby declare that the above statements are true and agree that they shall be conditions of any permit issued to me/us.

Signature or thumb-impression of applicant(s). To be filled in the office of the Regional Transport Authority.

**1. Date of receipt** \_\_\_\_\_

**2. Date of publication** \_\_\_\_\_

**3. Date or dates of hearing of objections, if any** \_\_\_\_\_

**4. Granted/Granted in modified form/Rejected on the** \_\_\_\_\_ **day of**  
\_\_\_\_\_ **19**

**5. Number of permit issued.**

Secretary, Regional Transport Authority, Strike out inapplicable entries or alternatives throughout. Form M.P.Tem.A (Rule 62 of the Punjab Motor Vehicles Rules, 1989) Application For A Temporary Permit To The Regional Transport Authority, \_\_\_\_\_ In accordance with the provisions of Sections 64 and 87 of the Motor Vehicles Act, 1988.

I/We| the undersigned hereby apply for a temporary permit under sections 66 of that Act, as hereunder set out.

**1. Full name** \_\_\_\_\_

**2. Name of father (in the case of an individual)** \_\_\_\_\_

**3. Address** \_\_\_\_\_

**4. Purpose for which permit is required** \_\_\_\_\_

**5. Route or routes** \_\_\_\_\_

**6. Period of duration of permit : from** \_\_\_\_\_ **to** \_\_\_\_\_

7. Type and| laden weightseating capacity| of the vehicle or vehicles for which the permit is required. \_\_\_\_\_

8. (1) The registered owner(s) of the vehicle(s)| isare| \_\_\_\_\_| and the registration mark(s)| isare| \_\_\_\_\_

(2) The| vehicles hasvehicles have| not yet been hired by| meus| and| I/We| undertake to intimate the registration marks,

if required, within twenty-four hours of hiring the| vehiclevehicles

10. | IWe| hereby declare that the above statements are true and agree that they shall be conditions of any permit issued to me/us.

(Date)Signature or thumb impression of  
applicant(s).

be filled in the office of the Transport Authority.

**1. Date of receipt** \_\_\_\_\_

**2. Granted/Granted in modified form/Rejected on the** \_\_\_\_\_ **day of**  
\_\_\_\_\_ **19**\_\_\_\_\_.

**3. Permit number**

**4. Registration marks(s) of vehicle(s), if intimated after issue.**

Secretary,Regional Transport  
Authority.

out inapplicable alternatives throughout.Form S.P.SPECIAL PERMIT NO.(Rule 65 of the Motor  
Vehicles Act, 1989)Office of the State/Regional Transport Authority(i)Engine No.

\_\_\_\_\_ (ii)Chasis No.

\_\_\_\_\_ (iii)Registration No.

\_\_\_\_\_ registered by the Registering Authority

\_\_\_\_\_ and owned by

\_\_\_\_\_ son of

\_\_\_\_\_ (Permanent address)

\_\_\_\_\_ covered by permit No. \_\_\_\_\_

dated \_\_\_\_\_ issued by the State/Regional Transport Authority

\_\_\_\_\_ has been engaged by the person/persons, whose particulars are  
given below :-

Full name and name of father or husband    Age    Place of residence

1

2

3

4

5

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30

The above person/persons will be visiting the following places :- \_\_\_\_\_ This permit is valid up to \_\_\_\_\_ Certified that in respect of the vehicle mentioned above, all taxes and fees payable in this State up to the date of expiry of this permit have been paid. This permit is valid throughout India without countersignature by any other Regional/State Transport Authority. It shall be produced on demand by any police officer in uniform (not below the rank of Sub-Inspector). Signature of the issuing authority. The validity of this permit extended up to \_\_\_\_\_. During this period the party may visit the following places also

:- \_\_\_\_\_ Signature of the Competent Authority. Notes. - (1) The period of validity of the permit shall not exceed three months. Extensions may be granted for a maximum period of one month. (2) The competent authority shall mean the Regional Transport Authority which issued the permit or the Regional Transport Authority of the region in which the party happens to be at the time of applying for extension, whichever is nearer. While granting extension the Competent Authority shall satisfy that all taxes and fees payable upto the period of extension have been paid by the applicant. IMPORTANT The issuing authority may please cross out all the blank columns not utilised. Form P.P.S.V. (Rule 65 of the Punjab Motor Vehicles Rules, 1989) Government of Punjab Permit In Respect of Private Service Vehicle

## Part A – (Full permit to be kept by holder)

No. PPSV \_\_\_\_\_ Regional Transport Authority  
\_\_\_\_\_

1. Name of holder \_\_\_\_\_

2. Father's name \_\_\_\_\_

3. Address \_\_\_\_\_

4. (a) Registration mark - \_\_\_\_\_

(b) The vehicle is held under a hire-purchase agreement with \_\_\_\_\_

5. Maximum number of passengers which may be carried at any one  
\_\_\_\_\_

6. A conductor shall be carried on the vehicle at all times when it is in use as a stage carriage or contract-carriage(s).

7. Routes/Area(s) for which the permit is valid \_\_\_\_\_

8. Date of expiry \_\_\_\_\_

9. Manner and purpose of carrying persons \_\_\_\_\_

10. Particulars of time-table to be observed, if any (4) \_\_\_\_\_

(1) Here enter the name of the State. (2) Strike out if not considered necessary. (3) Strike out words not required. (4) Here enter brief particulars, e.g. two trips each way daily "or" vide time-table appended.

11. Whether the time-table is to be exhibited on the vehicle \_\_\_\_\_

12. The records to be maintained and the dates on which returns are to be made to the Transport Authority  
\_\_\_\_\_

**13. When the vehicles is not in use it shall not be halted in any public place except at a stand or a parking place appointed by a competent authority under section 117 of the Act.**

**14. The fees payable for this permit shall be paid on the due dates as laid down in rule 68 of the Punjab Motor Vehicles Rules, 1989.**

**15. Any other conditions \_\_\_\_\_**

**16. Under the provisions of the Punjab Motor Vehicles Rules, 1989, this permit is valid also in the regions and subject to the conditions set out below :-**

Region        { |  
Route(1)Area  
| Conditions|}

**17. This permit does not entitle the holder to use the vehicle as a stage carriage on any road in respect of which the Regional Transport Authority concerned may have made an order limiting the number of stage carriages permitted to operate therein, unless the road is specifically mentioned in entry 7 above.**

**18. This permit does not entitle the holder except to the extent indicated here, to use the vehicle as a contract carriage or as a goods vehicle on any road in respect of which the Regional Transport Authority concerned may have made an order limiting the number of contract carriages or goods carriages (as the case may be) permitted to operate thereon,**

\_\_\_\_\_

**19. The holder of this permit shall exercise such supervision over the work of his employees as is necessary to ensure that the vehicle is operated conformably with the Act and the rules made thereunder and with due regard for the comfort, convenience and safety of the public and of any passengers carried.**

Secretary,Regional Transport Authority.RenewalsThis permit is hereby renewed upto the \_\_\_\_\_ day of \_\_\_\_\_ 19 \_\_\_\_\_ subject to the following further conditions :-  
\_\_\_\_\_ It is

effective also upto the date above written and subject to any conditions attached to the previous countersignature in the following regions :-

\_\_\_\_\_, Secretary,

(Date) Regional Transport Authority,

Countersignature Countersigned as required by section 88 of the Motor Vehicles Act, 1988, for (route or area) \_\_\_\_\_ subject to the following variation of conditions :- \_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

Renewal of countersignature The above countersignature is hereby renewed upto the \_\_\_\_\_ day of \_\_\_\_\_ 19\_\_\_\_\_, subject to the following conditions

:- \_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

[-] ['Part B' omitted vide Punjab Government Notification No.

G.S.R.41/C.A.59/88/S.96/Amd.(17)/2002 dated 25.9.2002.] Form P. St. S. (Rule 65 of the Punjab Motor Vehicles Rules, 1989) Government of Punjab Permit In Respect of A Service of State Carriages

## Part A

(Full permit to be kept by holder) Regional Transport Authority,

\_\_\_\_\_, No. P. St. S. \_\_\_\_\_

**1. Name of holder** \_\_\_\_\_

**2. Father's name** \_\_\_\_\_

**3. Address** \_\_\_\_\_

**4. Route/Area for which the permit is valid** \_\_\_\_\_

The entries in column No. 4 above are subject to the condition in entry 16 below.

**5. Type or types of vehicles to be used in the Service, Registration Number and seating capacity in each case.**

**6. Date of expiry.**

**7. Maximum and minimum fares, if fixed under section 67 of the Act.** \_\_\_\_\_

**8. Particulars of time-table to be observed, if any.**\_\_\_\_\_

**9. Whether goods may be carried on any or all of the vehicles solely or in addition to passengers, and the conditions subject to which goods may be carried.**\_\_\_\_\_

**10. A larger number of passengers than the number specified in the certificate of registration shall not be carried in any of the vehicles at any one time.**

**11. A conductor shall be carried on the vehicles at all times when they are in use as stage carriages or contract carriages.**

**12. Whether the fare-table is to be exhibited on the vehicles** \_\_\_\_\_

**13. Whether time-table is to be exhibited on the vehicles** \_\_\_\_\_

**14. The records to be maintained and the dates on which returns are to be made to the Transport Authority.**\_\_\_\_\_

**15. This permit shall, to the extent specified in entry 9 above, be deemed to be a public carrier's permit.**

**16. Not more than \_\_\_\_\_ vehicles of the service may be used by the holder of the permit as contract carriages within the areas hereinunder specified and subject to the following conditions :-**

**17. When the vehicles are not in use they shall not be halted in any public place except at a stand or parking place appointed by a competent authority under section 117 of the Act.**

**18.**

(1)A vehicle of the service permitted by entry 16 above to be used as a contract carriage may be used as such outside the area specified in entry 16 above or other areas or route in respect of which this permit has been countersigned, provided that on each occasion when the holder of the permit seeks so to use a vehicle he obtains special pass from the officer incharge of the tehsil or sub-tehsil in which he has his principal place of business or other authority appointed by the Regional Transport Authority for the purpose.(2)No special pass shall be made valid for more than one outward and return trip and not more than one special pass shall be issued at any one time, nor shall any special

pass allow the holder to enter into an engagement with a fresh hirer in respect of the return journey.(3)The provisions of the Act and rules regarding the carriage and production of permits shall apply equally to any special pass issued in conformity with this condition.

**19. The fee payable for this permit shall be paid on the due dates as laid down in rule 68 of the Punjab Motor Vehicles Rules, 1989.**

**20. (Other special conditions)**

**21. This permit does entitle the holder to use any vehicle belonging to the service as stage carriage on any road in respect of which the Regional Transport Authority concerned may have made an order limiting the number of stage carriages permitted to operate thereon, unless the road is specifically mentioned in entry above.**

**22. This permit does not entitle the holder, except in the extent indicated here, to use any vehicle belonging to the service as contract carriage or as a goods vehicle on any road in respect of which the Regional Transport Authority concerned may have made an order limiting the number of contract carriages or goods vehicles as the case may be, permitted to operate thereon.**

**23. The holder of this permit shall exercise such supervision over the work of his employees as is necessary, to ensure that the vehicle is operated conformably with the Act and the rules made thereunder and with due regard for the comfort, convenience and safety of the public and of any passengers carried.**

Secretary,

(Date) Regional Transport Authority,

RenewalsThis permit is hereby renewed upto the \_\_\_\_\_ day of \_\_\_\_\_ subject to the following further conditions :-

\_\_\_\_\_ It is effective also upto the date above written, and subject to any conditions attached to the previous countersignature, in the following regions :- \_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

Countersignature \_\_\_\_\_ Transport Authority \_\_\_\_\_ No. P. St. S.

\_\_\_\_\_ Countersigned for (Route/Area) \_\_\_\_\_ subject to the following variation of conditions

:- \_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

Renewal of countersignature This countersignature is hereby renewed upto the \_\_\_\_\_ day of \_\_\_\_\_ 19 \_\_\_\_\_. Secretary, Regional Transport Authority. Renewals Renewals up to

\_\_\_\_\_ 19 \_\_\_\_\_. Secretary,

(Date) Regional Transport Authority,

(1) One copy of the summary to be issued for each vehicle covered by the permit. (2) Here enter the number of the permit and, in brackets, the serial number up to the total number of vehicles. [-] ['Part B' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2002 dated 25.9.2002.] Form P.CO.P. (Rule 65 of the Punjab Motor Vehicles Rules, 1989) Government of Punjab Contract Carriage Permit

## Part A – (Full permit to be kept by the holder)

No. P. Co. O. \_\_\_\_\_ Regional Transport Authority \_\_\_\_\_

1. Name of holder \_\_\_\_\_

2. Father's name \_\_\_\_\_

3. Address \_\_\_\_\_

4.

(1) Registration mark \_\_\_\_\_ (2) The vehicle is held under a hire purchase agreement with \_\_\_\_\_

5. Maximum number of passengers which may be carried at any one time

\_\_\_\_\_

6. | RouteArea | for which the permit is valid \_\_\_\_\_

7. (In the case of motor cab only). - The Headquarters of the vehicle shall be the | districtarea | of \_\_\_\_\_ No passenger shall be taken

into the vehicles at any place outside the | districtarea | mentioned unless he applies and contracts to be carried the whole way from

that place to same point in the said | districtarea | .

8. (In the case of a contract carriage other than a motor cab). - (1) The vehicle may be used as a carriage outside the area specified in entry 6 above or other area in respect of which this permit has been countersigned; provided that on each occasion when the holder of the permit seeks so to use the

**vehicle he will obtain a special pass from the Regional Transport Authority for the purpose.**

(2) No special pass shall be made valid for more than one outward and return trip and not more than one special pass shall be issued at any one time, nor shall a special pass allow the holder to enter into an engagement with a fresh hirer in respect of the return journey. (3) The provisions of the Act and rules regarding the carriage and production of permit shall apply equally to any special pass issued in conformity with this condition.

**9. Date of expiry \_\_\_\_\_ 19 .**

**10. Rate of fare per kilometre (In the case of a motor cab only) -**

**11. Whether a taximeter is to be fitted and (if so) the type. (In the case of a motor cab only). \_\_\_\_\_**

**12. The fees payable for this permit shall be paid on the due dates as laid down in rule 68 of the Punjab Motor Vehicles Rules, 1989.**

**13. Any other conditions \_\_\_\_\_**

**14. Records to be maintained and the date on which returns are to be made to the Transport \_\_\_\_\_ Authority. \_\_\_\_\_**

**15. This permit does not entitle the holder to use the vehicle herein described as a stage carriage.**

**16. Under the provisions of rule 66 of the Punjab Motor Vehicles Rules, 1989 this permit is valid also in the regions and subject to the conditions set forth below :**

Region Route/Area Conditions

**17. This permit does not entitle the holder, except to the extent indicated here to use the vehicle on any road in respect of which the Regional Transport Authority concerned may have made an order limiting the number of contract vehicles permitted to operate thereon**

---

**18. The holder of this permit shall exercise such supervision over the work of his employees as is necessary to ensure that the vehicle is operated conformably with the Act and the rules made thereunder, and with the due regard for the comfort, convenience and safety of the public and of any passengers carried.**

Secretary,

(Date) Regional Transport Authority,

Renewals This permit is hereby renewed up to the \_\_\_\_\_, day of \_\_\_\_\_ 19 , subject to the following further conditions :-

\_\_\_\_\_ It is effective also upto the date above written and subject to any conditions attached to the previous countersignature in the following regions

:- \_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

Countersignature Regional Transport Authority \_\_\_\_\_ No. P.Co.P.

\_\_\_\_\_ {||-| Countersignature for| RouteArea|

\_\_\_\_\_ }Subject to the following variation of conditions

\_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

Renewal of Countersignature The above countersignature is hereby renewed up to the \_\_\_\_\_ day of \_\_\_\_\_ 19 , subject to the following conditions :-

\_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

[-] ['Part B' omitted vide Punjab Government Notification No.

G.S.R.41/C.A.59/88/S.96/Amd.(17)/2002 dated 25.9.2002.]Form PGCTB(Rule 65 of the Punjab Motor Vehicles Rules, 1989)Government of PunjabGoods Carriage Permit For or in Connection With trade or Business.

## **Part A – (To be kept by the holder)**

Regional Transport Authority, \_\_\_\_\_ No. P.G.C.T.B.

---

**1. Name of holder** \_\_\_\_\_

**2. Father's name (in the case of an individual)** \_\_\_\_\_

**3. Address** \_\_\_\_\_

**4. Area for which permit is valid** \_\_\_\_\_

With the exception of the following roads \_\_\_\_\_

**5. Type and capacity of vehicles, including trailers and the alternative trailers of articulated vehicle :-**

Number of vehicles   Type   Load capacity kgs.   Laden weight kgs.   Registration

Nature of goods to be carried. \_\_\_\_\_

\_\_\_\_\_ Date of expiry \_\_\_\_\_ 19 .Records to be maintained and the date on which returns are to be made to the Transport Authority

**1. The fees payable for this permit shall be paid on the due date as laid down in rule 68 of the Punjab Motor Vehicles Rules, 1989.**

**2. Conditions** \_\_\_\_\_

**3. Under the provisions of rule 66 of the Punjab Motor Vehicles Rules, 1989 this permit is valid also in the regions and subject to the conditions set out below :-**

\_\_\_\_\_

| Regions | Route/Area | Conditions |
|---------|------------|------------|
|---------|------------|------------|

**4. The holder of this permit shall exercise such supervision over the work of this employees as is necessary to ensure that the vehicle is operated conformably with the Act and the rules made thereunder and with due regard for the comfort, convenience and safety of the public.**

Secretary,

(Date) Regional Transport Authority,

RenewalsRenewed up to \_\_\_\_\_ 19 , subject to \_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

Countersignatures \_\_\_\_\_ Transport Authority,

\_\_\_\_\_ No. P.G.C.T.B. \_\_\_\_\_ Countersigned for the Area of \_\_\_\_\_ subject to the following variation or conditions

\_\_\_\_\_ Secretary,Regional Transport Authority,Renewal of

CountersignatureThe countersignature is hereby renewed up to the \_\_\_\_\_ day of \_\_\_\_\_ 19 , subject to the following conditions

:- \_\_\_\_\_ Secretary,Regional

Transport Authority,[-] ['Part B' omitted vide Punjab Government Notification No.

G.S.R.41/C.A.59/88/S.96/Amd.(17)/2002 dated 25.9.2002.]Form P. G. C. H. R.(Rule 65 of the Punjab Motor Vehicles Rules, 1989)Government of PunjabGoods Carriage Permit For Hire or Reward

## **Part A – (Full permit to be kept by the holder)**

\_\_\_\_\_ Regional Transport Authority.No. P. G. C. H. R.

**1. Name of holder** \_\_\_\_\_

**2. Father's Name** \_\_\_\_\_

**3. Address** \_\_\_\_\_

**4. | RouteArea| for which permit is valid** \_\_\_\_\_

**5. Type and capacity of vehicles including trailers and the alternative articulated vehicles :-**

Number of vehicles   Type   Load capacity Kgs.   Laden weight Kgs.   Registration marks

Note. - Of the above, the vehicles described below by their registration marks are held under a hire agreement with \_\_\_\_\_

**6. Date of expiry \_\_\_\_\_ 19 .**

**7. The records to be maintained and the dates on which returns are to be made to the Transport Authority. \_\_\_\_\_**

**8. The fees payable for this permit shall be paid on the due dates laid down in rule 68 of the Punjab Motor Vehicles Rules, 1989.**

**9. Conditions \_\_\_\_\_**

**10. The vehicle(s) authorised by this permit may be used by the holder as goods carriage within the area of \_\_\_\_\_ for the purpose of carrying the following goods :- \_\_\_\_\_**

**11. Under the provisions of rule 66 of the Punjab Motor Vehicles Rules, 1989 this permit is valid also in the regions and subject to the conditions set out below :-**

Region   Route/Area   Conditions

**12. This permit does not entitle the holder, except to the extent specified here, to use the vehicle on any road in respect of which the Regional Transport Authority concerned may have made an order limiting the number of transport vehicles permitted to operate thereon :-**

---

**13. The holder of this permit shall exercise such supervision over the work of his employees as is necessary to ensure that the vehicle is operated conformably with the Act and the rules made thereunder and with due regard for the comfort, convenience and safety of the public.**

Secretary,

(Date) Regional Transport Authority,

RenewalRenewed up to \_\_\_\_\_ 19 , subject \_\_\_\_\_ Also valid in \_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

Countersignature \_\_\_\_\_ Transport  
Authority.No. P. G. C. H. R. \_\_\_\_\_ Countersigned for the area of  
\_\_\_\_\_ subject to

\_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

Renewal of countersignatureThe above countersignature is hereby renewed up to the  
\_\_\_\_\_ day of \_\_\_\_\_ 19 , subject to the following  
conditions :-

\_\_\_\_\_ Secretary,

(Date) Regional Transport Authority,

[-] ['Part B' omitted vide Punjab Government Notification No.

G.S.R.41/C.A.59/88/S.96/Amd.(17)/2002 dated 25.9.2002.]Form P.N.P.G.C.National Permit For  
Goods Carriage(Rule 65 of the Punjab Motor Vehicles Rules, 1989)

## **Part A – (Full permit to be kept by the holder)**

Regional Transport Authority \_\_\_\_\_ No. P. N. P. G. C.

**1. Name of the permit holder** \_\_\_\_\_

**2. Father's Name** \_\_\_\_\_ (in case of an individual)

**3. Address** \_\_\_\_\_

**4. Name of States/Union Territories** \_\_\_\_\_ for which permit the is valid.

**5. Type, Model and capacity of vehicles including trailer of the alternative articulated vehicles :-**

**6. Valid from** \_\_\_\_\_ **to** \_\_\_\_\_ **19 .**

**7. The record to be maintained and the dates on which returns are to be sent to the Transport Authority** \_\_\_\_\_

**8. Nature of goods to be carried in the vehicle** \_\_\_\_\_

**9. Conditions attached to the permit** \_\_\_\_\_

**10. The holder of this permit shall exercise shall supervision over the work of his employees as is necessary to ensure that the vehicle is operated in conformity with the Act and the Rules made thereunder and with due regard to the comfort, convenience and safety for the public.**

Regional Transport Authority. Renewed up to \_\_\_\_\_ Subject to  
\_\_\_\_\_. Also valid in \_\_\_\_\_

(Date) Regional Transport Authority,

[ - ] [ 'Part B' omitted vide Punjab Government Notification No.

G.S.R.41/C.A.59/88/S.96/Amd.(17)/2002 dated 25.9.2002.] P.TEM. (Rule 65 of the Punjab Motor Vehicles Rules, 1989) Government of Punjab Temporary Permit \_\_\_\_\_ Regional Transport Authority. No. P. Tem. \_\_\_\_\_

**1. Name of holder** \_\_\_\_\_

**2. Father's name** \_\_\_\_\_

**3. Address** \_\_\_\_\_

**4. Type of vehicle** \_\_\_\_\_

**5. (i) Registration mark** \_\_\_\_\_

(ii) Laden weight \_\_\_\_\_

**6. Purpose for which the vehicle is permitted to be used** \_\_\_\_\_

**7. (a) Route or area for which the temporary permit is valid** \_\_\_\_\_

(1) within the region \_\_\_\_\_ (2) outside the region \_\_\_\_\_

\_\_\_\_\_ (b) In the case of a passenger vehicle the maximum number of passengers which may be carried at any one time \_\_\_\_\_

\_\_\_\_\_ (c) Whether a conductor must be carried \_\_\_\_\_

\_\_\_\_\_ (d) Whether the vehicle may be used for the carriage of goods in place of passengers \_\_\_\_\_ (e) Fares \_\_\_\_\_

\_\_\_\_\_ (1) Whether rates prescribed \_\_\_\_\_ (2) Whether fare-table to be displayed \_\_\_\_\_

\_\_\_\_\_ (f) Time-table - (i) to be observed \_\_\_\_\_

\_\_\_\_\_ (ii) to be displayed \_\_\_\_\_

\_\_\_\_\_ (g) Restrictions on the type of goods which may be carried \_\_\_\_\_

\_\_\_\_\_ (h) Any other conditions \_\_\_\_\_

**8. Date of expiry** \_\_\_\_\_ **19 .**

**9. The permit does not entitle the holder, except to the extent indicated here to use the vehicle on any road in respect of which the Regional Transport Authority concerned may have made an order limiting the number of transport vehicles permitted to operate thereon**

\_\_\_\_\_

**10. The holder of this permit shall exercise such supervision over the work of his employees as is necessary to ensure that the vehicle is operated conformably with the Act and the rules made thereunder and with due regard or the comfort, convenience and safety of the public and of any passengers carried.**

Secretary,

(Date) Regional Transport Authority,

Countersignature, if necessary. \_\_\_\_\_ Regional Transport Authority.No. P. Tem.  
\_\_\_\_\_ Countersigned for the region of \_\_\_\_\_ subject  
to the following conditions

\_\_\_\_\_  
Secretary,

(Date) Regional Transport Authority,

[Form R.St. C.P.] [Inserted vide Punjab Government Notification No.  
G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.](Rule 65 of the Punjab Motor Vehicles  
Rules, 1989)Government of PunjabPermit in Respect of Particular Reserve Stage CarriageNo. R.St.  
C.P.Regional Transport Authority-----

**1. Name of the permit holder-----**

**2. Father's Name-----**

**3. Address-----**

**4. (a) Registration Mark of the Vehicle-----**

(b)The vehicle is held under Hire Purchase agreement with-----

**5. Maximum number of passenger which may be carried at any one  
time-----**

**6. A conductor shall be carried on the vehicle when it is in use as a stage  
carriage in the event of break down by the existing stage carriage covered  
with permit-----**

**7. Routes/Areas for which permit is valid-----**

**8. Date of expiry-----**

**9. Rate of fares, if fixed under section 67 of the Act-----**

**10. Particulars of time table to be observed, if any-----**

**11. Reserve vehicle shall be used against the operation of a break down vehicle only. Otherwise it shall be kept reserve and parked at the premises of permit holder-----**

**12. The vehicle above described may be used by the holder of permits as contract carriage within the areas specified subject to the conditions, after obtaining a special permit under section 88(8) of the Motor Vehicles Act, 1988-----**

Strike out which is not applicable. Regional Transport Authority. Form Pb. T.P. [Inserted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.](Rule 65 of the Punjab Motor Vehicles Rules, 1989) Government of Punjab Permit in Respect of Tourist Vehicle No. Pb. T.P.----- State Transport Authority-----

**1. Name of permit holder-----**

**2. Father's Name-----**

(in case of an individual)

**3. Address-----**

**4. Name of States/Union Territories-----for which permit is valid**

**5. (a) Registration Mark-----Make-----Lease agreement/Hypothecation agreement with-----**

**6. Valid from-----to-----**

**7. The record to be maintained and the dates on which returns are to be sent to the State Transport Authority, once in every three months-----**

**8. Maximum number of tourists which may be carried out at only one time-----**

**9. Conditions attached to the permit as specified under rule 85 of Central Motor Vehicles Rules, 1989 and section 84 of the Motor Vehicles Act, 1988.**

**10. The holder of this permit shall exercise such supervision over the work of his employees as is necessary to ensure that the vehicle is operated in conformity with the Act and the rules made thereunder and with due regard to the comfort, convenience and safety for the public.**

State Transport Authority,-----Renewed up to-----subject to----- Also valid in----- Dated -----State Transport AuthoritiesForm P.S.(Rule 66 of the Punjab Motor Vehicles Rules, 1989)Government of PunjabSpecial Pass

**1. Name of holder** \_\_\_\_\_

**2. Registration number of vehicle** \_\_\_\_\_

**3. Number of Permit and Issuing Authority** \_\_\_\_\_

**4. Name of hirer** \_\_\_\_\_

**5. Starting point** \_\_\_\_\_

**6. Destination** \_\_\_\_\_

**7. Routes to be followed on outward and return journeys** \_\_\_\_\_

**8. Purpose of journey** \_\_\_\_\_

**9. Number of passengers and/or approximate weight and brief description of goods to be carried** \_\_\_\_\_

**10. Amount of fees paid** \_\_\_\_\_

**11. Valid from** \_\_\_\_\_ **to** \_\_\_\_\_

Issuing Officer.Issued at \_\_\_\_\_ Dated \_\_\_\_\_

Notes. - (1) This pass is valid only for one outward and return trip and does not entitle the holder to enter into an engagement with a fresh hirer for the return journey.(2)Pass should issue only in respect of vehicle holding contract carriage permit, or stage carriage permit which enables the vehicles to ply as a contract carriage also and should not be made valid for a longer period than is necessary to enable the applicant to fulfil his agreement with the hirer of the vehicle.Form R. P. F.(Rule 67 of the Punjab Motor Vehicles Rules, 1989)Government of PunjabReceipt for A Permit [Fee/Taxes] [Substituted vide Punjab Government Notification No. 75/C.A. 59/88/S. 96/Amd. (15)/2001, dated 25.5.2001.]Book No. \_\_\_\_\_

Receipt No. \_\_\_\_\_

**1. Number of permit or countersignature** \_\_\_\_\_

**2. Issued by the Regional Transport Authority** \_\_\_\_\_

**3. Name and address of holder** \_\_\_\_\_

**4. Date of payment** \_\_\_\_\_

**5. Amount paid** \_\_\_\_\_

**6. Date on which next payment is due** \_\_\_\_\_

(Date) Regional Transport Authority,

To be completed in duplicate by carbon Process. Form TEMP.A (Rule 76 of the Punjab Motor Vehicles Rules, 1989) Form of Receipt in Lieu of a Permit (i) No. of the permit

\_\_\_\_\_ [-] [The words 'Part A & B' omitted vide Punjab Government Notification No. G.S.R.41/C.A.59/88/S.96/Amd.(17)/2000, dated 25.9.2002.] (ii) Issuing authority

\_\_\_\_\_ STA/RTA. (iii) Area covered by the route permit

\_\_\_\_\_. (iv) Date of expiry of the route permit

\_\_\_\_\_. (v) Name, parentage and full address of the

permit-holder. (vi) Reasons for taking route permit in possession \_\_\_\_\_ (vii) Date

upto which the receipt shall be valid \_\_\_\_\_ (viii) Registration mark of the vehicle

\_\_\_\_\_. Signature of the authority taking the permit into possession (with full

designation) \_\_\_\_\_

out whichever not applicable. (ii) The receipt must be surrendered at the time of getting back the route permit. (iii) The receipt must be signed by the authority by whom it was issued when its period of validity is extended. (iv) In (vi) the reasons for taking possession are to be briefly given and where the reasons in violation of any provision of the Motor Vehicles Act, 1988 or the rules made thereunder the nature of the offence together the relevant section or rules should also be mentioned. Form T. A. P. (Rule 94 of the Punjab Motor Vehicles Rules, 1989) Government of Punjab Ticket Agents Permit The holder of this Document \_\_\_\_\_

(name and full particulars of holder) \_\_\_\_\_ has been authorised to act as my/our agent for the sale of tickets in the public service vehicle operated by me/us. (Place) { | - | (Date) | (Person or company giving the authorisation) | - | BADGE NO. |

DISTRICT } The holder (name) having been authorised as above, is hereby licensed to act as an agent for the sale of tickets throughout the (district or other area of validity), subject to the conditions in the Punjab Motor Vehicles Rules, 1989. Licensing Authority,

(Date) \_\_\_\_\_ District.

Valid up to the 19 \_\_\_\_\_. Licensing Authority,

(Date) \_\_\_\_\_ District.

Form PB. G. B. A. 1. (Rule 110 of the Punjab Motor Vehicles Rules, 1989) Application for Principal/Supplementary Licence to work as collecting agent and forwarding and distributing agent. To The Secretary, State Transport Authority Regional Transport Authority \_\_\_\_\_

- 1 Full name in Block letters \_\_\_\_\_
- 2 Name of father or husband  
(in case of individuals) \_\_\_\_\_
- 3 Address \_\_\_\_\_
- 4 Educational Qualifications or experience in the management of Transport business \_\_\_\_\_
- 5 (a) Place where the applicant proposes to engage as an agent \_\_\_\_\_
- (b) Place where he proposes to establish his sub-agencies/offices \_\_\_\_\_
- 6 Nature of extent of financial resources of applicant. \_\_\_\_\_
- 7 Particulars of goods vehicles either owned by the applicant or under his control :-  
(a) Total Number \_\_\_\_\_
- (b) Make \_\_\_\_\_
- (c) Model or year of manufacture \_\_\_\_\_
- (d) Registration laden weight \_\_\_\_\_
- (e) Registration marks \_\_\_\_\_
- 8 Particulars of the site its location \_\_\_\_\_
- 9 Description of the premises, nature of building, extent of the site etc. \_\_\_\_\_
- 10 Facilities provided by applicants for parking the goods vehicles. \_\_\_\_\_
- 11 Facilities provided by the applicants for loading and unloading of goods and storage of goods. \_\_\_\_\_
- 12 The particulars of weighing device provided at the above mentioned places \_\_\_\_\_

**13. I am/We are fully conversant with the conditions of goods carriage permit and the provisions of the Motor Vehicles Act, 1988 and the rules made thereunder so far as they relate to the restrictions regarding the routes, weights, loading and unloading of goods and the duties and functions of agents.**

**14. I/We declare that to the best of my/our knowledge and belief the particulars given above are true and correct.**

Date and Place Signature of applicant.

Note :- This application if made to the State Transport Authority shall be accompanied by certificate of the Regional Transport Authority concerned approving the facilities provided by the applicant for parking the vehicles, loading and unloading of goods and storage of goods. Form PB. G. B. A. 2 (Rule 110 of the Punjab Motor Vehicles Rules, 1989) Application for Supplementary Licence to work as collecting, forwarding and distributing agent. To The Secretary, State Transport Authority/Regional Transport Authority \_\_\_\_\_

- 1 Full name in Block letters \_\_\_\_\_
- 2 Name of father or husband  
(in case of individuals) \_\_\_\_\_
- 3 Address \_\_\_\_\_
- 4 Educational Qualifications or experience in the  
management of Transport business \_\_\_\_\_
- 5 Principal Licence No. \_\_\_\_\_
- 6 Nature of extent of financial resources of applicant. \_\_\_\_\_
- 7 Particulars of goods vehicles either owned by the  
applicant or under his control :-  
(a) Total Number \_\_\_\_\_  
(b) Make \_\_\_\_\_  
(c) Model or year of manufacture \_\_\_\_\_  
(d) Registration marks \_\_\_\_\_  
(e) Registration marks \_\_\_\_\_
- 8 Particulars of the site its location \_\_\_\_\_
- 9 Description of the premises, nature of building, extent of  
the site etc. \_\_\_\_\_
- 10 Facilities provided by applicant for parking the  
goods vehicles. \_\_\_\_\_
- 11 Facilities provided by the applicants for loading  
and unloading of goods and storage of goods. \_\_\_\_\_
- 12 The particulars of weighing device provided at the  
above mentioned places \_\_\_\_\_

**13. I am/We are fully conversant with the conditions of goods carriage Permits and the provisions of the Motor Vehicles Act, 1988 and the rules made thereunder so far as they relate to the restrictions regarding to routes, weights, loading and unloading of goods and the duties and functions of agents.**

**14. I/We declare that to the best of my/our knowledge and belief the particulars given above are true and correct.**

Date and Place Signature of applicant.

Note :- This application if made to the State Transport Authority shall be accompanied by certificate of the Regional Transport Authority concerned approving the facilities provided by the applicant for parking the vehicles, loading and unloading of goods and storage of goods. Form PB. G.B.A. 3 (Rule 112 of the Punjab Motor Vehicles Rules, 1989) Application Form For Renewal of Licence To The Secretary, State Transport Authority, Regional Transport

Authority. \_\_\_\_\_ I/We hereby apply for the renewal of my/our licence which is attached and particulars of which are as follows -(a) Licence No. (b) Date of Issue (c) Nature of the Licence, i.e. collecting agent or forwarding and distributing agent or collecting, forwarding and distributing agent \_\_\_\_\_ (d) Name of Licensee (In Block Letters). (e) Address If the application for renewal is not made thirty days before the date of expiry of the licence, reasons for the delay. The prescribed fee of five hundred rupees in the case of principal licence and one hundred rupees in the case of supplementary licence along with the penalty amounting to \_\_\_\_\_ rupees is hereby tendered by means of treasury receipt showing the deposit under the head of account. I/We hereby declare that there is no such change in the circumstances in which the licence was issued to me/us which disqualified me/us from continuing to hold this licence.

Date and place. Signature of the Applicant.

Form PB. G. B. A. 4 (Rule 110 of the Punjab Motor Vehicles Rules, 1989) Form of declaration by owner of goods carriages. I/We \_\_\_\_\_ of

\_\_\_\_\_ being owner of vehicle No. \_\_\_\_\_ and \_\_\_\_\_ covered by goods carriage permit No. \_\_\_\_\_

\_\_\_\_\_ do hereby solemnly declare that my aforesaid vehicle will be operated under the administrative control of \_\_\_\_\_ for collecting, forwarding and distributing goods under Punjab Motor Vehicles Rules, 1989 and shall be available to the agent for loading and transportation of goods all the times.

Dated : Deponent

Form PB. G. B. A. 5 (Rule 110 of the Punjab Motor Vehicles Rules, 1989) Principal licence No.

Full name (In Block letters) \_\_\_\_\_

Name of father or husband \_\_\_\_\_

(In case of an individual)

Address \_\_\_\_\_

is licensed to engage as collecting, forwarding and distributing agent or collecting.

The licence is valid from To

Dated : So long as this licence is valid and renewed from time to time, the holder is authorised to use the premises the particulars of which are given below in connection with his business subject to the provisions of rule 114 and subject to the following conditions : \*Particulars of premises : \*\*Conditions -Secretary,

Dated : State/Regional Transport Authority.

Specify the place or places where the agent's office or offices will be located,\*\*(2) Specify the conditions.RenewalThe licence is hereby renewed up toSecretary,

Dated State/Regional Transport Authority,

The licence is hereby renewed up to

Dated State/Regional Transport Authority,

Form PB. G.B.A. 6(Rule 110 Punjab Motor Vehicles Rules, 1989)

Supplementary licence No. Dated

Full name (In Block letters)Name of father or husband(In case of an individual)Principal licence

No.Addressis licensed to engage as collecting, forwarding and distributing agent or collecting or forwarding and distributing agent and maintain sub- agencies/office for the purpose at (I)

This licence is valid from To

Dated :So long as this licence is valid and renewed from time to time the holder is authorised to use the premises, the particulars of which are given below in connection with his business subject to the provisions of rule 114 and subject to the following condition :\*Particulars of

Premises.\*\*ConditionsSecretary

Dated : State/Regional Transport Authority,

\*1. Specify the place or places where the agents' office or offices will be located.\*\*2. Specify the conditions.RenewalThis licence is hereby renewed upto

Dated : Secretary,

State/Regional Transport Authority.This licence is hereby renewed up toSecretary,

Dated : State/Regional Transport Authority.

Form PB. G. B. A. 7(Rule 114 of Punjab Motor Vehicles Rules, 1989)Half yearly return for the period ending 31st March/30th September, 19ToThe Secretary,State Transport

Authority\_\_\_\_\_

## **1. Licence No.**

## **2. Date of its grant or last renewal**

## **3. Total number of goods carriage owned by the agent.**

## **4. Total number of goods carriages under the control of the agent.**

## **5. Number of goods carriages out of those mentioned in Nos. (3) and (4) above which are actually used during the half year. -**

(a)For more than three months during the period.(b)For more than four months during the period.(c)For more than five months during the period.

**6.**

Tonnage of goods collected and delivered to the forwarding and distributing agents :

| Name and address of the forwarding and distributing agents | Tonnage of goods delivered to the forwarding and distributing agent |
|------------------------------------------------------------|---------------------------------------------------------------------|
|------------------------------------------------------------|---------------------------------------------------------------------|

Note. - In case of the space given above under item No. 6 not sufficient attach separate sheet.

**7. Total tonnes of the goods collected, forwarded and delivered by the agent himself.**

**8. Maximum and minimum distance for which the goods were forwarded from the forwarding point to the delivering point,**

Distance Total Tonnes.

(a)Distance not exceeding 80 Kilometres.(b)Distance exceeding 80 Kilometres but not exceeding 160 Kilometres.(c)Distance exceeding 160 Kilometres but not exceeding 240 Kilometres.(d)Distance exceeding 240 Kilometres but not exceeding 320 Kilometres.(e)Distance exceeding 320 Kilometres but not exceeding 400 Kilometres.(f)Distance exceeding 400 Kilometres but not exceeding 480 Kilometres.(g)Distance exceeding 480 Kilometres.

**9. In respect of the entry made in item No. 8(g) above specify the nature of goods (e.g.) fruits, glass, households effect, coal etc.**

**10. Total length of journey performed by the goods vehicles mentioned in item No. 3 and item No. 4 in Kilometres.**

**11. Maximum time taken in delivering consignment from the date of its booking by the forwarding and distributing agents -**

| Time | Tonnes of the consignment | Distance from the forwarding point to the delivering point |
|------|---------------------------|------------------------------------------------------------|
|------|---------------------------|------------------------------------------------------------|

**12. Claims received and settled. -**

(1)No. of claims pending from previous half-year.(2)No. of claims received during the period of report.(3)Compensation claimed during the period of report.(4)No. of claims settled during the period of report.(5)Compensation paid during the period of report.(6)Number of claims pending at the end of the period of report.

**13. Freight and commission.**

Total freight in respect of the vehicles mentioned in item No. (3) above. Total freight released in respect of the vehicles mentioned in item No. (4) above. Total freight released and paid to other operators. Total amount of commission realised.

**14. Total amount of the premium paid to insurance companies for Insurance of the goods.**

**15. Total amount realised from the insurance companies in respect of claims for loss or damage of goods.**

**16. Maximum time for which a consignment was held by the forwarding and distributing agent in his godown before despatch.**

**17. Maximum time for which a consignment was held by the collecting agent before delivering it to the forwarding and distributing agent.**

**18. Maximum time for which a consignment was held by the forwarding and distributing agent in his godown at the distributing point before delivery to the consignee :**

Date Signature of agent

Form Stand A(Rule 200 of the Punjab Motor Vehicles Rules, 1989)Government of PunjabOrder Permitting A Site to be Used As A Stand of Class-APermission is hereby given for the land described below to be used as a General Stand for Stage Carriages and other Transport Vehicles under arrangements to be made by or under the orders of Government.

**2. This order is made under sub-rule (2) of rule 200 of the Punjab Motor Vehicles Rules, 1989 and shall remain effective for a period of \_\_\_\_\_ Year(s) unless previously revoked.**

District Magistrate

(Date) \_\_\_\_\_ District.

**1. Description of the land included in the stand, with particulars of the owners of the land of any buildings thereon.**

**2. Maximum number of vehicles which may be admitted to the Stand at any one time.**

**3. Fees shall be chargeable at the Stand at the following rates.**

**4. Other conditions.**

RenewalsThe order is hereby renewed for a further period extending up to the \_\_\_\_ 19 .District Magistrate,

(Date) \_\_\_\_\_ District.

Form Stand B(Rules 200 and 203 of the Punjab Motor Vehicles Rules, 1989)Government of PunjabOrder Permitting A Site To Be Used As A Stand of Class BPermission is hereby given for the establishment on the site described below, of a General Stand for Stage Carriages and other Transport Vehicles subject to the rules in the Punjab Motor Vehicles Rules, 1989 and the conditions prescribed below.

**2. It is intended that the management of the Stand shall be entrusted by an agreement of the kind described in rule 203 of the said rules to a manager, who shall be responsible for the fulfilment of the conditions attached to this Order and of all the provisions of the Act and the rules that may be applicable.**

**3. This order is made under sub-rule (2) of rule 200 of the Punjab Motor Vehicles Rules, 1989 and shall remain in force for a period of \_\_\_\_\_ year(s), unless previously revoked.**

District Magistrate,

(Date) \_\_\_\_\_ District.

**1. Description of the land and buildings included in the site, with particulars of their ownership. If it will be necessary for the manager to pay rent to a third party for the land or buildings the amount so payable should be specified here.**

**2. Improvements which the manager should be required by the terms of his agreement to execute.**

Dated by which the improvements are to be completed Value Rs.

Description of Improvement

- 3. Staff to be maintained by the Manager at the Stand.**
- 4. Records to be maintained by the Manager.**
- 5. Other Special conditions to be observed by the Manager.**
- 6. Maximum number of vehicles which may be admitted to the Stand at any one time.**
- 7. Fees shall be chargeable at the Stand at the following rates.**
- 8. Other conditions.**

RenewalsThe order is hereby renewed for a further period extending up to the \_\_\_\_\_ 19 .

(Date) Disrict Magistrate,

Form Stand C(Rules 200 and 204 of the Punjab Motor Vehicles Rules, 1989)Government of PunjabOrder Permitting A Site To Be Used As A Stand Of Class CPermission is hereby given for the land described below to be used as a general Stand for Stage Carriage and other Transport Vehicles under arrangements to be made by the \_\_\_\_\_ Committee of \_\_\_\_\_ subject to the conditions specified in Chapter X of the Punjab Motor Vehicles Rules, 1989 and the further conditions set out below.

- 2. The sum agreed for the purpose of clause (c) in sub-rule 3 of rule 204 of the Punjab Motor Vehicles Rules, 1989.**
- 3. This order is made under sub-rule (2) of rule 200 of the Punjab Motor Vehicles Rules, 1989 and shall remain in force for a period of \_\_\_\_\_ year(s) unless previously revoked.**

District Magistrate,

(Date) \_\_\_\_\_District.

- 1. Description of the land and buildings included in the site, with particulars regarding the ownership of both land and buildings.**
- 2. If any part of the land was acquired by the local authority by purchase during the twenty years preceding the first year of establishment of a stand on the site particulars should be given here of the amount spent by the local authority in acquiring it including particulars of the interest which the local**

**authority is paying on any sum borrowed for the purpose of acquiring the land.**

**3. If any rent is being paid by the local authority to a private person for any of the land or building, give particulars.**

**4. Particulars of any buildings which have been erected by the local authority on the site for the purpose of the Stand, with their approximate value and date of construction.**

**5. Improvements which the local authority is authorised to carry out on the site, with the date by which each is expected to be completed.**

Amount which the local authority is expected to expend on the improvement.Rs.

**6. Maximum number of vehicles which may be admitted to the Stand at any one time.**

**7. Records to be maintained in regard to the vehicles using the Stand.**

**8. Fees shall be chargeable at the Stand at the following rates.**

**9. Other conditions.**

RenewalsThe order is hereby renewed for a further period extending up to the \_\_\_\_ 19 .District Magistrate,

(Date) \_\_\_\_\_District.

\*A sum not exceeding 3 per cent of the gross receipts from fees at the Stand.Form Stand D(Rules 200 and 206 of the Punjab Motor Vehicles Rules, 1989)Government of PunjabOrder Permitting A Site To Be Used As A Stand of Class DBy this order (name of company or person), of whom more detailed particulars are given below is permitted to use the land hereinafter described as a Company Stand, subject to the particular conditions herein given and to the rules contained in the Punjab Motor Vehicles Rules, 1989.

**2. No vehicles other than those belonging to the person or company in whose favour this Order is made, and the other vehicles specially detailed below, shall be admitted to the Stand.**

**3. This Order is made under sub-rule (2) of rule 200 of the Punjab Motor Vehicles Rules, 1989 and shall remain in force for a period of \_\_\_\_\_ year(s), unless previously revoked.**

District Magistrate,

(Date) \_\_\_\_\_ District.

**1. Particulars of the person, firm or company to whom the permission is given.**

**2. Description of the land and buildings included in the Stand.**

**3. Vehicles (other than those belonging to the person or company in whose favour the order is made) which may be admitted to the Stand.**

**4. Maximum number of vehicles may be admitted to the stand at any one time.**

**5. Special instructions regarding the amenities to be provided at the Stand.**

**6. Other conditions.**

RenewalsThe order is hereby renewed for a further period extending up to the \_\_\_\_\_ 19  
.District Magistrate,

(Date) \_\_\_\_\_ District.

[FORM P.M.A.C.T.A (A) [Substituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]](See rules 215 and 215-F(6))Application for Compensation Before the Motor Accident Claims Tribunal

ToThe Motor Accidents Claims

Tribunal. \_\_\_\_\_ Sir

PhotographofClaimants

I, \_\_\_\_\_, son/daughter/wife/widow of \_\_\_\_\_ residing at \_\_\_\_\_ having been injured in motor vehicles accident hereby apply for the grant of compensation for the injury sustained. Necessary particulars in respect of the injury, vehicle, etc. are given below :-I/we \_\_\_\_\_ father/mother/sons/daughter(s)/widow of \_\_\_\_\_ residing at \_\_\_\_\_ hereby apply as legal representatives for the grant of compensation on account of death of Shri/Sharmati/Kumari \_\_\_\_\_/injury sustained by Shri/Shrimati/Kumari \_\_\_\_\_ who died/was injured in a motor vehicle accident. Necessary particulars in respect of the deceased/injured and the vehicles, etc., are given below :-

1. Name and father's name of the persons injured/dead (Husband's name in the case of married woman) \_\_\_\_\_
2. Full address of the person injured/dead \_\_\_\_\_
3. Age of the person injured/dead \_\_\_\_\_
4. Occupation of the person injured/dead \_\_\_\_\_
5. Name and address of the employer of the deceased if any \_\_\_\_\_
6. Monthly income of the person injured/dead \_\_\_\_\_
7. Does the person in respect of whom compensation is claimed pay income tax ? If so, state the amount of income tax (to be supported by documentary evidence) \_\_\_\_\_
8. Place, date and time of the accident \_\_\_\_\_
9. Name and address of the Police Station in whose jurisdiction the accident took place or was registered \_\_\_\_\_
10. Was the person in respect of whom compensation is claimed travelling by the motor vehicle involved in the accident ? If so, give the names and place of starting to the journey and destination \_\_\_\_\_
11. Nature of injuries sustained and disablement, if any, caused  
\_\_\_\_\_
12. Name and address of the Medical Officer/Practitioner, if any who attended on the injured/dead \_\_\_\_\_
13. Period of treatment and expenditure, if any, incurred thereon (to be supported by documentary evidence)  
\_\_\_\_\_
14. Registration No. and the type of the motor vehicle involved in accident  
\_\_\_\_\_

**15. Name and address of the insurer of the motor vehicle** \_\_\_\_\_

**16. Name and address of the owner of the motor vehicle** \_\_\_\_\_

**17. Has any claim been lodged with the owner/insurer, if so, with what result** \_\_\_\_\_

**18. Name and address of the applicant** \_\_\_\_\_

**19. Relationship with the deceased/injured**  
\_\_\_\_\_

**20. Title to the property of the deceased/injured**  
\_\_\_\_\_

**21. Amount of compensation claimed and basis thereof**  
\_\_\_\_\_

**22. Whether report in prescribed form has been obtained from the police and registering authorities? (if so, to be annexed)** \_\_\_\_\_

**23. Whether documents mentioned in rule 215 are being annexed duly indexed (give details)** \_\_\_\_\_

**24. Any other information that may be necessary/helpful in the disposal of the claim** \_\_\_\_\_.

**25. Reasons or grounds for the late submission of the claim application on which condonation of delay is claimed**  
\_\_\_\_\_.

**26. Cause of accident with brief description** \_\_\_\_\_

Signature or thumb-impression of the applicant. Verification \_\_\_\_\_  
\_\_\_\_\_ this \_\_\_\_\_ day of \_\_\_\_\_ that the contents of the above application are true and correct to my/our knowledge and belief. Signature or thumb-impression of the applicant(s). Notes. - (1) Applicant shall furnish spare copies of the application equal to the number of respondents cited in the claim application for sending the same with notices to the respondents. (2) The application is to be filed within six months of the occurrence of accident and

petition above mentioned seeking payment of compensation has been preferred in this Claims Tribunal in connection with the accident which is stated to be subject matter of investigation by you through FIR particulars stated above; And whereas the law enjoins upon you to make available to the parties concerned under the provisions of section 160 of the Motor Vehicles Act, 1988 and to this Tribunal under the provisions of sub-section (6) of section 158 of the said Act read with rule 150 of the central Motor Vehicles Rules, 1989 and rule 215-A of the Punjab Motor Vehicles Rules, 1989, document in the nature of-(1) Identification marks and other particulars of the vehicle, which caused the accident; (2) Name and address of the person, who was driving/using the same at the time of accident; (3) Name and address of the person, who was injured or description of properly damaged; (4) Copy of the FIR; (5) Report under section 173 of the code of criminal Procedure, 1973, along with documents annexed thereto viz., report/postmortem report, mechanical Inspection report, photograph taken, site plan prepared, driving licence, registration certificate, permit, insurance policy, verification, if any, etc.; (6) Any other relevant document seized. Now, therefore, you are hereby directed to send to this claims Tribunal, information in FORM P.M.A.C.T.A(D), with clear legible photocopies of all the aforesaid documents duly attested under your personal signatures and bearing your official seal within fifteen days of the receipt of this communication. Given under my hand and Seal, this \_\_\_\_\_ day of \_\_\_\_\_

\_\_\_\_\_ Title:  
 \_\_\_\_\_ vs \_\_\_\_\_ Subject: F.I.R. No.  
 \_\_\_\_\_ To Station House Officer, P.S.

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prepared, driving license, registration certificate, permit, insurance policy, verification, if any, etc-;(6)Any other relevant document seized.The under-signed, therefore, requests that the requisite information in FORM P.M.A.C.T.A(D) may kindly be furnished to him within fifteen days of the receipt of this communication.Yours faithfully()Fill name and addressDated:[FORM P.M.A.C.T.A (D) [Substituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]](See rule 215-B)Accident Information ReportPART-I

**1. FIR No., date of FIR & Sections Charged**

\_\_\_\_\_

**2. Name of the Police Stations** \_\_\_\_\_

**3. Date, time and place of accident** \_\_\_\_\_

**4. Name, father's name and address of the person injured / dead**

\_\_\_\_\_

(Husband's name in the case of Married woman and widow.

\_\_\_\_\_

**5. Name and address of the driver of the offending vehicle(s)**

\_\_\_\_\_

**6. Particulars of driving licence of the driver of offending vehicle(s)**

\_\_\_\_\_

a. Driving Licence No. \_\_\_\_\_ b. Period of validity of the  
licence \_\_\_\_\_ c. Issuing Authority

\_\_\_\_\_

**7. Name and address of the owner of the offending vehicle(s):**\_\_\_\_\_

**8. Particulars of the offending vehicle(s):**

\_\_\_\_\_

a. Registration No. and type of vehicle(s) Involved in the accident:

\_\_\_\_\_

b. Engine No.

\_\_\_\_\_

c. Chasis No.

\_\_\_\_\_

d. Address of registering authority

\_\_\_\_\_

e. Particulars of permit and fitness in case of

commercial vehicle \_\_\_\_\_

**9. Particulars of the Insurance of the offending vehicle(s):**

\_\_\_\_\_

(i) Policy/Cover Note No \_\_\_\_\_ (ii) Period of validity of  
the Policy \_\_\_\_\_ (iii) Name and address of the Insurance  
Company \_\_\_\_\_

**10. Age of the person injured/dead** \_\_\_\_\_

**11. Occupation of the person injured / dead**

\_\_\_\_\_

**12. Monthly Income of the person injured / dead**

\_\_\_\_\_

**13. Does the person in respect of whom compensation is claimed pay income tax? If so, state the amount of the Income Tax.**

\_\_\_\_\_

**14. In case of death, names, age, address and relationship of the legal representatives of the deceased** \_\_\_\_\_

**15. In case of injury nature of injuries sustained, treatment taken and disablement, if any,** \_\_\_\_\_

**16. Name and address of the Medical Officer / Practitioner, who attended on the injuries:** \_\_\_\_\_

**17. . Any other additional information** \_\_\_\_\_

PART-II Documents to be Attached to the Accident Information Report

**1. Report under Section 176 Cr.P.C.**

**2. FIR**

### **3. MLC**

### **4. Photographs**

### **5. Site Plan**

### **6. Mechanical Inspection report**

### **7. Seizure memos**

In case of Death

### **8. Proof of age of the deceased which may be in form of:**

- i. Birth certificate
- ii. Matriculation certificate
- iii. Certificate from gram panchayat (in case of illiterate)
- iv. Photo ID card of the deceased

### **9. Death certificate and post mortem report of deceased**

### **10. Proof of income of the deceased which may be in form of:**

- i. Pay slip / salary certificate for salaried employees
- ii. Bank statements of the last six months
- iii. Income Tax Returns
- iv. Balance Sheets
- II. Proof of the legal representatives of the deceased
- i. Names
- ii. Age
- iii. Address
- iv. Relationship

### **12. Treatment record, medical bills and other expenditure.**

In case of Injury

### **13. Proof of age of the injured which may be in form of:**

- i. Birth certificate
- ii. Matriculation certificate
- iii. certificate from Gram Panchayat (in case of illiterate)
- iv. Photo-ID card of the injured

### **14. Proof of Income of the injured at the time of the accident which may be in form of**

- i. Pay slip / salary certificate for salaried employees
- ii. Bank statements of the last six months of the deceased
- iii. Income Tax Returns
- iv. Balance Sheets

## **15. MLC**

**16. Treatment record, medical bills and other expenditure - the SHO/(Sic) shall also record the details (in case of long term treatment) so that the claimant may furnish such bills before the claims Tribunal.**

## **17. Disability certificate**

**18. Proof of absence from work where loss of income on account of injury is being claimed, which may be in the form of:**

- i. Certificate from the employerii. Extracts from the attendance register

## **19. Report regarding confirmation of genuineness of the above documents.**

(Station House Officer)VerificationVerified at \_\_\_\_\_ on this day of \_\_\_\_\_ that the content of the above Report are true and correct to my Knowledge and belief and the documents mentioned in Part II are verified to be correct.(Station House Officer)[FORM P.M.A.C.T.A (E) [Substituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]](See rule 215-C(a) and (b), 215-D(c) and (d), 215-E)Report of the Registering AuthorityCase No: \_\_\_\_\_ TITLE: \_\_\_\_\_ vs \_\_\_\_\_ ToMotor Accidents Claims Tribunal, \_\_\_\_\_ Sir,This is with reference to the order/application dated in the above mentioned case. The requisite information is given below:-

### **1. Particulars of the vehicle:**

(a)Registration No:(b)Type of vehicle:(c)Make and model:(d)Engine No:(e)Chassis No:(f)Full name and address of the registered owner of the vehicle:

### **2. Particulars of driving licence:**

(a)Driving License No. and date of issue/expiry:(b)Name and address of license holder:(c)Particulars of issuing Authority:(d)Badge No. in case of public service vehicle:(e)Detailed report if the particulars mentioned are found not genuine:

### **3. Particulars of route permit:**

(a)Permit No. and date of expiry:(b)Name and address of permit holder:(c)Type of permit:(Registering Authority)Verified that the contents of above report are correct as per records of

this office. Date: (Registering Authority) [FORM P.M.A.C.T.A (F) [Substituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]] (See rule 21S-C(a)) Order to Registering Authority Before The Motor Accident Claims Tribunal Punjab Case No:

\_\_\_\_\_ TITLE:  
 \_\_\_\_\_ vs \_\_\_\_\_ Subject :- (i) Verification of  
 Registration Certificate of Vehicle No. \_\_\_\_\_ and Driving Licence No.  
 \_\_\_\_\_ in respect of \_\_\_\_\_ valid up to  
 \_\_\_\_\_ issued by the \_\_\_\_\_ Licensing  
 Authority. To Registering Authority Order Whereas the claim petition mentioned above seeking  
 payment of compensation has been preferred in this Claims Tribunal in connection with an accident  
 allegedly involving motor vehicle, particulars of which are captioned above; And whereas the vehicle  
 is stated to have been registered by office under your control, and the driving licence/permit  
 aforesaid is stated to have been issued by office under your control; And whereas the records relating  
 to the said registration/driving licence/permit are required to be maintained by said officer under  
 your control under the Central Motor Vehicles Rules, 1989; And whereas requisite information  
 relating to the said documents is required by this Claims Tribunal for the purposes of inquiry under  
 the provisions of section 168 of the Motor Vehicles Act, 1988, which you are bound to furnish in  
 terms of rule 149 of the Central Motor Vehicles rules, 1989 read with rule 215-B of the Punjab Motor  
 Vehicles Rules, 1989. Now, therefore, you are hereby directed to furnish to this claims Tribunal, the  
 full information regarding registration certificate/driving licence/permit aforesaid, with copies of  
 documents in support duly attested by an authorized official and bearing official seal within fifteen  
 days of the receipt of this communication. Given under my hand and seal, this

\_\_\_\_\_ day of \_\_\_\_\_ MACT [FORM P.M.A.C.T.A (G) [Substituted by  
 Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f.  
 17.8.1989).]] (See rules 215-C(b) and 215-D(c)) Application to Registering Authority Case No:

\_\_\_\_\_ TITLE: \_\_\_\_\_  
 vs \_\_\_\_\_ To The Registering  
 Authority, \_\_\_\_\_ Subject: Vehicle No.  
 \_\_\_\_\_ Permit No. \_\_\_\_\_ Driving  
 Licence No. \_\_\_\_\_ in respect of

\_\_\_\_\_ Whereas the undersigned has been  
 impleaded as is a party in, the claim petition mentioned above seeking payment of compensation in  
 connection with an accident allegedly involving Motor Vehicle, particulars of which are captioned  
 above; And whereas the vehicle aforesaid is stated to have been registered by office under your  
 control, the driving licence/permit aforesaid is stated to have been issued by office under your  
 control (Strike out whichever is not applicable). And whereas the records relating to the said  
 registration/driving licence/ permit are required to be maintained by your office under the Central  
 Motor Vehicles Rules, 1989; And whereas requisite information relating to the documents aforesaid  
 are required by this Claims Tribunal for the purposes of inquiry under the provisions of section 16E  
 of the Motor Vehicles Act, 1988, which you are bound to furnish in terms of rule 149 of the Central  
 Motor Vehicle rules, 1989 read with rule 215-B of the Punjab Motor Vehicles Rules, 1989. Now  
 therefore, the undersigned, requests that complete information regarding registration  
 certificate/driving licence /permit aforesaid, with copies of documents in support duly attested

under your personal signatures and bearing your official seal may be furnished within fifteen days of the receipt of this application.(Applicant)(Full name, particulars and address to be given)[FORM P.M.A.C.T.A (H) [Substituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]](See rule 215-F(3))Notice for Appearance to the PartiesBefore the Motor Accident Claims Tribunal PunjabCase No:

\_\_\_\_\_  
TITLE:  
\_\_\_\_\_  
vs \_\_\_\_\_  
NoticeIn Re: Police Report under  
section 158(6) of the Motor Vehicles Act, 1988 treated as Claim case under section 166(4) of the  
Motor Vehicles Act, 1988.Reference FIR No  
\_\_\_\_\_  
of P.S.  
\_\_\_\_\_  
To \_\_\_\_\_

Description and Place of residence)Whereas a report under section 158(6) of the Motor Vehicles Act, 1988, has been received from Station House Officer of the said Police Station with reference to FIR regarding an accident involving use of a motor vehicle;And Whereas the aforesaid report has been treated by this claims Tribunal, as a claim case in accordance with the provisions of section 166(4) of the Motor Vehicles Act,1988, in which it appears necessary to call upon you to appear before the under signed for further proceedings in the matter at AMIPM on (date).Now, therefore, you are hereby asked to appear before this Claims Tribunal in person or by a pleader duly instructed and able to answer all material questions relating to the claim case aforesaid on aforesaid date and time.AND as the date fixed for your appearance is appointed for hearing of the claim a case and you are required to file on or before that date, an undertaking disclosing full particulars of the claim case, which may have either been preferred or being preferred in respect of the same cause of action by or against you.Take notice that in default of your appearance on the date and time aforementioned, the claim case will be heard and determined in your absence.Given under my hand and seal of this Tribunal on this \_\_\_\_\_ day of

\_\_\_\_\_  
MACT[FORM P.M.A.C.T.A (I) [Substituted by Notification  
No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f.  
17.8.1989).]](See rule 218)Notice to Opposite PartyBefore Motor Accident Claims Tribunal  
PunjabCase No: \_\_\_\_\_TITLE:

\_\_\_\_\_  
vs \_\_\_\_\_  
NoticeTo \_\_\_\_\_

description and place of residence)Whereas has instituted a Motor Accident Claim Case impleading you as Respondent (Copies of the application along with documents filed enclosed), which case has been directed to be listed before this Claims Tribunal, for hearing at AM/PM on(date).Now therefore you are hereby asked to appear before this Claims Tribunal, in person or through a pleader duly instructed and able to answer all material questions relating to the claim case on the aforesaid date and time.And as the date fixed for your appearance is appointed for hearing of the claim case, you may, therefore, file on or before that date, a written statement dealing with the claim raised in the application, along with all the documents in support of all facts on which you rely in your defence of the application, duly entered in a list of documents, where after it shall not be permissible to rely on any further documents, except as provided in rule 21 9 of Punjab Motor Vehicles Rules, 1989.Take notice that in default of your appearance on the date aforementioned the claim case will be heard and determined in your absence.Given under my hand and seal of this Tribunal, this  
\_\_\_\_\_  
day of \_\_\_\_\_MACT[FORM P.M.A.C.T.A

(J) [Substituted by Notification No. G.S.R.60/C.A.59/1988/Ss.166, 169 and 176/Amd.(23)/2013, dated 7.11.2013 (w.e.f. 17.8.1989).]](See rule 225-8)Direction For Medical ExaminationBefore Motor Accident Claims Tribunal, PunjabCase No:

TITLE:

To \_\_\_\_\_ Photograph of Claimants

ORDERWhereas the aforesaid claim petition seeking payment has been preferred in this Claims Tribunal in connection with an accident involving use of motor vehicle and the claimant

\_\_\_\_\_ S/o, D/o, W/o \_\_\_\_\_ aged

\_\_\_\_\_ R/O \_\_\_\_\_ whose

photograph bearing his specimen signature/thumb impression is affixed above, is alleged to have suffered injuries as a result of the said accident, which are stated to have been recorded in Medico Legal Certificate No. \_\_\_\_\_ dated

\_\_\_\_\_ in \_\_\_\_\_ (name of

hospital);And whereas for the purpose of inquiry into the claim petition, this Claims Tribunal considers it necessary to ascertain the degree and extent of disability, if any, suffered as a result of the said accident by the said claimant;Now, therefore, in exercise of powers vesting in this Claims Tribunal, in terms of rule of the Punjab Motor Vehicles Rules, 1989, the undersigned directs you to get the said claimant examined by a Medical Officer/Board of Medical Officers in your Hospital and submit report on above aspects to this Claims Tribunal within a period of fifteen days of the receipt of this direction.